HISTORY

The Philippine Islands, 1493-1803 — Volume 05 of 55

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The Philippine Islands, 1493-1803

Explorations by early navigators, descriptions of the islands and their peoples, their history and records of the catholic missions, as related in contemporaneous books and manuscripts, showing the political, economic, commercial and religious conditions of those islands from their earliest relations with European nations to the beginning of the nineteenth century

Volume V, 1582-1583

Edited and annotated by Emma Helen Blair and James Alexander Robertson with historical introduction and additional notes by Edward Gaylord Bourne.

CONTENTS OF VOLUME V

Preface 9 Documents of 1582

Letter to Felipe II. Gonzalo Ronquillo de Peñalosa; Manila, June 16 [1]Relacion de las Yslas Filipinas. Miguel de Loarca; [Arevalo, June, 1582) Letter to Felipe II. Fray Domingo de Salazar; Manila, June 20 Letter to the viceroy. Juan Baptista Roman; Cabite, June 25 Letter to Felipe II. Gonzalo Ronquillo de Peñalosa; Manila, July 1 Papal decrees regarding the Dominicans. Gregory XIII; Rome, September 15 and October 20 Report on the offices saleable in the Philippines. [Unsigned; 1582?]

Documents of 1583

Complaints against Peñalosa. Gabriel de Ribera; [1583?] Affairs in the Philipinas Islands. Domingo de Salazar; [Manila, 1583] Instructions to commissary of the Inquisition. Pedro de los Rios, and others; Mexico, March 1 Foundation of the Audiencia of Manila (to be concluded). Felipe II; Aranjuez, May 5

Bibliographical Data

ILLUSTRATIONS

Map of South America and Antilles, showing Strait of Magellan (original in colors), in _Beschryvinghe van de gantsche Custe_, by Jan Huygen van Linschoten (Amstelredam, M.D.XCVI); reduced photographic facsimile, from copy in Boston Public Library Autograph signature of Domingo de Salazar, O.P., first bishop of Manila; photographic facsimile from MS. in Archivo general de Indias, Sevilla

PREFACE

The period covered by this volume is short--only the years 1582-83, which close the second decade of Spanish occupation of the Philippine Islands; but in that time occur some events of great importance, and certain influences which deeply affect early Philippine history are revealed. The coming (in 1581) of the zealous and intrepid bishop, Domingo de Salazar, was a red-letter day for the natives of the islands. The

Spanish conquerors are ruthlessly oppressing the Indians, caring but little for the opposition made by the friars; but Salazar exerts as far as possible his ecclesiastical authority, and, besides, vigorously urges the king to shield those unfortunate victims of Spanish rapacity. Various humane laws are accordingly enacted for the protection of the natives; but of course this interference by the bishop occasions a bitter hostility between the ecclesiastical and the secular powers--perhaps never to be quieted. With Salazar come Jesuit fathers, who establish in the islands the missionary work of that order. In 1582 Japanese pirates begin to threaten Luzón, but are defeated and held in check by the Spanish troops. In 1583 occur two most notable events: one of these is the appointment for the islands of a royal Audiencia, or high court of justice--especially ordered by the king to watch over and shield the Indians; the other is the opening there of a branch of the Inquisition or Holy Office. Fuller details of all these matters are herewith given in the usual synopsis of documents.

In a letter dated June 16, 1582, Governor Peñalosa reports that the conversion of the natives is making good progress, but there are not enough missionaries. He recommends that a convent be established in every city and village; and that missionaries be sent directly from the mother-country, rather than from New Spain, as in the latter case they soon become discontented after coming to the Philippines. He complains because the Franciscans have gone to China; he renews the plea advanced by former officials for the conquest of that country, but regards the present Spanish force in the Philippines as inadequate for that purpose. Meanwhile, he is endeavoring to strengthen the colony, and has founded the town of Arévalo in Panay. Another new town is being established--Nueva Segovia, in Luzon. Peñalosa has sent an officer to Maluco, and the Jesuit Sanchéz to Macao, to pacify the Portuguese there when they shall learn of the change in their rulers--the dominion over Portugal having passed to the crown of Spain. He criticizes the administration of his predecessors, saying that they followed no plan or system in disbursements from the royal exchequer.

The governor thinks that the customs duties heretofore levied in the islands--three per cent on both imports and exports--are too small; and he has decided to raise the rate to five per cent for merchants in the Philippines, and seven for those in Mexico. He is endeavoring to extend the commerce of the islands, and for this purpose is sending ships with goods to Panama and Peru. He has sent one piece of heavy artillery to the viceroy of Peru, who asks Peñalosa for more; this is for the defense of the Strait of Magellan. The commerce between the Philippines and New Spain is increasing. Peñalosa commends the Jesuit missionaries who have come to the islands, and advises that more of them be sent thither. He is building forts and ships for the defense of the islands. He remonstrates against the recent royal decree which ordered the liberation of all Indian slaves held by Spaniards in the Philippines; and closes by asking some personal favors.

By the same mail which conveys the governor's letter is sent an account of the islands and their people, written by a soldier named Miguel de Loarca, Who was one of the earlier conquerors and settlers there. Beginning at Cebú, as the first settlement was made therein, he describes each island then known to the Spaniards

in that group--noting its size, contour, and population; and enumerating the encomiendas assigned therein, the officials in the Spanish settlements, the products of the island, etc. With this information Loarca incorporates many interesting details regarding the social and economic condition of the natives. After this preliminary survey, he describes at some length the religious beliefs of the Pintados or Visayan Indians; these vary, as held by the coast dwellers and those of the mountains. He relates their notions about the creation of the world and the origin of man, the condition of departed souls, and the deities who control their destiny. Many of these beliefs are, of course, childish, crude, and superstitious; yet some indicate considerable imagination and poetic fancy. They have various deities, and their priests are usually women; their religious traditions are preserved in songs. Their mortuary and mourning customs are described. A chapter is devoted to the institution of slavery among these peoples--its nature and causes, and the value and status of the slave. Their marriage customs are described at length, with the status of women among them, the penalties for unfaithfulness, the causes for divorce, etc. There is considerable curious information regarding the fauna and flora of the islands. Loarca then proceeds to relate similar particulars about the Moros of Luzon; they adore a divinity called Bathala, "the lord of all," or Creator. His ministers, who are deities of rain, harvest, trees, the sea, etc., are called _anitos_, and worshiped and invoked accordingly; they intercede for the people with the great Bathala. These Moros are governed by chiefs, who enact and administer such laws as seem necessary for the preservation of good order--adultery, murder, and theft being the chief crimes, which are punished by a system of fines, or by the enslavement of those who are without means to pay them.

The recently-arrived bishop, Domingo de Salazar, writes (June 20, 1582) to the king, imploring redress for the wrongs and sufferings endured by the Indians, who are continually oppressed by the Spanish officials placed over them. An affidavit made by some Indian chiefs relates their grievances. As a result of this ill-treatment, the native villages are rapidly being depopulated.

A letter from the royal factor in the Philippines, Juan Baptista Roman (June 25, 1582), relates the encounter of the Spaniards with some Japanese pirates who have raided the province of Cagayan in Luzón, and implores speedy aid from Mexico against this enemy. A letter evidently written by Peñalosa, although unsigned (July 1, 1582), mentions the fight with the Japanese, and asks for reënforcements of troops. More funds are also needed for extra expenses incurred, and especially for emergencies which often arise in the islands.

Two papal decrees (September 15 and October 20, 1582) found the Philippine province of the Dominican order, and grant indulgences to those who go thither as missionaries. An unsigned document (1582?) enumerates the "offices saleable" in the Philippine Islands; and recommends some changes in the methods of filling them, in view of the prevalent abuses. Captain Gabriel de Ribera addresses (1583?) to some high official a letter complaining that Peñalosa's administration is a bad one, and injurious to the welfare of the islands.

In the same year Bishop Salazar writes a memorial regarding affairs in the islands, for the information of the king and his royal Council of the Indias. He begins by describing the present scarcity of food supplies in Luzón. This is the result of sending to work in the mines the Indians of Pampanga, which province has hitherto been the granary of the island. The Spaniards also compel the natives to work in the galleys, and at many other tasks, so that they have no opportunity to cultivate their fields, and are even deprived of suitable religious instruction. Greedy Spanish officials have monopolized all local traffic, and have set their own price on all provisions, from which some have made great profits. Salazar--who has with good reason been styled "the Las Casas of the Philippines"--enumerates a melancholy list of injuries and opressions inflicted upon the hapless natives by their conquerors, and urges in most forcible and eloquent language that they be protected from injustice and treated as human beings. He cites from the royal decrees the clauses which make such provisions in behalf of the Indians, and claims that most of these are continually disobeyed. The Indians held by the royal crown suffer even greater oppression than do those in private encomiendas. As a result of all these evil deeds on the part of the Spaniards, the Indians have come to abhor the Christian faith, and many remain pagans; while those who are nominally Christians are so through fear rather than choice. The preachers who are sent to them ought to go without military escort, and the ençomenderos should be compelled to fulfil their duties toward the Indians in their charge.

The bishop then describes the status of the Chinese traders who come to the Philippine Islands. Vexatious dues have been levied upon the Chinese in Manila; they have been herded together in one dwelling, apart from the other residents of the city; and a special warden, with arbitrary power, has been placed over them. Besides, they have been compelled to sell their goods at much below their value, and have frequently been plundered; and reparation for their wrongs has been denied. As a consequence, Chinese goods have almost disappeared from the market, and the few articles seen are sold at exorbitant prices. Other traders who come to Manila are also burdened with numerous unjust and arbitrary exactions.

Salazar complains that the Spaniards enslave the Indians, and, despite all remonstrances made by the priests and friars, refuse to liberate their slaves. The natives are oppressed by the officials, and are at the mercy of lawless, because unpaid, soldiers. The encomenderos refuse to pay tithes, and the royal officials say that they have no instructions to pay the bishop; he is thus greatly straitened in means, and can do but little to aid the unfortunate natives or the poor Spaniards. The governor proposes to levy an additional tribute on the Indians; the clergy and the friars hold a conference regarding this matter, and decide that it may reasonably be levied, in order to support the expenses of protecting the natives from their enemies, and of instructing them in the true religion. Nevertheless, the bishop advises that no additional tribute be imposed until the king shall have opportunity to examine the question, and order such action as he deems best. The soldiers in the Philippines have left behind them (in Spain, Mexico, and elsewhere) families whom they have practically abandoned for many years. Salazar desires the king to order that these men be sent back to their homes, or obliged to bring their families to the islands.

Again he recurs to the wretched condition of the natives, and asks that suitable provision be made for an official "protector of the Indians;" and that to this post, now temporarily filled, the bishop may have the right of nomination. He also asks that to the city of Manila be granted an encomienda, to provide means for conducting municipal affairs and meeting necessary expenses. He recommends a reward for Ensign Francisco de Dueñas, who has just returned from an important mission to Ternate--whither he went with official announcement of the transfer of the Portuguese settlement there to the Spanish crown, which is peaceably accomplished. The Franciscan missionaries who went to China have been brought back to the islands by the governor, who forbids them to go away again without his permission. The bishop intercedes for them with Peñalosa, but in vain. This is but an instance of the frequent conflicts between the bishop and the civil authorities, who hinder rather than aid his efforts. Salazar closes his letter with advice to the king as to the officials who ought to be sent to these islands.

A document of especial interest is that (dated March 1, 1583) which gives instructions for the commissary of the Inquisition who is to reside in the Philippines. Great care must be exercised in the choice of that official; he must be very discreet in his actions, and observe most strictly the rule of secrecy in all transactions connected with his office and proceedings. All cases of heresy are to be referred to the Holy Office; accordingly, no cognizance of such cases is to be taken by bishops or other ecclesiastical dignitaries. The commissary is warned to control his temper, to be careful and thorough in his investigations, and to report to the Holy Office any cases of disrespect or disobedience to his commands. Careful instructions are given for procedure in receiving denunciations against suspected persons, on which are placed various restrictions, as well as upon arrests made in consequence of such accusations. The commissary is expected to investigate various crimes, especially that of bigamy; but he should, when possible, leave its punishment to the regular courts. In case of any accusation for this or other crimes, he should send to the Inquisition at Mexico all available information regarding the accused; in certain cases the latter should be sent to Mexico. The royal officials of justice are required to assist the commissary on his demand, and the public prisons are at his disposal; but he may at his own discretion select a special and secret place of imprisonment for a person arrested by him. The prisoner is to be promptly despatched to Mexico, to be tried by the Inquisition there. The commissary is warned not to sequestrate the property of the accused, but to see that it be administered by some capable person. Funds to provide for the prisoner's journey and his food, clothing, and other necessary expenses are, however, to be taken from his property--enough of it for this purpose being sold at public auction. None of these procedures shall apply to the Indians, who shall be left under the jurisdiction of the ordinary ecclesiastical courts; but cases involving Spaniards, mestizos, and mulattoes shall be tried by the Inquisition. Its edicts against certain books shall be solemnly read in public, for which procedure instructions are given. The commissary must visit the ships arriving at the ports, and examine their officers according to his instructions; but this applies only to Spanish ships which come from Spanish possessions. The especial object of such visitation is to confiscate any books condemned by the Inquisition which may be conveyed by the

ships. Doubtful cases are left to the commissary's discretion, since he is at so great a distance from Mexico.

Another valuable document is the decree which provides (May 5, 1583) for the establishment and conduct of a royal Audiencia (high court of justice) in Manila. Provision is made for a house wherein this court shall sit, and for its powers and the scope of its jurisdiction; and instructions are given for its course of procedure in the various matters which shall come before it. Certain duties outside their judiciary functions are prescribed for its members; among these are the oversight of the royal exchequer, and inspection of inns, apothecary shops, and weights and measures. The Audiencia shall despatch to the home government information regarding the resources of the islands, the condition of the people, their attitude toward idolatry, the instruction bestowed upon Indian slaves, etc. It shall fix the prices to be asked by merchants for their wares; keep a list of all the Spanish citizens, with record of the services and rewards of each; audit the municipal accounts of the city where the court is established; and allot lands to those who settle new towns. Its powers in regard to ecclesiastical cases of various kinds are carefully defined. Felipe orders that the papal bulls be proclaimed only in those towns where Spaniards have settled, and then in the Spanish language; and that the Indians shall not be compelled to hear the preaching of them, or to receive them. Specific directions are given for the manner in which the Audiencia shall audit the accounts of the royal treasury, and it may not expend the moneys therein; it shall also audit the accounts of estates in probate. Its members must especially watch over the welfare of the conquered Indians--punishing those who oppress them, and seeing that the natives receive religious instruction, in which the Audiencia and the bishop shall cooperate; and various specific directions are given for the protection of the Indians and their interests. The duties of the officials subordinate to the Audiencia--fiscal attorney, alguazils, clerks, jail-wardens, and others--are carefully prescribed, as also are those of advocates. The remainder of this document will be presented in _Vol_. VI.

The Editors May, 1903.

DOCUMENTS OF 1582

Letter to Felipe II. Gonzalo Ronquillo de Peñalosa; June 16. [2]Relacion de las Yslas Filipinas. Miguel de Loarca; [June]. Letter to Felipe II. Fray Domingo de Salazar; June 20. Letter to viceroy. Juan Baptista Roman; June 25. Letter to Felipe II. Gonzalo Ronquillo de Peñalosa; July 1. Papal decrees regarding the Dominicans. Gregory XIII; September 15 and October 20. Report on the offices saleable in the Philippines. [Unsigned; 1582?].

Sources: These documents are obtained from MSS. in the Archivo general de Indias, Sevilla--excepting the papal decrees, which are taken from Hernaez's _Colección de bulas_.

Translations: The first and third documents are translated by José M. and Clara M. Asensio; the second, by Alfonso de Salvio, of Harvard University, and Emma Helen Blair; the fourth, by Arthur B. Myrick, of Harvard University; the fifth, by James A.

Robertson; the sixth, by Rev. T. C. Middleton, O.S.A., of Villanova College; the seventh, by Alfonso de Salvio.

LETTER FROM PEÑALOSA TO FELIPE II

Royal Catholic Majesty:

There has now returned one of the ships by which I wrote in the year 80. Until now no word has been received of the other ship to Nueva España, in which I sent a duplicate report. Therefore in this letter I shall refer to some of the most essential points which I had written, and will give a report also of what is presented for the first time.

This country is advancing rapidly in the conversion of the natives, and they are quick to embrace baptism and the knowledge of our holy faith. If the harvest is not greater, it is for lack of workers. However, the repartimientos held by the Spaniards contain but few persons and yield small income; and thus they cannot assist in supplying all the instruction necessary, because of the cost of maintaining the religious. In this ship sail two religious of the order of St. Augustine, in order to beseech your Majesty to grant them grace in several necessary points. One is father Fray Juan Pimentel, in whom are found many excellent qualities. Among the things that they desire, I consider it very important that your Majesty order convents to be built in all the villages and cities. There should be a convent of six religious in each of the villages, and one of twelve in the cities. May your Majesty see to it that these be provided, from the alms which are customarily given to those who serve in the instruction of your Majesty's towns. It is very inconvenient that for lack of the means of support, the priests who are sent here and are occupied in instructing the Indians, are not able to carry on their work. If there were convents, none but the most approved persons would be sent to occupy them, as is necessary for the result that they strive to attain by their doctrine, lives, and examples.

It is very necessary that the friars who are sent to these islands come directly from España, and that they have not remained any length of time in Nueva España. As that land is so prosperous and wealthy, and the affairs and teaching of the Indians have attained such progress, they become much discouraged in this country, and try to return to New Spain or go elsewhere.

As a result of this feeling, there set out in April of this year the custodian of the order of St. Francis, with seven other friars of this city. They sailed without my approbation in a fragata which had been secretly made ready; and went to Macau, a town in China which is inhabited by Portuguese. The ships from India belonging to Portugal stop there for trade, as well as those going to Japan. It seemed to me that God would not sanction their departure, nor would your Majesty be pleased to have them leave this country, where there are so many native Christians and where religious are so needed, since they had been sent hither at your Majesty's expense, to discharge the obligations of the royal conscience; but without my order, and at such a time, they set out. We even yet do not know the attitude taken by your Majesty in regard to the affairs of Portugal. I am determined to send after them, stop them, and

prevent their voyage, although there have been and are now serious embarrassments in the way. If your Majesty does not approve of my plans, may it be commanded that everything be carefully weighed and considered. Three years ago four friars of the same order made that identical voyage without permission of the governor then here. It is not possible to check them if their superiors do not remedy the affair. If your Majesty should order that no Portuguese friars come hither, it would be best for your royal service.

The royal estate has advanced, and is now progressing by the means which I have provided for its increase. Although the rents and profits have been doubled since I came, their sum is but little, and does not amount to thirty thousand pesos annually. This is not sufficient for the salaries and expenses of the fleets and artillery, and therefore the treasury remains in debt, although not to such an extent as formerly. Everything possible is done to cut down expenses for your Majesty, and thus a great reduction has been made therein. This has been done with many supplies which are usually provided from Nueva España, since I am informed that many articles which are brought thence at great cost can be supplied here. It is a mistake for your Majesty to think that these islands can serve the royal estate with a considerable sum of money, for I can say that that will not be for many years yet. But it is right that your Majesty should value this land highly, on account of its proximity to China. Without doubt that is the finest country in the world, since it has so many people and so great wealth. This island of Luçon is not a hundred leagues distant from China, and ought to profit much from the endeavors made there by the vassals of your Majesty. It is considered just that war should be made against them; and this and their conquest depends only on the way in which God inclines the heart of your Majesty.

Until his divine Majesty is pleased to appoint that time, it would be a serious error to undertake a war with the people who could be sent from here. I have determined to occupy them in finishing the settlement of these islands. Accordingly, the village of Arevalo--on the island of Panay, fifty leagues from this district--has just been settled. The land is very fertile and the inhabitants are rich. They are almost all at peace, and the town is increasing in population because of the good and healthful character of that country.

This year I have sent people to settle the city of Segovia in a province called Cagayan, in this island, a hundred leagues from this city. It is the frontier of China, and much benefit is expected from its settlement--for it is the best-situated port, with a harbor of greater depth, for the ships which sail in the line from Nueva España and Peru; and it is so near to China that one can cross thence in three days. For the sake of the future I consider it very important to have that frontier settled. I sent for the settlement thereof Captain Juan Pablos de Carrion, with about a hundred picked men. They go in good order, well provided with artillery, vessels, ammunition, and with the approbation and blessing of the church. God will be served through them, and your Majesty as well.

In the years 80 and 81 there came to these islands some pirate ships from Japan, which is located about four hundred leagues from here. They did some injury to the

natives. This year, as warning was received that ten ships were being prepared to come to these islands, I have sent a fleet to the place where they are accustomed to come. This fleet is composed of six vessels, among them a ship and a galley well supplied with guns. I will send later advices of the outcome. The Japanese are the most warlike people in this part of the world. They have artillery and many arquebuses and lances. They use defensive armor for the body, made of iron, which they have owing to the subtlety of the Portuguese, who have displayed that trait to the injury of their own souls.

Although I have had no letter or advices of the state of affairs with Portugal, it seemed to me in the year 80, that we should live with great care and circumspection on account of what might happen, as the Portuguese are so quarrelsome, and especially if Don Antonio, the Prior of Crato, [3] should come here. In order to try to ascertain the state of affairs at Maluco and at Macau, the post held by the Portuguese in China, I have sent for this purpose to the islands of Maluco the sub-lieutenant Francisco de Dueñas with four companions. He is well-instructed as to what course to pursue. Likewise I sent to Macau Father Alonso Sanchez of the Society of the Name of Jesus, a person in whom are combined many admirable traits. [4] They are going to try to prepare and calm the people for the time when certain news will be had of the occurrences in Portugal. They will bring back a report of everything which has been learned there of affairs, even to the defeat of the Infante Don Antonio. I realize that it is necessary to be diligent in order to effect the desired ends, or that at least I shall be informed of the conditions there, and the forces with which the Portuguese are supplied.

The governors who have been here have used no system in making disbursements from the royal exchequer. They have followed the plan of spending as they saw fit and convenient to your Majesty's royal service. I have continued in the same way because in no other manner would it be possible to support it or make advancement. The expenses here are for the most part extraordinary, and of small sums, as the royal exchequer cannot allow more owing to its limited resources, as I have already said. For expenses of considerable sums, as those incurred in despatching fleets for our settlements, against pirates, and in paying the salaries of corregidors and alcaldes-mayor, the officials ask me to request an order from your Majesty. I have no other way of complying with the obligations of your royal service. Will your Majesty please to have an order sent me, in order that when I consider it convenient for your royal service, I may make payments from the royal treasury? It is not possible otherwise to maintain your royal service. The total expenditure is but slight, and is watched and regulated with all care.

There are several men, newly-arrived in this country, who are always writing advices and opinions in respect to the aforesaid matter and others. It would be best for the royal service that the decrees despatched therefor be sent submitted to the consideration of the governor. As we are so far away it is right, _ceteris paribus_, in order to insure progress, that confidence be placed in the governor.

By other letters, I have already given advices of the imposition of three per cent as duties on both importations and exportations of the merchandise of both Spaniards

and Chinese. A freight charge of twelve pesos per tonelada is also imposed. Considering their large profits, these duties are very moderate. For this reason, and because the instructions brought by the adelantado Legaspi decreed the collection of five per cent from the people of this country and seven from the merchants of Mexico, and as the collection at that rate cannot, in good conscience, be too long delayed, I have decided to enforce it. Your Majesty will provide according to the royal pleasure. In my opinion, the regulations made are moderate, just, and desirable for the royal service.

I also gave information that I had sent a ship to Piru in the year 81. From all that I hear, it is important for the progress of this kingdom that it trade and have commerce with the others; therefore I am sending this year another ship, for private individuals, to Panama. Consequently, I shall have ships sent to the principal kingdoms held by your Majesty in the Indias and the Southern Sea. The ship for Peru carried some artillery to be delivered to the viceroy, among them a piece of eighty-five quintals. I decided to do this, knowing the need there for heavy artillery, as the strait had to be fortified. [5] I think that the artillery arrived at an opportune season, for I have had a letter from the viceroy, Don Martin Enriques, in which he begs me to let him know if I could supply him with heavy artillery. I am only waiting for [the return of] the ship which I sent a year ago, in order to furnish him with as much as I can, for I consider that your Majesty will be thereby served.

The viceroy, Count de Coruña, [6] regrets that I despatched ships to a point outside of Nueva España. I can well believe that he has been persuaded to this view by the merchants interested in trade, as they do not wish the gains to be divided. Those who consider the subject without prejudice, however, will understand the great advantages which might follow thereby to this country, in that people will come hither and commerce be opened upon all sides.

The affairs of this country are improving to such an extent that the cargo of this ship bound for Nueva España is worth four hundred thousand pesos. It carries two thousand marcos of gold without taking into account the large quantity of goods intended for Panama.

In the past year, 81, there came from Nueva España three Theatins; and two priests, Father Antonio Sedeño [7] and Father Alonso Sanches, zealous servants of God and having great erudition. They are doing much good, and I consider them as excellent persons for this country, and think that it would be advantageous to send more.

In some places which need defense I am having forts built, and for them artillery is constantly being cast--although there is a lack of competent workmen, nor are there any in Nueva España. It would be well to have master-founders of cannon sent from España.

I am also having some galliots and fragatas built, so that I may be supplied with vessels for both present and future emergencies.

This kingdom was thrown into great confusion by a decree in which your Majesty ordered the liberation of all Indian slaves held by Spaniards. This affair has caused

me much anxiety; for, if it should be immediately complied with, and put into execution without allowing any term of grace, this kingdom would be placed in a sad state for many good and very forcible reasons. Of these, and of the measures which I took in regard to this, your Majesty will be informed at greater length. Accordingly, I refer you to that report, and beseech your Majesty that the decree be greatly amended, since this is a very important matter.

By the death of Salvador de Aldave, who served as treasurer of your royal estate, in place of the master-of-camp, Guido de Laveçares (the proprietary holder, who died), I appointed to the said office Don Antonio Jufre, my step-son. He came with me to serve your Majesty in these islands, and I consider that he possesses the necessary qualifications for the requirements of the office. He has fulfilled its duties thus far; and now he has gone to the settlement of the city of Segovia, as treasurer and purveyor of the fleet. I beseech your Majesty to have the goodness to ratify his appointment to said office.

In my instructions your Majesty granted me the favor and permission to obtain a repartimiento of Indians from each of the new settlements--to be in all three repartimientos. As, to enjoy this favor, I must live for a longer time than is assured by my poor state of health, I beg your Majesty kindly to allow me to take one of the repartimientos from one of the towns which is already discovered and settled, and which is at present unoccupied; this is only that I may serve your Majesty with more strength. May our Lord guard your Catholic royal Majesty with increase of kingdoms and seignories, as we your servants desire. Manila, June 16, 1582. Royal Catholic Majesty, the most humble servant of your Majesty, who kisses the royal feet and hands.

Don Gonzalo Ronquillo de Peñalosa

RELACION DE LAS YSLAS FILIPINAS POR MIGUEL DE LOARCA

Tratado de las yslas Philipinas en qe se Contiene todas las yslas y poblaçones qe estan Reduçidas Al seruiçio de la magd Real del Rey Don phelippe nro señor y las poblaçones qe están fundadas de españoles y la manera del gouierno de Españoles y naturales con Algunas condiçiones de los yndios y moros destas yslas.

Aunqe la prinçipal poblaçon de españoles, En estas yslas es la çiudad de manila y la ysla de luçon donde ella esta es la mejor y mas Rica de todo lo descubierto y por esta causa Ubieramos de tratar y començar a escrivir della pero por aver sido la de çubu la primera qe se pobló y que de Allí se a salido a conquistar todo lo demas y tambien por auerme Va Sa dado tam breue tiempo para haçer esta Relaçion y tenerla yo mas de la ysla de çubu y de las demas sus comarcanas que llaman de los pintados, començare della pa que se Prosiga despues mas largamte en lo que toca A esta ysla De luçon y sus comarcanas que por ser moros difieren algo en las condiçiones y viuienda y lengua.--No se puede negar a Ver faltado curiosidad en los que A esta tierra an pasado pues eclesiastico, ni secular an tomado la mano para contar lo que a acaeçido en la conquista desta tierra y Ansi aunque en mexico El padre fray Alonso de

Buyça Diçen tiene hecho vn gran Volumen sobre ello tengolo por dudoso porqe yo e visto cartas suyas qe Vinieron el Año pasado en este navio sanct martin, por las quales enbia a pedir certidumbre de cosas acaeçidas de dies y seys Años a esta pte porqe esta dudoso de las Relaçiones que de Aca le an enbiado y si hubiera escrito alguno de los estantes en este Reyno, diera de todo Verdadera notiçia para los tiempos venideros y agora con muçha dificultad se podra poner en orden y sera menester muçho tiempo y por y esto y la breuedad no tratare deste particular sino cumpliendo lo que su magd mda a V. sa por su Real çedula añidiendo Algunas costumbres de los naturales pa que Pues son basallos de su magd sepa de la barbaridad de que los a sacado y la poliçia en qe agora Viuen con su buen gouierno.--

Capo Primo

De la Ysla de Çubu y de las qe estan en su Juridiçion

ysla de Çubu. [8] La ysla De çubu ques la primera donde miguel lopes de l[eg]azpi poblo tiene de box y çircuyto casi çien leguas, y de longitud casi çinquenta porques muy angosta por las dos puntas tendrá por lo mas ancho Veynte leguas la vna caveça della que se llama burula qe esta a la uanda del norte la otra punta qe llamamos las Cabeças; que los naturales llaman sanbuan esta a la vanda del sur por que esta ysla corre casi norte sur esto se entiende, maren fuera porqe costa à costa ay ensenadas qe corren en diferentes Rumbos esto es por la banda, donde esta la poblaçon de çubu, por la otra vanda ques la vanda del hueste corre casi les nordeste sur sudueste, tiene toda esta ysla como tres mil y quinientos yndios en diferentes poblaçones por la mayor parte pequeñas, que por eso no pongo sino algunas qe son las principales qe las de mas son pequeñas de A oçho o a dies casas.

Jaro. Jaro es de un encomendero qe tiene encomienda en otra parte tiene quios yndios--

Daraguete. Daraguete son demasias de encomienda tiene duçientos yndios--

Peñol. el peñol es demasias de encomienda tiene duçientos yndios--

Jaro. Jaro es demasias de encomienda tiene duçientos yndios--

temanduc temanduqe es demasia de encomienda, tiene quinientos yndios,--

temanduc. En la mesma prouinçia de temanduqe tiene otro encomendero setenta yndios, es demasia de encomiendas--

barile El pueblo de barile es otra encomienda, tiene quatroçientos yndios, es demasia de encomienda.--

burungan El pueblo de burungan terna setenta yndios, es demasia de encomienda--

candaya. La prouinçia de candaya tiene treçientos y çinquenta yndios, son de dos encomenderos, es demasia de encomienda.--

No tiene ninguna encomienda prinçipal en toda ella ningun español aunque son catorçe los que tienen parte en ella qe por ser veçinos de la Villa de çubu se les dió a cada Uno dos o tres puebleçuelos para seruiçio y gallinas y otras cosas de sustento,

por tener las encomiendas prinçipales lejos a treynta, y a quarenta leguas, mas y menos tiene aliende de los diçhos naturales como dos tiros de Arcabuz De la uilla de los españoles qe se llama la villa del ssantisimo nombre de Jesus porqe alli se allo vn niño Jesus del tiempo de magallanes qe los yndios tenian en beneraçion, vn pueblo de los naturales ques de la Rel Corona qe tiene como oçhoçientos yndios los quales por el adelantado miguel lopes de legazpi fueron Reseruados de tributo por auer sido siempre en fauor de los españoles y auer ayudado a ganar pte de las otras yslas. _notables de la ysla de çubu_ auia en la poblaçon de los españoles treynta y tantos encomenderos. Ay de ordinario çinquenta o sesenta españoles con los Vecinos y soldados qe Acuden alli, _alld mayor en çubu_. Ay Vna leal de [= Vn alcalde] mayor proveido por los gouernadores destas yslas con treçientos pesos de salario pagados de penas de Camara y no Alcançando en la Real haçienda el Alcalde mayor asta agora no a proueydo ningun theniente Ay seis Regidores los quales asta agora an sido cadañeros y Vn alguaçil mayor proveydo por los gouernadores que an sido y esta a beneplaçito del goueror quitarle y ponerle es ofiçio qe no tiene prouechos ninguno y asi se dá a un encomendero hombre prinçipal, ay dos Alcaldes hordinarios y Vn escriuano de cabildo y publico que si no fuesen encomenderos de los derechos, no podrian sustentarse por no auer en aquella villa ningun comerçio por estar a trasmano, tiene El mejor puesto qe se a allado en estas yslas y por esso poblo alli miguel lopes de legazpi el qual fundo la diçha villa año de sesenta y quatro podria ser qe con el trato del maluco fuese a mas porqe no siendo de aqui no tiene otra pte de donde le venga ninguna contrataçion porque su comarca es pobre porqe en todo su destricto aunqe es mucho no Ay minas de oro ni lauaderos sino es in la ysla de mindanao como se dira Adelante y eso es poco en esta ysla de çubu se coje poco aRoZ coje se Vorona y millo y tiene poco Algodon a casi ninguno porque la Ropa que vsan para su vestir. es sacada de vnos platanos y dello haçen vnas mantas como bocaçi de colores qe llaman los naturales medrinaqe y en estas yslas la que tiene aRoz y Algodon, es tierra Rica por lo que vale en la nueva españa el algodon y las mantas, la condiçion de la gte dire despues de todos los pintados en general porqe todos son de vna manera tienen tambien gallinas y puercos y algunas cabras frisoles y vnas Rayçes como batatas de sancto domingo qe llaman camotes en esta ysla y en todas las demas el prinçipal mantenimiento despues del aRoz es pescado porqe en todas lo Ay en abundançia y bueno--[En esta ysla de çubu aun qe en todas las yslas que se an descubierto en estas partes ay benados en esta no ay ninguno y si lo traen de fuera y lo hechan en ella se muere luego.] [9]--

Ysla De matan Al sur de la poblaçon de çubu como dos tiros de arcabuz esta la ysla de matan, ques donde mataron a magallanes ques la que haçe el puerto de çubu, y tiene como quatro leguas de çircuyto y media legua de Ançho, ay en ella como treçientos yndios en quatro o çinco pueblos pequeños es proprios de la villa--

ysla de Vohol. dela Otra vanda desta ysla de matan mas al sur esta la ysla de Vohol como ocho leguas apartada de la poblaçon de çubu qe tiene como dos mil yndios es de encomienda los naturales desta ysla. son muy aparentados, con los çebuanes y son casi todos vnos, los naturales della, qe Viuen en las playas son por la mayor parte grandes pescadores, son grandes bogadores y ansi solian andar antes qe viniesen, los españoles a Robar en corço en sus nauios y son contratantes, solia auer

en esta ysla Vna gran poblaçon poco tiempo antes qe viniesen a estas yslas los españoles--los malucos la saquearon, y toda la mayor pte de la gente se repartio por las demas yslas donde agora auitan las poblaçones de la sierra adentro son pequeñas y pobres y aun no del todo sujetos, ay en esta ysla muçha abundançia de caça de Venados y puercos, y en muchas ysletas qe tiene alderredor de si despobladas a donde ay tambien grandes pesquerias tendra de çircuyto como quarento leguas y oçho a diez de ançho--

Yslas de negros. Por la vanda del hueste de la ysla de çubu esta otra ysla que los españoles llaman ysla de negros porqe en las serranias ay algunos negros, los yndios la nombran por diferentes nombres como es nayon y ma maylan y otros nombres conforme a los pueblos qe tiene en cada pte della terna como seys o siete mil yndios. la cantidad de los negros no se sabe porqe no estan de paz, por la pte que esta hacia çubu es poco poblada, porqe solo tiene vna poblaçon, buena que es el Rio de tanay y la mitad de los yndios de Aquel Rio son los yndios qe fueron de bohol, por la vanda del sur qe confina con la ysla de panay y villa de Areualo es bien poblada porqe estan alli los Rios de ylo ynabagan bago y carobcop tecgaguan qe son fertiles de comida como es aRoz puercos y gallinas y muçho medrinaque aunqe no tienen algodon la pte qe confina con la ysla de çubu esta apartada de la diçha ysla como dos leguas y media y por la pte que confina, qe confina con la ysla de panay y villa de areualo tiene otro tanto porqe estas yslas haçe dos estreçhos el vno haçe con la ysla de zubu y el otro con la ysla de panay, la pte qe cae A la ysla de çubu ay tres encomenderos por la parte de la ysla de panay y villa de areualo ay otros oçho encomenderos que si no son los dos todos los demas tienen encomiendas en otra pte terna esta ysla nouenta leguas de box y de Ançho como doçe o treçe leguas no tiene su magd en esta ysla ningunos pueblos--

ysla de fuegos Çerca del estreçho qe haçe la ysla de negros y la ysla de çubu esta vna ysla qe llamamos nosotros ysla de fuegos qe terna diez leguas de box terna como duçientos yndios esta es demasia de vn encomendero cojese en ella cantidad de çera

ysla de camotes. Por la pte del leste de la ysla de çubu esten dos ysletas pequeñas qe ternan de box cada vna çinco leguas que llaman ysletas de camotes ternan entrambas como treçientos yndios son proprios de la çiudad de çubu es gte pobre aunqe tienen alguna çera, y muçho Pescado son las poblaçones pequeñas de siete y a ocho casas estan apartadas de la ysla de çubu como tres leguas y siete de la çiudad--

ysla de baybay Corriendo mas haçia la buelta del leste como otras tres leguas esta la ysla qe llaman de baybay y por otro nombre leyte ques ysla grande y muy abundante de comida aunqe la Ropa es de medrinaqe es muy poblada terna como catorçe o quinçe mil yndios y de los diez mil dellos se cobran tributos porqe a sido gte mala de domeñar tiene doçe encomenderos no tiene su magd en ella ningunos yndios, terna esta ysla como oçhenta leguas de box y de Ançho quinçe o diez y seys, las Poblaçones y Rios prinçipales son los siguintes Vaybay, yodmuc, leyte, cauigava, barugo, maraguincay palos, abuyo, dulaque y longos, bito, cabalian, calamocan, Tugud no ay en esta ysla minas ni lauaderos ni se coje otra Ropa sino de medriñaque que como tengo diçho es como bocaçi qe se haçe de vnos platanos çimarrones--

ysla de panaon Entre esta ysla y la ysla de mindanao qe corre la vna con la otra norte sur esta la ysla de panaon, terna oçho leguas De çircuyto y tres de ançho es gente pobre abra como çien hombres son de vn encomendero--

ysla de siargao--Mas adelante como doçe leguas de la ysla de panaon aRimada a la ysla de mindanao esta la ysla de siargao la qual terna como quinçe leguas de box y seys de ançho terna como quatroçientros hombres, las poblaçones están en vnas [10] [poblaçones: _crossed out in MS_.] esteros asperos y de mala condicion es de un encomendero, es gente pobre por ser aragana porqe tiene muçhas ysletas pequeñas aldeRedor de si en las quales ay muchos labaderos, De oro y minas, diçen qe no las labrauan porqe los cosarios qe sabiendo que estauan alli benefiçiandolas le venian alli a cautiuar, pero tanpoco lo haçen agora qe estan seguros por donde se puede ynferir que lo haçen de flojedad--

ysla de maçagua A la vanda del hueste de la ysla de baybay esta vna ysleta pequeña que se llama maçagua de quien tantos milagros contaua el padre fray Andres de Urbaneta qe terna como quatro leguas de box y vna de ançho, tiene como sesenta hombres es demasia de vn encomendero es gente pobre y miserable no tiene sino sal y pescado--

ysla de maripipe. A la otra vanda del nordeste de la ysla de baybay esta la ysla que llaman de maripipe ques tierra muy alta y por ser muy fragosa es esteril, terna como siete leguas de box y dos y media de ançho terna como çien yndios.

ysla de limancaguayan mas çerca del estreçho y cavo del espu sancto esta otra ysla apartada desta como tres leguas que se llama limancaguayan que terna otro tanto box como maripipe y otros çien hombres es tierra qe se cojen en ella aRoz y medriñaque, son estas dos yslas de vn encomendero y la yslas de fuegos que diximos Atrás.--

ysla de masbate mas al nor nordeste desta ysla De leyte esta la ysla de masbate qe terna como treynta leguas de box y seys de ançho, tiene como quinientos yndios es de vn encomendero aqui ay minas de oro de donde se sacaua cantidad porque los naturales de camarines venian a labrar alli las minas anse absentado de Alli por causa de los españoles y asi no se benefician, e tomado por çentro de todas estas yslas que E diçho la ysla de leyte porque son todas ellas comarcanas a ella.--

ysla de bantayan A la vanda del norte de a ysla de çubu apartada della como dos leguas esta la ysla de bantayan que terna oçho leguas de box y dos de ançho tiene çerca de mil yndios y son de vn encomendero [y: _crossed out in MS._] ella y la ysla de Vohol aRiba diçho, la gente della es buena gente tratante tienen grande pesquerias que es ysla de heçha muçhos baxos tiene pesqueria de perlas aunqe poca cosa no se coje en ella sino a Millo y borona y no se coje ningun arroz por ques tierra toda de mal pais aunque llana algunos de los naturales desta ysla haçen sus sementeras en la ysla de çubu, como digo esta dos leguas de trauesia tiene muy buenos palmares y lo mismo se a de entender de todas las yslas de los pintados porque todas lellas abundan en gran cantidad de palmas--

Ysla de capul Es la ysla que haçe estreçho con la ysla de luçon por donde entran los nauios qe vienen de españa, tiene como doçe leguas de box quatro de ançho tiene

como quinientos yndios, es de vn encomendero es gente pobre cogen aRoz y medriñaque--

Ysla de viri. mas al llegar haçia el cauo del espu santo esta [y: _crossed out in MS._] la ysla De biri en el proprio estrecho, terna como çinco leguas de box y dos de ançho, tiene como çien hombres, esta y maçagua son de vn encomendero--

ysla de ybabao Al sueste de la ysla de baybay esta la ysla de ybabao qe por otro nombre llaman la ysla de candaya qe terna siento y diez leguas de box no se a andado por ella por tierra y ansi no se sabe lo que tiene de ançho diçen que los naturales que tiene tanta gente como la ysla de baybay y que es fertil y abundante de comida, los qe los españoles avran descubierto seran como çinco mil yndios en las poblaçones siguientes

El pueblo de daguisan El Rio de ylaga El Rio de yba El Rio de basey los pueblos de hubun los pueblos de balingigua los pueblos de guiguan El Rio de sicaualo El Rio de bolongan El Rio de sibato El pueblo de tinagun El Rio de caluiga los esteros de vlaya El Rio de paguntan El Rio de napundan El Rio de bolo El Rio de pono El Rio de gamay los pueblos de panpan El Rio de catubi El Rio de Volonto El Rio de yuatan El Rio de pagaguahan El Pueblo de baranas El pueblo de arasan

Yslas de bantac. Junto a la ysla de ybabao por la vanda del leste ques el golfo de nueua españa estan dos yslas qe llaman bantac qe tienen poca gente a lo qe diçen los yndios no se a entrado en ellas--

Ysla verde En esta misma costa frontera de los pueblos de guiguan qe estan a la vanda del golfo esta la ysla verde terna como oçho leguas de çircuyto y quatro de Ançho tiene como çiento y çinquenta yndios

Ysla de canaguan De la otra vanda del hueste frontero del Rio de tinahon esta la ysla de canaguan qe terna como quatro leguas de box y vna de Ançho tiene como çien hombres--

Ysla de Caguayan La ysla de caguayan esta casi aRimada a la ysla de ybabao por la parte del hueste tiene tres leguas de box y vna de ançho tiene duçientos hombres--

Ysla de batac. la ysla de batac questa junto à esta tierra, tiene çien hombres, todas estas yslas qe E diçho son de los encomenderos de çubu y juridiçion de la çiudad desuerte qe tiene de çircuyto la çiudad de çubu de juridiçion contando cada ysla por si y lo qe esta descubierto de la ysla de mindanao seysçientas y sesenta y siete leguas.--

Ysla de mindanao La ysla de mindanao es muy grande qe se entiende ques la mas grande qe ay en todo lo qe esta descubierto asta àgora aunqe en ella Ay poca gente de paz porqe no ay sino es alguna poca y esa es en la playa esta descubierto della que los españoles an andado, como çiento y çinquenta leguas, desde el Rio de catel asta el Rio prinçipal que llaman mindanao, desde la çiudad de çubu a la tierra mas çercana qe es dapitan, se corre el sueste y es dapitan puerto y esta enmedic de lo desCubierto de la ysla solia estar poblado àgora tiene poca gente cojese aRoz y oro porqe en toda la ysla ay labaderos y minas Pero es tan poco qe no luçe, desde Alli a la punta de la canela ay mas de treynta Rios poblados

notables de la ysla de mindanao pero la gente de la playa es muy Poca y esos son lutaos que es vn genero de homb es en esta tierra, qe no tienen otra manera de viuir sino es Andar a pescar y en sus nauios traen sus mugeres y perros y gatos y toda su hacienda, El pescado que toman Rescatan en las serranias,

casas en arboles de las serranias de mindanao tienen estas serranos desta ysla sus casas en vnos arboles los quales son tan grandes qe auitan en vna casaençina de vn arbol quarenta y çinquenta hombres Casados con sus familias y tienenlo como fuerte para defender se de los enemigos por lo que se a Visto abundan en gran cantidad de cora, es la tierra muy aspera y montuosa tienen mantas de medriñaqe--

EN la punta de cauite qe es en esta ysla es donde Ay la cantidad de canela, estara quarenta leguas de dapitan, esta es la pte qe corre hagia el maluco.--

Isla de taguima Cerca desta punta de la canela esta la ysla de taguima qe terna de box como catçore leguas y de Ançho quatro y tiene como quios yndios es de dos enComenderos. ay en esta ysla gran cantidad de gatos de Algalia por aqui pasan las naos de los portugueses qe Van desde malaca a maluco por el clauo, y anles heçho los naturales desta ysla muçho daño, y muçhas veçes pasando por alli contrayçiones. En toda la ysla de mindanao ay gatos de algalia pero gente Pobre de comida y mantas--

Ysla de soloc La ysla de soloc esta desuiada desta punta de la canela Veynte leguas qe son moros de burney los que la poseen, descubriose quando El Rio de burney terna como veynte y quatro leguas de çircuyto diçen qe tiene poco mas de mil hombres, diçen que ay en ella elefantes y buena pesqueria de perlas. es un encomendero de los de çubu es juridiçion de aquella ciudad.--

Prosigue la ysla de mindanao desde dapitan Volviendo la buelta del nordeste asta llegar al Rio de butuan es todo de vn encomendero sino son los pueblos de gonpot y cagayan que por ser pueblos qe Ay canela estan en cabeça de su magd y esta es poca gte qe no tiene duçientos hombres Deste proprio encomendero es desde dapitan asta çerca de la punta de la canela que tiene mas de sesenta leguas de encomienda en esta ysla de mindanao y es suya la ysla de soloc aRiua diçha y tiene otra encomienda en la ysla de çubu, y con todo esto es pobre [y muere de la hámbre: _crossed out in MS_.] por lo qual no ay qe heçar mano de todo lo que esta descubierto en la ysla de mindanao.--

Rios. paniguian ydac matanda ytanda tago ono beslin. qe todo ello terna como tres mil hombres pero esta la mayor pte de guerra. El Rio de butuan ques de guido de la ueçaris terna como seysçientos yndios, qe estan en esta ysla, y mas adelante estan los rrios de surigao y parasao y otros qe todo es pobre cosa aunque ay labaderos en ellos de oro como son los Rio, paniguian, ydac, matanda ytanda, tago, ono, beslin qe todo ella terna como tres mil hombres pero esta la mayor pte de guerra.--

El Rio prinçipal de mindanao ques el prinçipal de la ysla de donde tomo nombre la ysla de mindanao se a ydo dos Veçes a descubrir y ase traydo poca luz del anse Visto seys o siete Pueblos. El vno y prinçipal a donde auita el Reyeçillo y otro qe se llaman tanpacan y boayen y Valet y otros qe se aura Visto como poblaçon de tres mill hombres poco mas aunqe se tiene notiçia de muçha gte--

Ysla de camaniguin. EN frente del Rio de butuan Viniendo haçia çubu entre vohol y la ysla de mindanao esta la ysla de camaniguin terna como diez leguas de box. tiene como çien yndios. esta desuiada la vsla de mindanao dos leguas, es tierra muy alta y aspera cojese en ella alguna çera es demasia de vn encomendero de la çiudad de çubu--

Capo 2

_qe_ Trata de la Ysla de Panay y de su Juridiçion--

Ysla de panay La ysla de panay qe esta desuiada de la ysla de gubu por lo mas çercano doçe leguas y de la ysla de negros dos leguas y media la ysla mas fertil y abundante de todas las descubiertas sacado la ysla de luçon porques muy fertil y abundante y de aRoz y puercos y gallinas çera y miel, y gran cantidad de algodon y medriñaque las poblaçones estan muy juntas y todas ellas paçificas y façiles a la conversion es tierra sana y de buenos mantenimientos desuerte que los españoles qe en otras partes de la ysla enferman Van alli a conualeçer y cobrar salud los naturales della es gente muy sana y limpia porque aunque la ysla de çubu es tanbien sana y de buena constelaçion, la gente della por la mayor parte anda sienpre muy sarnosa, y con bubas, y en esta ysla de panay, diçen los naturales qe jamás ningun natural della tubo bubas, asta qe los boholanes como dixe aRiba qe a causa de los malucos despoblaron a vohol vinieron a poblar a ella qe las an pegado à algunos naturales. por estas causas El gouernador don gonçalo Ronquillo fundo en ella la Villa de areualo a la vanda del sur porqe esta ysla corre casi norte sur, y aquella Vanda ay la mayor cantidad, de gente y juntas las poblaçones a la diçha Villa y la mayor grosedad de la tierra, Ay en ella quinçe encomenderos que teman entre todos çerca de Veynte mil yndios todos de paz que pagan su tributo, y por estar çercana la vanda de ysla de negros qe Confina con ella el diçno gouérnador le dio por juridiçion los Rios de ylo, ynabagan, pago, ycarobcop ytecgaguan qe como aRiba queda diçho es lo mejor de la ysla de negros y ansi aCuden a haçer alli sus casas y es El pueblo mas basteçido que Ay en las yslas. desta ysla de panay se saca agora para la çiudad de manila y otras partes gran cantidad de aRoz y carne,

_alld mayor de areualo con 300 po_s de salarjo. ay en la villa desta ysla Vn alcalde mayor, quatro regidores, vn alguaçil mayor, dos alcaldes hordinarios y Vn escriuano publico y del cauildo los Regidores son perpetuos el alguaçil mayor por el tiempo qe lo fuere el alcalde mayor el escriuano como es poblacon nueua y ay pocos pleytos no tiene proueçhos sino es de los pleytos de los yndios porqe sale a visitar fuera con el alcalde mayor y de otras comisiones qe se le cometen a la justiçia tiene la villa de juridiçion tres leguas en çircuyto de la diçha villa no tiene proprios.--las principales poblaçones desta ysla son las siguientes

El pueblo de oton junto a la villa El pueblo de ticbaguan-- El Rio de jaro.-- El Rio de yvahay-- El Rio de ajuy.-- El Rio de harahut El Rio de panay El Rio de aclan El Pueblo de antiqe El Pueblo de bugason

y otros de menos Cantidad, tiene El alcalde mayor de salario treçientos pesos librados en las penas de camara y si no alcançare en la Real caxa cobra por comission del goueror y de los ofiçiales Reales los tributos qe perteneçen a su magd en aquella

ysla. qe seran poco mas de dos mil hombres, en el Rio de haraut y Rio de ajuy y Rio de panay y los quintos del oro que se labra ques casi nada esta esta uilla, apartada de la çiudad del ssmo nome de jhs. qe esta en la ysla de çubu çerca de çinquenta leguas y por la abundançia de madera y comida a auido aqui casi siempre astillero en esta ysla y lo ay àgora a donde esta poblada agora la uilla de areualo de galeras y fragatas y aqui se hiço tambien la nao visaya, tiene de box esta ysla çien, leguas.

Ysla de ymaraes Desuida como dos tiros de arcabuz desta ysla de panay esta la ysla de ymaraes qe terna de Box como doçe leguas, terna quinientos yndios es de vn de los encomenderos de la ysla de panay es abundante de aRoz algodon miel y çera y muçha caça y esta es muy hordinario en todas las yslas auer abundançia dello tiene muçha madera y della se saca para los astilleros y para labrar todas las casas de la comarca, entra en la jurisdiçion de la villa de areualo aunqe tiene tanto çircuyto.

Ysla de cuyo frontero de antiqe ques en la ysla de panay a la vanda del hueste al mesmo Rumbo desuiada como diez y seys leguas esta la ysla de cuyo ques de vno de los encomenderos de la ysla de panay, terna oçhoçientos hombres, tienen cantidad de aRoZ es el grano colorado porque la tierra lo es Ansi Cria se gran cantidad de Cabras ques la tierra aparejada Para ello, tienen grandes Pesquerias cojen se algunas perlas, labranse alli muy buenas mantas de algodon aunque El algodon no se coje alli solian acudir alli muçhos nauios de burney al Rescate del bruscay que son vnos çiertos caracolillos que heçha la mar ques moneda en sian como El cacao en la nueva españa es de la juridiçion de areualo nunca a entrado en ella ninguna justa tiene esta ysla doçe leguas de box.

ysletas de lalutaya Cercanas a esta ysla estan çinco [_sic_] ysletillas qe se llaman la lutaya, dehet bisucay, cadnuyan, tacaguayan, lubit tinotoan, es gente muy pobre son esclauos de los prinçipales de la ysla de Cuyo aura poco mas de çien hombres en todas estas ysletas viuen de haçer sal y petates qe son estera por ser gte miserable y en esto pagan su tributo--terna seys leguas de box esta ysla.

Ysla de osigan Ala vanda del nordeste De la ysla de panay desbiada como tres leguas de lo vltimo de la ysla esta la ysla de osigan qe nosotros llamamos ysla de tablas qe terna diez y oçho leguas de box ques tierra muy montuosa cojese en ella çera aura como duçientos y çinquenta yndios en poblaçones pequeñas--

Ysla de çibuyan Mas adelante como seys leguas desta ysla esta la ysla de çibuyan terna como doçe leguas de box y seys de ançho terna como treçientos yndios y estas dos son de vno de los encomenderos de la ysla de panay en esta ysla ay muy buenas minas de oro pero labranlas mal por ser todos los yndios pintados muy araganes son dejuridiçion de areualo--_Ysla de buracay_ Como dos tiros de arcabuz de la caueça De la ysla de panay qe esta a la Vanda del norte esta la ysla de buracay. tiene como tres leguas de box y media de ançho tiene çien yndios no se coje alli aRoz sino tienen granjeria de algunas cabras--_ysla de anbil_ Media legua desta ysla esta otra qe se llama Anbil tiene como tres leguas de box y Vna de ançho y tiene çinquenta yndios son casi todos carpinteros de nauios--

ysla de simara Desuiada como dos leguas de la ysla de tablas qe se llaman osigan esta la ysla de simara qe terna quatro leguas de box y dos de Ançho tiene çiento y

çinquenta hombres es gente tratante tiene cabras y por esto se llama ysla de cabras esta desuiada de la ysla de panay como doçe leguas.--

ysla de siVaay Desta punta de la ysla de panay qe esta a la Vanda del norte corriendo al hueste a quatro leguas esta la ysla de siVaay qe tiene çinco leguas de box y legua y media de Ançho tiene setente yndios--_ysla de similara_. Mas adelante como tres leguas aRimada a la ysla de mindoro esta la ysla De similara qe tiene nouenta yndios. tiene de box quatro leguas y de Ançho vna legua, toda la gente destas ysletas es gente qe tiene poca coseçha haçen muçha sal y son tratantes--

ysla de batbatan Mas abajo desta punta de panay haçia El sur desuiada como legua y media de la diçha ysla de panay esta la ysla de bacbatan que tiene oçhenta yndios, tiene de box como tres leguas y Vna de Ançho haçen sus sementeras y cojen la çera en la ysla de panay, todas estas yslas Buracay, anbil, simara siuaay similara bacbatan son de vn encomendero, de los de la ysla de panay--

ysla de banton Como legua y media de la ysla de simara o de cabras esta la ysla de banton qe terna como oçho leguas de box y tres de Ançho tiene duçientos yndios es tierra muy aspera, ay muçhos palmares y crianse muçhas batatas y ñames cojen çera son tratantes--

ysla de donblon La ysla de donblon esta entre çibuyan E ysla de tablas tiene siete leguas de çircuyto y tres de Ançho tiene como duçientos y çinquenta yndios. es tierra de muçha çera esta ysla de donblor y la de banton son de vno de los encomenderos de la ysla de panay y su juridiçion de la villa de areualo, la ysla de ymaras y la ysla de cuyo, la ysla de bacbatan, la ysla De sivahi, la ysla de similara, la ysla de buracay, la de anbil, la de simara, la de osaygan, la de banton, la de donblon, la de çibuyan y mas lo prinçipal de la ysla de negros qe desde la punta de sita-rauaan asta siparay que son mas de veynte leguas ques lo poblado de aquella ysla De negros. La ysla de banton qe es lo mas apartado de la juridiçion estara como çinquenta y çinco o çincuenta y seys leguas des-Viada de la villa de areualo--

Ysla de Cagaian DE la villa de areualo corriendo la buelta del sur sudueste qe es yr mas en fuera porqe para alli no ay otras yslas sino son las que llaman de cagayan qe son dos ysletas bajas desuiadas de la ysla de panay como quinçe leguas son çercadas De muçhos aRaçifes bajos que si no se sabe bien la entrada ques angosta corren Riesgos los nauios que van A Ellas. estas yslas estan Pobladas qe ternan como quatro çientos hombres qe todos ellos son muy exçelentes offiçiales de haçer nauios diçen los naturales dellos qe Algunos años a qe Por temor de los cosarios poblaron aquellas yslas por estar fuertes con los Arraçifes y qe despues aca se an querido Voluer a Viuir a la ysla De panay y morianseles gran cantidad de las mugeres y Viendo esto como son agoreros, voluieronse otra Vez a las yslas de cagayan y de Alli salen cada Año y se Reparten por todas las a haçer nauios estos yndios cagayanes an heçho las naos qe se an heçho en estas yslas de su magd y las galeros y galeotas y fragatas estos Ayudan a Remendar los nauios y adreçarlos y Ansi es la gente mas ymportante qe Ay en estas yslas por este efecto el Adelantado miguel lopes de legazpi las dió por demasía a los encomenderos de la ysla de negros despues Aca por pareçer cosa conuiniente se an puesto en cabeça de su magd de suerte qe tiene de juridiçion

la villa de areualo cerca de duçientas y cinquentá leguas.

Capo 3o

_Qe_ Trata de la ysla de luçon

ysla de luçon La ysla e luçon as la mas prinçipal ysla de todo lo descubierto porques poblada de muçha gte es muy abasteçida de aRoz y muçhas minas donde se a sacado gran cantidad de oro espeçial de la prouinçia de los ylocos. esta Repartida EN tres prouinçias digo la prinçipal della la prinçipal es donde esta fundada la çiudad de manilla cabeça deste Reyno a donde Reside El gouernador, en ella ay el mayor concurso de españoles qe Ay en todas las yslas, legua y media de la çiudad esta El puerto de cauite donde Vienen las naos qe vienen de nueua españa en el Rio desta çiudad entran los nauios qe vienen de çhina qe de hordinario aCuden muçhos al Rescate tiene aqui su magd vn fuerte con vn alcayde tres offiçiales Reales proueydos por su magd vn sargento mayor y Vn alferez mayor proueydos por su magd vn alguaçil mayor de corte vn Alguaçil mayor de la çiudad vn secretario de gouernaçion, escriuano de Cauildo, quatro escriuanos publicos. Reside En esta çiudad El obpo de todas las yslas qe tiene en ella su silla y la yglesia catedral. Ay siete Regidores En esta çiudad los tres son proprietarios proueydos por su magd qe son El Capitan Juan de Moron don luis enrriquez, po de herrera, los quatro son Proueydos por El goueror qe son El capitan grauiel de Ribera, El capitan Joan maldonado el capitan Bergara El capitan Ro aluarez. Ay vn monasterio de frayles augustinos y otro de frayles descalços, y vna casa de la compañia.

Esta esta çiudad fundada en medio de vna ensenada grande y terna de Box çerca de Veynte leguas, toda esta ensenada es muy fertil y Abundante, esta poblada de moros yndustriados de los de burney. El Rio aRiua desta çiudad como çinco leguas tiene vna laguna de Agua dulçe qe terna de box mas de Veynte leguas tierra abundante de aRoz y algodon Ricos de oro digo qe lo tienen en sus joyas qe Por aqui no ay minas desta generaçion de moros estan Poblados hasta los pueblos de las batangas qe Adelante se dira la cantidad de gte qe son, destos moros esta Poblada la ysla de mindoro y la de luban y no se Allan en otra pte de las yslas porqe los de la prouja de Camarines qe es la cabeça desta ysla qe esta a la Vanda deL leste que haçe estreçho por donde entran las naos qe Vienen de nueua españa es gente qe son casi Pintados y aun los de la otra caueça desta ysla cae A la vanda del sueste haçia los japones tanbien son casi semejantes a los pintados aunqe No se pintan como ellos y traen diferentemente oradadas las orejas porqe La pintura destas dos prouinçias es poca, los pintados pintan se todo El cuerpo muy galanamente y los moros no se pintan ninguna cosa ni se oradan las orejas ni traen El cauello largo sino cortado al contrario de los visayas qe lo traen largo aunqe las mugeres de los moros se horadan las orejas pero muy feamente, de suerte qe los moros poseen la tierra mas fertil desta ysla pero no tienen sino esta ensenada de manilla y quinçe leguas de costa. Ay en la comarca desta çiudad las encomiendas siguientes:--

La encomienda de Vatan qe tiene oçhoçientos hombres--

La encomienda de vitis qe terna como siete mill hombres--

La encomienda De macabebe qe tiene dos mill y seysçientos hombres--

La encomienda De calonpite qe terna tres mill hombres--

La encomienda de Candaua, tiene dos mill hombres--

Junto a esta encomienda esta vn pueblo qe De su Antiguedad le llaman Castilla pequeño ques de su magd tiene setenta hombres--

La encomienda de Pale tiene treçientos hombres.--

La encomienda de binto que tiene quatroçientos hombres.--

La encomienda de malolos tiene oçhoçientos hombres--

La encomienda de guiguinto tiene quatroçientos hombres

La encomienda de malolos tiene oçhoçientos hombres

La encomienda de Caluya qe es de su magd tiene seysçientos hombres

en todas estas Encomiendas aRiba dhas solian auer vn alcalde mayor y hagora despues qe Vino don gonçalo proueyo los siguientes.--

Corregidor de batan. En batan vn Corregidor qe tiene de salario çiento y çinquenta pessos.--

allde mayor de lubao. En lubao otro que tiene de salario trezios pos.

allde myor de calonpite En calonpite y macaueue otro trezios pos.

allde mayor de candaua. En candaua y en otras dos encomiendas, otro dozientos pos

allde myor de bulacan. En bulacan y su comarca otro con duçientos Pesos de salario.

todas estas encomiendas hablan vna lengua y aca junta a la çiudad por la costa hablan otra desde tondo qè es de la otra vanda del Rio desta çiudad tiene Este Pueblo de tondo mil y treçientos y çinquenta yndios son de su magd

El pueblo de quiapo qe es tambien de su magd

El pueblo de pandacan qe es de vn encomendero, tiene çiento y çinquenta hombres--

El Pueblo de santa Maria qe es de vn encomendero qe tiene [_blank space in MS_.]

El Pueblo de capaques ques de su magd tiene duçientos hombres

La encomienda de pasic ques de Vn encomendero qe tiene dos mil hombres

La encomienda de tagui ques de otro encomendero qe tiene seysçientos y sesenta hombres--

La encomienda De taytay qe tiene quinientos Yndios. todas estas encomiendas desde tondo están en el Rio de manilla asta llegar a la laguna, y es juridiçion todo de vn Alcalde mayor el qual tiene proueydo vn theniente en tondo, lleva El Alcalde mayor de salario duçientos Pesos y El teniente çiento-- toda la laguna tiene otro Alcalde mayor en las poblaçiones siguientes--

La encomienda de maribago tiene treçientos hombres.

La encomienda De tabuc tiene [_blank space in MS._]

La encomienda De Vahi tiene dos mill y quinientos hombres

La de pila mil y seysçientos hombres.--

La encomienda de mayay quatroçientos hombres.

La encomienda de lumban mili y quinientos hombres

La encomienda de maracta qe es de su magd seysçientos hombres.

La encomienda de balian; seysçientos hombres

La encomienda de sinoloan seteçientos hombres

La encomienda de moron mil y çien hombres

estas dos encomiendas postreras tienen muçha mas gte sino qe estan de guerra en las serranias, todo esto es Dentro de la laguna Voluiendo A la costa de manilla De la otra uanda de tondo estan los pueblos siguientes.

La Playa en la mano laguo, malahat, longalo, palañac, Vacol minacaya, cauite, todos estos estan en la comarca de cauite y son de su magd tienen tributarios al prinçipio de la ensenada frontero de la otra punta ques batan esta

alde myor de la costa La encomienda de maragondon qe tiene quatroçientos y çinquenta hombres todos estos pueblos de la playa aRiua diçhos y qe son de su magd y esta encomienda de maragondon tiene vn alcalde mayor qe tiene treçientos pesos de salario--

fuera de la ensenada de manilla Voluiendo a la vanda del leste estan los pueblos de los vajos de tuley qe son de su magd qe tiene tributarios--

corregidor de balayan La encomienda de balayan qe es de vn encomendero qe tiene seysçientos hombres en esto esta proueydo vn corregidor que tiene de salario çiento y çinquenta pesos--

alde myor de bonvon. Esta luego la laguna de bombon qe terna como tres mil y quatroçientos hombres y luego los pueblos de las Batangas qe tienen mill hombres qe es de vn encomendero, en estas dos encomiendas Ay otro alcalde mayor, toda esta tierra Desde tuley Asta batangas son moros como esta diçho es gente muy Rica De algodon y posseen muçho oro de sus antePasados--

Pasado la poblaçon de las batangas qe aRiua tenemos diçho yendo la costa en la mano la buelta de camarines como tres leguas esta El Rio del lobo que tiene como çien yndios luego esta maribago a dos leguas a donde Ay minas De oro ay aqui como çien yndios àdelante esta El pueblo de biga que terna como çiento y çinquenta yndios. àdelante esta galuan qe tiene otros çiento y çinquenta, todos estos pueblos son de Vn encomendero, mas Adelante por la Costa esta el Rio de dayun qe terna seysçientos yndios, y mas adelante esta el Rio de tubi que tiene en los tingues como quinientos yndios,

luego esta el Rio de carilaya y otras poblaçiones pequeñas por alli que ternan todas como quinientos yndios

Adelante esta el Rio de caguayan qe terna como Duçientos yndios todo esto es de otros tres encomenderos y es todo juridiçion del alcalde mayor de mindoro y agora comiença la prouja de camarines aunqe ay algunos poblaçones en medio de poca ymportancia.

Capo 4o

_qe_ Trata de las proujas de Camarines

Proujas de camarines y vicor. La costa àdelante, en el Rio depasacao comiençan las prouinçias de vicor y camarines las quales como E diçho aRiba esta A la vanda Del leste al entrar de las yslas philipinas desembarcandose en el Rio de pasacao qe esta setenta leguas de la çiudad de manilla por la mar y caminando tres leguas Por tierra se va a dar al Rio de vicor que su Vertiente tiene en la contra costa de la ysla de la vanda del norte

alld myor de camarines a donde Esta Poblada la villa de caçeres a donde reside Vn alcalde mayor qe tiene de salario trezientos pos, ay Dos Alcaldes hordinarios y seys Regidores nombrados por el goueror por el tiempo qe fuere su voluntad está esta villa de caçeres situada en medio de toda la Prouja en el Rio de vicor en el qual Rio Ay oçho encomenderos, los siete ternan a seteçientos yndios cada vno y El otro tiene dos mill y su magd tiene en el mismo Rio dos mil yndios en los pueblos de minalagua y nagua, por este Rio se Va a dar a Vna laguna que llaman la laguna de libon qe tiene poca gte en la comarca della esta vna encomienda qe tiene mil y quinientos yndios en el Pueblo de libón y sus subjetos desta laguna por esteros qe tiene con estar en medio de la sierra se puede yr a yguas y albay y a camarines y a bicagua, y a otras partes, todos los encomenderos desta villa de caçeres son veynte y quatro qe los catorçe entiendense Con los siete qe diximos aRiua a Seteçientos yndios y el vno a dos mill y El otro qe diximos de la laguna De libon ay mil y quinientos los demas ternan a treçientos yndios cada vno, pagan En el Rio vicor el tributo en oro y aRoz qe se coje muçho Porqe Ay en esta Provinçia las minas de paracale qe estan diez y seys leguas de la villa qe son buenas minas y tambien lo traen de catanduanes qe esta treynta leguas De la villa la villa no tiene proprios ni juridiçion son juridiçion del alcalde mayor de la prouinçia de laguna y qe terna mill y quios hombres. Esta Repartida en tres encomenderos Albay y baquian ternan oçhoçientos yndios esta Repartida en dos encomenderos, camarines esta en Vno, terna quinientos hombres--

Libon en Vn encomendero myl y quinientos hombres La prouinçia de Paracale y su costa asta mahuban terna dos mill hombres, esta Repartida en tres encomenderos y El Rey tiene aqui pte

La vaya de yualon terna mil y quinientos hombres, esta Repartida endos encomenderos--

ysla de catanduanes. La ysla de catanduanes terna quatro mil hombres esta Repartida en quatro encomenderos. el salario que tiene El alcalde mayor son treçientos pesos paganse de penas de camara y si no de la Real Caxa no prouee

theniente ninguno sino es en la villa saliendo fuera tiene esta villa Vn escriuano proueydo por el goueror qe por tener poco qe haçer en la villa acude tambien a los negoçios del alcalde mayor y sale a visitar con el. valdrale todo como quatroçientos pesos cada Año.

Ay en esta villa vn tesorero proueydo por El gouernador gana duçientos pesos de salario. tiene quenta de cobrar los tributos de su magd Va a dar cuento cada año a la ciudad de manilla.--

la calidad de la tierra es buena y sana y cojese cantidad de Arroz ay cantidad de palmas qe sacan vino y haçen mucho aguardiente

los naturales desta prouinçia son casi como E diçho como los pintados aunque estos son mas araganes porqe se ocupan casi todos los dias en beuer y las mugeres acuden à las labranças estan en parçialidades como los pintados y tienen las mesmas costumbres

Adorauan todos estos a un ydolo de palo mal agestado hablauan con el de monio y ay muçhos Eçhiçeros, por no auer Residido en esta prouinçia no se su manera de sacrifiçios ni E allado quien me lo diga.--

minas Ay minas como e diçho en paracale y en la Vaya De caporaguay en la ysla de catanduanes qe todo es en la comarca desta Villa de caçeres

Distançias Dende pasacao yendo boxeando la ysla la buelta del lesto haçia bu aygan veynte leguas y voluiendo la costa al norueste Ay asta El Rio de vicor sesenta leguas qe todo esto se ataja con las tres leguas qe ay dende pasacao al Rio de Vicor y desde el Rio de Vicor asta la punta de los babuyanes ques en la otra caueça de la ysla qe como E diçho es haçia los japones Ay çiento y veynte leguas qe es cosa costa braua corre norueste sueste no esta poblada toda esta tierra, sino en tres Partes. la vna es la prouinçia de valete qe terna ochoçientos yndios, y mas adelante diez leguas, esta casiguran qe aura quinientos yndios esta pte es como los ylocos porqe estan en su contra costa aunqe no se conmunican por ser la tierra muy aspera, y mas adelante esta vn Rio qe llaman alañao ques poblado que ay en el oro y algodon son los proprios indios como los de valete y casiguran en toda esta costa no ay otra poblaçon ninguna asta qe dende la punta de babuyanes buelue la punta leste gueste asta dar en el Rio de cagayan qe es Rio caudaloso y desde la punta esta la voca deste Rio ay doge leguas.--

Rio de cagayan El Rio de cagayan es grande y caudaloso aunqe la barra es baxa qe de pleamar tiene dos braças y de baxa mar Vna tiene grandes poblacones qe se tiene notiçia que ay mas De treynta mill hombres es gente qe cojen muçho aRoz. tienen muçhos puercos tienen algun oro aunqe ellos no tienen minas tratan con los ylocos. es tierra enferma especialmente en bentando El norte

Yslas de mandato y buyon. en esta contra costa çerca de la ysla de luçon estan Des ysletas pobladas qe se llaman la vna mandato y la otra buyon qe terna cada Vna como cinco leguas son pobladas de moros porqe estan aRimadas a la mesma ysla de luçon frontero de la laguna de manila. [_Marginal note:_ buelue la ysla de luçon desde la çiudad de manilla donde començamos la buelta hasta El rio de cagayan.]

ysla de marinduqe. Entre la ysla de banton y la de luçon quatro leguas de banton y çinco de la ysla de luçon esta la ysla de marinduqe. que tiene como veynte y seys leguas de box, y oçho de ançho aura en ella como mill hombres capul y ella son de Vn encomendero: son yndios pintados aunqe no es juridiçion de çubu, areualo ni camarines.

Capo 5o

_qe_ Trata de la Prouja de ylocos

buelue la ysla de luçon. çambales. En saliendo la ensenada de manilla a la Vanda del norte; ques yendo haçia la prouinçia de ylocos entra luego la prouinçia de los çambales en la qual abra como mill hombres, son como çhiçhimecos de la nueua españa sus costumbres son casi como las de los moros, en el habito difieren porqe estos traen vnos pañetes Cortes y vna Ropilla como salta en barca con medias mangas y escotaddo [el cuello: _crossed out in MS_.] traen en medio del peçho vna ynsinia como de cruz, heçha de diferentes colores y a las espaldas, otra traen la caueça tresquilada la mitad, que es desde la frente a la coronilla, las poblacones qe se saben dellos son, marayomo, pinahuyu manaban, buanguin, tuguy, polo, bongalon, dalayap, cabatogan, bacol, sus biçios destos es a los qe matan haçerles vn agujero en las coronillas, y sorber les por alli los sesos.

Prouinçia de bulinao Luego esta bulinao qe son las de mas çambales los quales estan puestos en caueça de su magd aura como quatroçientos hombres de Paz aunqe ay muçha gente en las serranias es gte belicosa qe su deleyte y contente es tener guerra Vnos con otros y cortar las cabeças y colgar las de baxo de sus cassas el qe mas Cabeças tiene en su casa ese es mas tenido y temido son labradores aunque en poca cantidad son casi como çhiçhimecos de la nueua españa, qe no se an podido traer de Paz sino son los pueblos de bulinao como Diçho tengo terna como quatroçientos yndios De Paz gente es que conoçen qe ay dios en el çielo pero en sus trauajos y enfermedades ynuocan, a sus difunctos, y antePasados, como los Visayas.--

Vaya de pangasinan Mas adelante como çinco leguas esta la prouinçia de pangasinan ques Vna Vaya que terna como seys leguas en torno, salen a esta Vaya tres Rios caudales que deçienden de las sierras de las minas aurá en esta Prouinçia quatro mill hombres de paz. Ay seys encomenderos y su magd. Esta enterado en lo mejor della de mill hombres es gente qe en el traje y lengua son semejantes a los çambales aRiua dichos aun qe es gente de mas Raçon por ser contratante y asi tratan con çhinos, japones, y burneyes, y con los naturales destas yslas. es muy abundante esta prouinçia de vastimentos como es De aRoz, cabras, y puercos. Ay muçha caça de bufanos porqe aunqe su prinçipal negoçio es tratar, son grandes labradores, porqe Venden A los mineros la comida y Ropa a trueqe de oro y este oro bueluen a Rescatar a los españoles, es gente muy çelosa de sus mugeres y ansi si les cometen adulterio las matan sin qe los parientes lo tengan a mal matan los hijos si tienen muçhos porqe no Viuan en proueça de la suerte qe Diximos de los pintados,

alld myor de pangassinan de dos años a esta parte ay vn alcalde mayor con çien pesos de salario, dende esta Prouinçia se Puede yr a manilla por Camino muy llano y bueno y aura de camino, catorçe, o quinçe leguas hasta dar en los Rios de la

capanpanga.

Puerto del Japon Quatro leguas adelante esta vn puerto qe llaman el puerto del Japon qe Ay en el Vna poblaçon de [español: _crossed out in MS_.] yndios ques vna misma gte qe la de pangasinan.

Alinguey y baratao seys leguas mas adelante estan los pueblos de alinguey y baratao en qe aura dos mill hombres era encomienda de vn encomendero agora esta en la Rel corona toda es gente como la de pangasinan.--

purao quatro leguas mas adelante estan los Pueblos De purao en qe aura dos mili hombres es de vn encomendero ques tambien de bitis y lubao. la gente destos pueblos es Diferente en la lengua, a los de atras, aunqe En los tratos y costumbres son semejantes y son labradores, posseen muçho oro por ser veçinos de las minas estos no matan los hijos como diximos de los de pangasinan--

Pueblos de lumaquaqe tres leguas mas adelante, esta el valle qe llaman de lumaquaqe en qe aura mill y quinientos hombres es la mitad de un encomendero, y la otra mitad de su magd es gte semejante a la de Purao--

Pueblos de candon Dos leguas adelante estan los Pueblos de candon tienen como mil y oçhoçientos hombres. estan encomendados en dos encomenderos es vna gte como de la purao.--

Prouja de maluacan tres leguas àdelante esta la prouinçja De maluacan tiene como mil y oçhoçientos hombres estan encomendados en el encomendero de bonbon--

_Valle de landan _ Dos leguas adelante, esta el valle De Landan qe terna Como mill yndios, qe son del hospital De la çiudad De manilla

Pueblo de Vigan EN frente deste Valle esta El pueblo de Vigan qe terna como oçhoçientos hombres. es de su magd E junto a el esta poblada la villa fernandina qe Poblo guido de laveçaris El Año de setenta y çinco nombro en ella seys Regidores E dos alcaldes, E Vna Justiçia mayor de todas las prouinçias de los ylocos,

alld mayor de ylocos. pero con la venida de limahon se desbarato y ansi agora, solo ay alli vn alcalde mayor con veynte o treynta españoles, qe Ay de hordinarío alli ques a manera de presidio tiene de salario trezientos pos el nombra los escriuanos que le pareçen

Valle de bantay. Una legua de la villa esta el Valle de Bantay qe terna mili y seysçientos hombres es de vn encomendero--

Valle de sinay tres leguas Adelante esta El Valle de sinay ques Del mismo encomendero de bantay terna como otros mili y seysçientos hombres.

El Valle de Vavo. De Alli a dos deguas esta El valle de Vavo ques de Vn encomendero qe terna como mill yndios

Prouia De cacaguayan E luego mas adelante esta la prouinçia de cacaguayan aura en ella como quatro mill hombres, los dos mill son de dos encomenderos a cada mill y los dos mill son de su magd--

Prouja de ylagua Adelante otras dos laguas esta la prouinia de ylagua qe es de su magd en qe aura como çinco mill hombres pero no estan todos de paz--

Valle de dynglas. La tierra a dentro desta Prouinçia esta Vn valle qe se diçe de dinglas qe estará tres leguas de la mar qe terna dos mill yndios es de vn encomendero.

Valle de Vicagua La costa Adelante de ylagua esta El valle de vicagua en qe aura otros dos mill hombres, ay en el Dos encomiendas Desde Aqui al Rio de cagayan ay veynte leguas y en el camino ay algunos Rios y poblaçones pero no estan de paz ni se sabe ques--

toda esta gente De los ylocos tienen casi su manera de viuir como los pintados pero comen carne cruda de animales, y es gte quieta; y paçifica, y enemiga de guerra, es gente muy baça, y de buena condiçion. De suerte qe ay desde la çiudad De manilla hasta El Ryo de Cagayan por esta parte çiento y Diez leguas poco mas, o menos como he diçho atras, por la breuedad no se a podido sacar mas particularidades desta ysla de lugon qe es la prinçipal Deste Reyno--

Ysla de mindoro frontero destas encomiendas de bonbon y batangas esta la ysla de mindoro qe la mayor pte de la gte della son moros, tiene El pueblo de mindoro qe es buen puerto para naos, tres leguas de trabesia de la ysla de luçon es aquel Puerto de su magd terna como duçientos y çinquenta moros tiene de çircuyto la ysla oçhenta leguas es poca poblada porqe en toda ella no se allan quinientos hombres tiene algunos negros en las serranias qe cojen gran cantidad de çera es muy pobre de bastimentos.--

ysla de luban quatro leguas Desuiada desta ysla en la punta questa al hueste que viene A caer frontero de la ensenada de manilla esta la ysla de luban desuiada de la çiudad de manilla Veynte leguas, frontero de la misma ensenada tiene esta ysla como diez leguas de box tiene seys pueblos en qe aura como quinientos yndios--

Pegada esta ysla esta otra Pequeña qe tambien tiene el mesmo nombre, tendra como çien hombres, toda es vna misma gte qe la de luban

ysla de Elin Dos leguas deuiada de la ysla de mindoro a la vanda del sur esta la ysla de Elin qe es de yndios visayas tiene de box siete leguas ay en ella como duçientos yndios,

alld mayor de vindoro. estas yslas la de mindoro y elin y luban son de Vn encomendero y tienen todas vn alcalde mayor el qual tiene tambien de juridiçion en la ysla de luçon desde los batangas asta que comiença la prouja De camarines a qe Volueremos hagora

yslas de los babayanes. frontero del Rio de Cagayan estan siete yslas qe llaman de los babuyanes estas estan mar enfuera, la buelta de la çhina llaman se babuyanes porqe dellas se traen gran cantidad de puercos à la prouinçia de ylocos qe estos naturales llaman babuyes y de alli les pusieron este nombre, tienese muy poca, notiçia dellos.

ysla de calamianes. la buelta de burney saliendo de la çiudad de manilla Doçe leguas de la ysla de Elin estan las yslas qe diçen de los calamianes qe por estar a tras mano se tiene poCa notiçia dellas, digo de la gente qe tienen porqe solamente se an visto algunos pueblos de las playas a donde se a ydo a cobrar tributo, los naturales qe habitan en las playas son pintados los de las serranias son negros cojen grandisima cantidad de çera, a cuyo Rescate aCuden casi de todas las yslas, son faltos de Comida y de Ropa la prinçipal de las yslas se llama paraguan qe tiene çiento y çinquenta leguas de box, las otras son yslas pequeñas qe son las que ay pobladas. taniando binorboran cabanga bangaan caramian y por otro nombre linapacan dipayan, coron En todas estas yslas no se Cobra sino tributo de treçientos yndios y ansi no se puede tener muçha notiçia dellos, estas yslas son todas juridiçion del alCalde mayor de mindoro [y pagan tributos: _crossed out in MS_.] y estan en la corona Real.

Capitulo 6o

_Qe_ trata de la gente de la yslas de los Pintados y sus condiçiones.

La gente de las yslas de los Pintados es gte qe no es muy morena es gte bien heçha y bien agestada ansi hombres como mugeres las quales algunas son blancas, traen hombres y mugeres el cauello largo Rebuelto a la coronilla de la caueça qe les àgraçia muçho pintanse los barones todo El cuerpo de vnas labores muy galanas con Vnas herreçuelos pequeños mojados en tinta qe yncorporados con la sangre queda la pintura perpetua, es gente qe Viue sana porqe la consteraçion de la tierra es buena porqe casi no se alla ningun hombre contreçho ni manco de naturaleça ni mudo ni sordo ni ningun endemoniado ni loco y ansi Viuen sanos hasta muy Viejos, es gente briosa y martista, andavan siempre en guerras por mar y por tierra, ponense muy galanas joyas en las orejas qe las tienen oradadas por dos partes y en la garganta y en los braços. El Vestido es galano y honesto, su vestires algodon o medriñaque y tambien usan seda, trayda de la çhina y de otras partes. es gente muy dada Al vino qe lo haçen de aRoz y de palmas y es bueno rraras Veçes estan furiosos estando borraçhos porqe con dormirse las pasa la borraçhera o en graçias, quieren muçho a sus mugeres porqe ellos pagan El dote quando se casan, y ansi aunqe les cometan adulterio nunca proceden contra ellas sino contra los adulteros. tienen Vna cosa muy abominable qe tienen oradado El miembro genital y por el agujero se meten un cañuto de estaño y sobre aquel se ponen vna Rodaja a manera de espuela qe tiene Vn gran palmo de rruedo qe pesan algunas dellas mas de media libra de estaño, ponenlas de veynte suertes ques cosa deshonesta tratarlo con estas se juntan con sus mugeres pero no vsan dellas los serranos aunqe todos generalmente se Retajan, pero diçen que lo haçen por su salud y linpieça, no Reparan jamas quando se casan en si la muger esta donçella o no.

Las mugeres son hermosas aunqe deshonestas no se les da nada de cometer adulterio porqe nunca las Castigan ellos por ello andan bien adreçadas y honestamente porqe traen todas las carnes cubiertas. son muy linpias y muy amigas de olores en grande estremo. Afrentanse de tener muçhos hijos por qe dizen que auiendose de Repartir la haçienda entre todos qe quedaran todos pobres qe mas vale qe aya ouo y ese Rico, tienen grande punto en sus casamientos porqe no se casara nadie sino es con su semejante y ansi jamas se casan Prinçipales, sino es con mugeres

prinçipales, solian tener cada Vno las mugeres qe podian conprar y sostentar, son ellas grandissimas alcaguetas y de sus proprias hijas y ansi ninguna cosa se les da de ser Ruynès delante de las madres porqe por esto no se les da ningun castigo aunqe los varones, no son tan alcaguetes como los moros, quieren los hombres tanto a sus mugeres qe si tienen guerras Vnos con otros el marido se acuesta y ayuda a la parentela de la muger aunqe sea contra su proprio padre y hernos--

Cap. 7o

_Qe_ Trata de la Opinion que Tienen los Naturales de las Yslas de los Pintados del Prinçipio del Mundo.

Ay dos diferençias de hombres en esta tierra qe aunqe son todos vnos se tratan algun tanto diferentemente y casi siempre son enemigos los Vnos los que Viuen en las marinas y los otros los que Viuen en las serranias y si tienen alguna paz entre si es por la necesidad qe tienen los Vnos de los otros para sustentar la vida humana, porqe los de la serrania no pueden viuir sin el pescado y la sal y otras cosas y tinajas y platos qe Vienen de otras partes, ni los de la playa pueden Viuir sin el aRoz y algodon qe tienen los serranos y ansi tienen dos opiniones, en lo del prinçipio del mundo y por careçer de letras guardan estos naturales sus antiguedades en los cantares los quales cantan de ordinario en sus bogas como son ysleños con muy buena graçia y en sus borraçheras tienen cantores tambien De buenas Voçes qe cantan las haçañas pasadas y ansi siempre ay notiçia de las cosas antiguas, los de la playa qe llaman yligueynes tienen por opinion qe El çielo y tierra no tuba prinçipio y que tenian dos dioses qe se llamauan el vno captan y El otro maguayen y qe el viento terral y El de la mar se casaron y El de la tierra gomito Vna caña y qe aquesta caña la sembro El dios captan y que estando ya grande Rebentó y heçho de si dos cañutos qe tenia heçho vn hombre y Vna muger al hombre llamaron sicalac de donde llaman a todos los hombres lalac y a la muger llamaron sicauay de donde llamaron despues àca a las mugeres babayes el varon le dixo a la muger qe se casasen entrambos pues no auian otros en el mundo ella dixo qe no queria porqe eran hermanos salidos de Vna caña y qe no auia auido mas de vn ñudo entre entrambos y qe no se queria casar por ser hermano suyo, al fin se conçertaron de yr lo a preguntar à las toninas de la mar y a las palomas qe andauan por el ayre y vltimamente lo fueron a preguntar al temblor de la tierra, al qual dixo qe era neçesario qe se casasen para qe Vbiese hombres en el mundo y ellos se casaron y El primer hijo que tubieron se llamo sibo, y despues una hija qe se llamo samar y estos dos hermanos Vbieron otra hija que se llamo lupluban y esta se casó con vn hijo de los primeros hombres qe se llamo pandaguan y estos dos tubieron otro hijo llamado anoranor y el pandaguan fue El primero qe ynvento los corrales para pescar en la mar y la primera Vez tomo vn tiburon y tomado lo saco en tierra, pensando qe no se auia de morir y puesto en tierra muriosele como le vido muerto començo a haçer le las obsequias y llorar por el y quexar se a los dioses de qe auia muerto vno qe asta alli no se auia muerto ninguna, y diçen qe el dios captan como lo oyo enbio las moscas qe le abisasen quien era el muerto y no osando llegar las moscas enbio al gorgojo el qual vio qe El muerto era el tiburon y enojado el dios captan de qe se Vbiesen heçho obsequias al pescado. El y El maguayen heçharon Vn Rayo con qe mataron al pandaguan y estubo treynta dias muerto en el ynfierno y al

cauo dellas se condolieron del y le Resçuçitaron y le tornaron Al mundo en el ynter qe el estubo muerto la muger qe se llamaua lubluban se amançebo con Vno qe se llamaua maracoyrun De donde diçen qe tubo prinçipio el amançebar se y quando llego no la allo en casa por qe le auia conbidado el amigo a vn Puerco qe auia hurtado qe diçen qe fue El primer hurto qe auia; auido en el mundo y el la enbió a llamar con su hijo y ella no quiso venir diçiendo qe los muertos no voluian al mundo de lo qual el enojado se voluio al ynfierno y tienen Por opinion qe si la muger viniere a su llamado y el no se voluiera a yr entonçes qe todos los qe se murieran Voluieran al mundo [_blank space in MS_.] y los maganitos y El ynbentor dellos y las çeremonias dellos el Redaño--

Segunda Opinion De los Serranos qe Llaman Tinguianes

tienen Por opinion los tinguianes qe no auiendo mas de mar y çielo vn milano como no tenia a donde posarse determino de Reuoluer al çielo y la mar, por cuya cavsa la mar quiso haçer guerra Al çielo y ynçhandose haçia aRiua el çielo biendo aquesto trato paçes con la mar y despues Por vengarse del atreuimiento qe auia tenido de ynçharse haçia aRiua diçen qe aRojó todas estas yslas deste Archipielago sobre la mar, para domeñarla y qe corriese la mar de vna parte para otra y no se pudiese ynçhar, y de aqui tubo el prinçipio el mauaris qe es vengarse Vno de otro qe le a heçho injuria qe es cosa muy Vsada; en esta tierra y lo tienen por punto El no satisfaçerse y luego toman el cuento de la caña diçiendo qe picando el milano en la caña salieron aquel hombre y aquella muger qe aRiua diçe y cuentan luego qe la primera Vez que pario la cauahi pario gran cantidad de hijos juntos y qe entrando el padre Una Vez muy enojado en casa y amenaçando a los hijos ellos heçharon a huir y De miedo y qe Vnos se metieron en Vnos aposentos en lo mas escondido de la casa, y otros se quedaron escondidos en otros aposentos, mas afuera y otros se escondieron en los dindines qe son las paredes de la casa heçhas De caña y otros se escondieron en el fogon y otros salieron por la puerta por donde su padre entro y se fueron, haçia la mar, diçen ellos qe se metieron, en los aposentos, de mas adentro, son los prinçipales qe ay en estas yslas qe deçienden de Aquellos y los que quedaron mas afuera qe son los timaguas, y los qe se escondieron entre las paredes qe son los esclauos, y los qe se escondieron en el fogon qe son los negros, y qe los qe se fueron por la puerta afuera haçia a la mar, que somos nosotros los españoles qe nunca mas an tenido notiçia de nosotros, asta qe nos Vieron Voluer otra vez por la mar.--

Capitulo 8o

De la Opinion qe Tienen de los qe se Mueren.

Diçen qe los qe mueren a puñaladas o los come algun cayman o a flechaço qe es muerte muy honrrada, y qe la alma dellos se suben por el arco qe se haçe quando lluebe al çielo y se tornan dioses y los qe se aogan qe sus almas se quedan alli en la mar para siempre y Por honrra les ponen vna caña alta y alli un bestido, si es de hombre de hombre y si de muger de muger y alli lo dexan estar asta qe se haçe pedaços de viejo, a estos quando mueren, ahogados quando algun hijo suyo o pariente esta enfermo toman y metense en vn barangay los parientes y con vna baylana ques como saçerdotisa, y vna caxa llena de mantas y otras cosas, y a donde la

saçerdotisa les diçe qe la arrojen en la mar la arrojan pidiendo fauor y ayuda, a su antepasado, para su enfermedad--

Opinionde los qe se Mueren.

los qe se mueren de su enfermedad si son moços diçen qe los mangalos qe son los duendes les comen las asaduras y que por por esta causa, se mueren, porqe ellos no entendien que ay corrupçion de humores qe causan las enfermedades y los que mueren, biejos diçen qe el Viento llega y les aRebata las almas y que destos qe asi mueren los arayas qe es Una çierta Parçialidad de pueblos se van a vna sierra muy Alta que se llama mayas qe esta en la ysla De panay y los qe llaman yligueynes qe son los çubuanes, boholanes, bantayanes, van sus almas con el dios que llaman, sisiburanen a vna sierra muy alta qe en la ysla De Burney _El dios sidapa_. Diçen qe en el çielo Ay otro dios qe se diçe sidapa y que este tiene vn arbol muy grande en aquel çerro de mayas y qe alli mide las Vidas de todos los que naçen y pone Una señal y qe en llegando A la medida qe El a puesto luego se muere--

Opinion que tienen áçerca de A donde Van las animas tienen Por opinion qe en muriendo las Almas se Van al ynfierno dereçhas todas, Pero qe por los maganitos que son los sacrifiçios y ofrendas qe haçen al dios pandaqe vista en aquel çerro de mayas lo Rescatan de simuran y de siguinarugan dioses del ynfierno--

Diçen qe la naçion de los yligueynes quando se mueren los lleua El dios maguayen al ynfierno y que lleuandolos en su barangay sale sumpoy ques otro dios y se los quita y los lleua a sisiburanen, ques El dios que diximos aRiua, para que los tenga consigo buenos y males todos los lleuan por un parejo de que van al ynfierno pero los pobres qe no tienen quien les haga sacrifiçios quedan se para siempre en el ynfierno, y se los come el dios del ynfierno o se los tiene para siempre en prissiones por donde se vera quan poco se les daua por ser buenos o malos, y quanta Razon tenian de aborreçer la proueça--

Baylanas Estos naturales destas yslas no tienen ningun tiempo ni lugar dedicado para haçer sacrifiçios ni oraçion sino quando Alguno esta enfermo por sementeras o por sus guerras haçen sus sacrifiçios qe llaman baylanes y de aqui llaman baylanes a las mugeres saçerdotisas o a los Varones que haçen este offçio pone se la saçerdotisa muy galana con su guirnalda en la caueça y muçho oro y ponen sus pitarrillas qe son Vnas tinajas de vino de aRoz y traen vn puerco viuo alli y muçha comida Adreçada y cantando Ella sus cantares ynuoca Al demonio y el le apareçe muy galano, con vn vestido todo de oro y Despues le entra en el cuerpo y la deRueca en el suelo y la haçe heçhar espumarajos por la uoca como quien tiene El demonio en el cuerpo y habla y Diçe si El enfermo a de tener salud o no y en los demas casos diçe los suçesos en todo este ynterin Ay gran musica de campanas y atabales y en lebantandose toma la lança y dale vna lamçada al Puerco por el coraçon y adreçado haçen su platillo para El demonio y en Vn altar qe alli tienen puesto le ponen alli El puerco guisado y arroz y platanos y vino y todo lo demas que ay que Comer hacen esto para pedir salud para los enfermos y pa Rescatar a los qe estan en el ynfierno y quando Van a guerras y a hurtar para Estos ynuocan al varangao ques El arco del çielo y ay naguinid y a macanduc, sus dioses y para El Rescate del ynfierno al qe aRiua diximos tam bien

ynuocan a sus antepasados los muertos y diçen qe les veen y qe les Responden a lo que les preguntan

Opinion açerca del mundo Tienen quel mundo nunca se a de acauar.

El dios macaptan Diçen qe macaptan esta mas aRiba del çielo y qe le tienen por malo porqe les da enfermedades y los mata y diçen qe porque no a comido Cosa deste mundo ni biuido pitarrillas no los quiere bien y los mata

El dios lalahon El dios lalahon diçen qe Reside en vn Volcan qe esta en la ysla De negros qe heçha fuego y qe esta El Volcan frontero de la uilla de areualo, como ginco leguas a este lalahon ynuocan para sus sementeras y quando no quieren darselas buenas he-ghales la langosta qe se las hegha a perder y se las come esta lahon es muger

Entierros Estos naturales se entierran en vnos atahudes de Palo en sus proprias casas, entierran se con oro y mantas y otras joyas porqe digen qe si Van Ricos los Reçiuiran de buena gana y al contrario si Van Pobres.

çentinela qe haçen a los muertos quando alguno, se muere haçen muçhos fuegos debaxo de la casa y andan de noçhe hombres armados haçiendo çentinela al atahud porqe diçen qe Vienen los bruxos que los ay tambien en esta tierra y qe tocan al atahud y que Rebienta luego el atahud y sale grande hedor del cuerpo muerto y qe no lo pueden tener en caja por el grande hedor y ansi por algunas noçhes le haçen çentinela--_escauos que matan quando mueren los prinçipales_ quando mueren los prinçipales desgendientes de dumaguet de la muerte qe muere El prinçipal de aquella mesma muerte matan a un esclauo el mas desuenturado qe pueden aliar para qe los sirua en el otro mundo y siempre procuran, que sea este esclauo estranjero y no natural porqe Realmente no son nada crueles--

La causa porque matan a los esclauos qe diximos quando muere algun prinçipal diçen ques antiguamente, que a la cuenta qe ellos diçen a mas de diez mill Años vn prinçipal que se llamaua marapan estandose proueyendo pidio a vn esclauo suyo vn poco de çacate para linpiarse y el esclauo le aRojo vna caña grande de carriço y pareçe qe le açerto en vna Rodilla y lastimole y Como el era ya muy Viejo de aquel açhaqe Diçen que murio y Antes qe muriese dexo mandado qe quando el muriese matassen aquel esclauo y a todos sus hijos y de aqui quedo yntroduçido el matar esclauos quando se mueren los prinçipales

luto de no comer, quando se muere padre o madre o algun pariente çercano prometian de no comer aRoz hasta haçer Algun cautivo auido por guerra y se ponian vnas manillas de bejucos qe cojian de todo El braço ques El Verdadero luto y en la garganta y no bebian pitarrilla, sino con platanos y Camotes se sustentauan hasta qe cautiuauan o matauan a alguno qe entonges se quitauan el luto y acaeçia estar desta manera Un año sin Comer aRoz de suerte qe se parauan muy magantos y ñacos pero Reçien muerto el pariente determinauan de no comer sino dexarse morir pero juntauanse luego sus timaguas y esclauos y heghaban Vna DeRama por el pueblo y dauanselo porqe [muriesse: _crossed out in MS_.] comiese platanos, y bebiese tuba, ques Vino de palmas porqe no se muriesse qe estos eran prouehuelos qe tenían los prinçipales, este luto llaman ellos entre si maglahe

luto de las mugeres Al luto de las mugeres llaman morotal es de la propria manera qe los hombres sino qe en lugar de yr a cautiuar o matar para quitarse El luto y poder Comer aRoz se meten con muçhas mugeres en vn barangay y un yndio qe Va gouernando y otro qe Va açhicando y otro qe va en la proa y estos tres yndios los buscan siempre qe sean yndios muy Valientes qe ayan heçho muchas agañas por armas y Vanse a otro pueblo de Amigos suyos y Van Cantando estos tres yndios sus heçhos al son de la boga, y los esclauos qe an cautiuado y los hombres qe an muerto en guerras y leuan El nauio cargado de vino y pitarrillas y llegados al pueblo conbidan a los del pueblo y los del pueblo a ellos y haçen Vna gran borraçhera y desde entonçes se quitan las mantas blancas y las argollas de bejucos de los braços y de la gar ganta y desde entonçes se quitan el luto y comen aRoz y se ponen oro.

larao de los muertos qe luto. Vna de las leyes qe esecutan con mas Rigor es la qe llaman larao y es qe quando se muere algun prinçipal quieren qe tengan todos luto y qe guarden las cosas siguientes, qe nadie Riña con otro mientras qe Vbiere luto y muçho mas graues si Riñen en el enterramiento, qe no traygan El yerro de la lança haçia aRiua sino haçia abajo quel puño del puñal lo traygan en la pretina de suerte qe ande al Rebes qe no traygan Vestido galano ni colorado qe en aquellos dias no entre ningun barangay cantando sino con muçho silençio y haçen vna çerca alderredor de la cassa del muerto qe pasa por ella y la quiebra ni mas ni menos le penan y porqe venga a notiçia de todos vn timagua de los honrrados anda pregonando por todo El pueblo el luto porqe nayde pretenda ygnorançia, y ansi el que le quebranta le ponen sin Remedio si es esclauo el que pega de los qe siruen fuera de Casa y no tiene con qe pagar paga su amo por el pero lleuale a su casa qe le sirua y le haçe ay o ey estas leyes diçen qe les dexo lubluban y panas. A algunos les a pareçido estas leves Rigurosas espeçialmente a los Religiosos perro ella era general para prinçipales y timaguas y esclauos.

Guerras. El primer hombres qe diçen qe tubo guerra diçen qe se llamo panas hijo de aquel anoranor nieto de los primeros [padres: _crossed out in MS._] hombres tuba la con mañgaran, sobre una herençia y de Alli tubieron prinçipio las guerras porqe se diuidieron en dos Partes y de padres a hijos an yenido deçindiendo--y ansi digen qe El primer hombre qe tomo armas para pelear fue El panas.--

Guerras justas tres guerras tienen estos naturales por justas la primera si vn yndio va a vn pueblo y le matan alla sin Raçon, la otra por quitarle las mugeres la otra es porqe si van a Contratar debajo de àmistad a algunos pueblos y alla les haçen algunos agrabios o los maltratan y debaxo De amistad les haçen trayçion

leyes--Diçen qe las leyes por que se an gouernado hasta agora se las dexo lubluban aquella muger qe diximos aRiba y destas leyes son defensores, y executores solos los prinçipales porqe no tienen juez ninguno aunqe tienen terçeros qe de vna parte a otra Andan conçhavando--

Capo 9o

_Qe_ Trata de la Esclauonia de las Yslas Filipinas

leyes para los esClauos A ningun yndio desta tierra haçen esclauo ni le matan por ningun delito qe cometa aunqe sea hurto ni por adulterio ni por homiçida, sino qe

tienen señalado la pena qe le an de lleuar en preseas o en oro y ansi si no tiene para pagarlo el lo busca y se enpeña y por aqui viene a haçerse esclauo, y en qualquier tiempo qe paga lo que le prestaron torna a quedar libre y ansi conforme al Delito qe cometen son esclauos y ansi ay tres generos de esclauos en estas yslas. El primero y mas esclauo es el de aquel que se siruen en su casa ques el que llaman ayuey estos trauajan tres dias para el amo y vno para el

generos de esclauonias Otros ay qe se llaman tumaranpoc qe tienen casas de por si y son obligados de acudir a seruir a su amo de quatro dias El vno y los tres para ellos, y si no siruen estos a sus amos, por ocupar se en sus sementeras, dan cada año a su amo diez chiçubites De arroz de Anega, cada çhicubite--Ay otros qe son esclauos que los tienen ellos por mas honrrados qe se llaman tomatabanes qe no les siruen en sus Casas, sino es quando aya algun banquete o borraçhera qe Vienen con algun pressentillo tanbien ellos a beber pero estos quando se mueren entran los amos a la pte con los hijos de la haçienda qe dexan y en Vida son obligados a seruir çinco dias cada mes y si no siruen dan cada año çinco çhicubites de aRoz.--

Valor de los esclauos los ayueyes tenian Valor entre ellos de dos taes de oro de labin sian que valen doçe pesos.--Los tumaranpoques lo proprio--Los tumatabanes tenian de Valor un tae qe son seys Pesos Las mugeres de los ayueyes siruen también en la casa de los prinçipales como sus maridos. Las mugeres de los tumaranpoques si tienen los hijos siruen la mitad del mes en ylar y texer algodon que les dan sus amos, y la otra mitad para si--Las Mugeres de los tumatabanes no haçen mas cada Mes de benefiçiar Vna madexa de algodon para su amo dandoles el amo El algodon en capullo--A los ayueyes solamte dan de comer y Bestir sus amos, y los demas no les dan nada--quando mueren estos esclauos ninguna haiçenda les quitan sus amos sino a los tomatabanes como diximos. los que estos naturales an Vendido a los españoles por la mayor parte son los Ayoeyes las leyes qe tienen para penar a Vno hasta haçerle esclauo por muertes por adulterios por hurtos, por deshonrrar de palabra alguna muger prinçipal, o por quitar le la manta en publico y dexarla desnuda o ser causa qe por huyr o defenderse le caya qe esto tienen por muçha afrenta

ladrones. Si el ladron haçe algun hurto grande penan a El y a toda su parentela, digo los qe son mas çercanos parientes, y si es por muerte o por adulterio a toda su parentela penan, y si no tienen conqe pagar los haçen esclauos, y esta ley pasaua entre todos los mismos prinçipales, de suerte qe si vn principal comete algun delitto aunqe sea contra su mesmo esclauo o timagua lo penan de la misma manera, pero no Vienen a ser esclauos porqe no tienen conqe pagar la pena, qe sino tanbien serian esclauos.--Si El hurto es pequeño penan Al que lo haçe y no a sus parientes _en tiempo de hambre_ quando ay hambre los pobres qe no tienen conqe se sustentar por no pereçer acuden a los Ricos y sienpre por la mayor pte procuran qe sean sus Parientes y se les dan por esclauos porqe los sustenten.

Otra manera de esclauonia. Ay otro genero de [esclauonia: _crossed out in MS._] señorio qe yntroduxo Vno que se llamaua sidumaguer qe Diçen que a mas de dos mill años qe fue que porque le quebraron vn barangay en languiguey donde el era natural ques En la ysla de bantayan qe si tenian los qe defienden, de Aquellos qe le quebraron el barangay si qdo mueren dexan diez esclauos le dauan dos y Al Respeto

toda la demas haçienda, y esta manera de esclauonia. quedo yntroduçida en todos los yndios de las playas y no los tinguianes

Verdaderos timaguas. Los hombres libres destas yslas que llaman timaguas qe ni son prinçipales ni esclauos Viuen desta manera, que si vn timagua se quiere yr a Bibir a vn pueblo se allega a vn prinçipal De los del pueblo porqe hordinariamente los pueblos tienen muchos prinçipales qe cada vno tiene su barrio con sus esClauos y timaguas conoçidos, y se le offreçe por su timagua y es obligado a haçer las cosas siguientes; quando haçen Banquetes, a otros Prinçipales allarse alli, porqe es costumbre qe primero beba de la pitarrilla el timagua, que no ningun prinçipal y el A de acompañar al prinçipal quando camina con sus armas y si se enbarca a de yr bogando, y lleuar sus Armas para defender El nauio pero aunqe quebranten Algunas cosas desto nunca les penan sino Riñenlos por este seruiçio, es obligado El prinçipal a defenderle con su persona y su Parentela de qualquiera que le quisiere haçer agrabio sin Raçon y asi acaeçe sobre los timaguas auer guerras entre padres y hijos, y hernos Contra hernos y si Va a otros pueblos, y alla le haçen agrabios ni mas ni menos procura con todas sus fuerças de desagrabiarle y con esto viuen seguros, y tienen libertad el timagua de pasar de vn prinçipal a otro quando le dá gusto qe no le pone ynpedimento en ello--

De la manera como salen a Robar tienen estos naturales su manera de heçhar suertes con Vnos colmillos de cayman o de jabalyes quandos las heçhan ynuocan sus dioses y Antepasados preguntandoles como les a de suçeder en la guerra, o en los Viajes qe haçen y por las bueltas quedan con los Cordeles adeuinan lo que les a de suçeder y estas suertes heçhan para qlquier cosa qe ayan de poner la mano, tienen por costumbre de salir a Robar cada año los yndios de las playas en tiempo qe hagen bonangas ques entre brisas y Vendabales y los tinguianes despues de auer cojido sus sementeras y como tienen por costumbre de ser enemigos de los qe lo son de sus amigos nunca les faltauan guerras.--

quando Van a Robar si pueden traer Viuo al enemigo no lo matauan, y si Alguno mataua El cautiuo despues de Rendido pagaualo de su bolsa, y si no tenia Conqe pagarlo quedauase Por esclauo la presa qe haçen de qualquier suerte que sea es de los prinçipales sino es alguna poca cosa, qe dan a los timaguas qe yuan con ellos bogando pero si yuan muchos prinçipales el prinçipal qe haçia el magaanito qe es el sacrifiçio qe diximos àRiba lleuaua se la mitad de la presa, y la otra mitad era de los demas prinçipales-- _Prinçipales cautiuos_ Si cautiuauan a algun prinçipal tratauanlo bien y si algun amigo por estar lejos su tierra le rrescataua Voluiale El cautiuo doblado, de la qe daua por El por la buena obra qe hacia en sacar le de prision, por que siempre le tenian aprisionado--Al[gun: _crossed out in MS_.] que estuaua cautiuo y al qe adulteraua y al que mataua todos los parientes, le ayudauan a Rescatar y a pagan lo que deuia cada Vno conforme al parentesco qe tenia con el, y si no tenian, los parientes quedaua esclauo.--_Enprestidos_ si se emprestauan arroz Vnos a otros y se pagauan vn año sin qe se lo pagara, como es cosa qe se siembra si el primer año qe lo sembrauan no lo pagauan--Al segundo pagauan doblado, y al tercero quatro doblado y asi yva subiendo y solo este logro tenian aunqe algunos an diçho otra Cosa, pero no se an ynformado bien agora algunos araganes que no quieren buscar su

tributo para pagarlo, lo piden prestado y bueluen alguna cosa mas _herençias_ las herencias tenían Costumbre de Partir desta suerte qe si Vno moria, y dexaua quatro hijos, la Haçienda y esclauos se hagian quatro partes yguales y cada Vno de los hijos lleuaua la suya y si dexaua Algun hijo bastardo le dauan la pte que A los hermanos querían porqe este no entraua en las partes, ni lleuaua mas de lo que le dauan Voluntariamente los hermanos o la mda qe El padre haçia, y si le pareçia al padre mejorar A alguno de sus hijos lo haçia, y si acaso el muerto no dexaua hijos heredauan todos los hermanos qe tenia partes yguales y si no tenia hermanos heredauan los primos hermanos, y si no los auia entraua todo El linaje partiendo la haçienda de suerte qe auiendo hijo sino los auia los hermanos eran herederos forçosos y si no los auia los primos hermanos y no los auiendo los deudos todos partian la haçienda ygualmte

Capo 10

_Qe_ Trata de los Matrimonios de las Yslas.

Casamientos de los prinçipales Grandes yerros se An hegho en los casamientos qe se an heçho entre los naturales desta tierra despues de Auer se heçho xpianos por no auer sacado bien en linpio la consumaçion qe tenian en sus matrimonios, y ansi Vnos Religiosos casan a vnos y otros los descasan, y otros los bueluen a casar, y ansi a auido grandissimas confusiones por lo qual yo E procurado con toda diligençia sacar A luz la manera qe tenian en sus matrimonios qe pasa desta manera quando Alguno se quiere Casar porqe siempre El varon pide a la muger llaman a algunos timaguas, honrrados del pueblo esto haçen los que son prinçipales porqe pareçe a ser qe de tres calidades de hombres qe ay en estas yslas qe son prinçipales, timaguas qe son los hombres libres y esclauos cada vno tiene diferente manera de casarse y ansi como digo los prinçipales enbian por terçeros a algunos de sus timaguas, para tratar El Casamiento y lleua el vno dellos la lança del desposado de su padre y en llegando A la casa del padre de la desposada da vna lançada en la escalera de la cassa y teniendo la lança, de Aquella manera, ynuocan a sus dioses y antepasados para qe les sean Propiçios en aquel Casamiento y esta lança es del terçero, si se efectua el casamiento, o se la Rescatan.

Despues qe ya esta conçertado el Casamiento ques despues de auer se conçertado en el dote El qual paga El marido A la muger qe entre los prinçipales destas yslas, de hordinario son çien taes en oro en esclauos y en preseas, ques Valor de quinientos, o seysçientos pesos, van por la desposada en casa de sus padres y traela Vn yndio en hombros, y llegando al piede la escalera, del desposado haçe el melindre y diçe qe no quiere subir y de que Ven qe no Vastan Ruegos sale el suegro y diçe qe le dará vn esclauo y que suba y por el esclauo sube, despues qe esta al fin de la escalera y Ve la casa del suegro, y la gente qe esta dentro vuelbe luego a haçer de la melindrosa, y El suegro le a de dar otro esclauo porqe entre dentro y ni mas ni menos le a de dar otro Presea porqe se siente y otra porqe Comiençe a comer y otra porqe comiençe a beuer despues qe ya estan juntos los desposados bebiendo se leuanta Vn viejo y diçe en altas Voçes qe callen todos qe quiere hablar y diçe fulano se casa con fulana pero es con tal condiçion qe si el andubiere destraydo y no acudiere a sustentar a su muger ella le a de dexar y no le a de Voluer Cosa ninguna, del dote qe le dió y della quedara

libre y se podra Casar con otro y por El consiguiente si Ella fuere Ruyn le podra quitar la dote qe le dió y dexalla, y Casar se con otra sea me todos testigos deste conçierto qe se haçe y acabado de deçir esto toman Vn plato de aRoz linpio Crudo y biene Vna vieja y toma las manos dereçhas de los desposados y ponelasençima del àRoz y junta la vna mano con la otra y en teniendo las juntas toma el arroz y de Rama lo porençima de todos los qe estan en el Vanguete y entonçes la vieja da vn grito y todos le Responden Con otro semejante y este es la consumaçion del matrimonio o casamiento y asta este Punto no les Consienten los Padres comer ni dormir juntos, en haçiendo esta ceremonia se la entregan por su muger pero si auiendo tratado El Casamiento Por terçera Persa El que se quiere Casar se aRepiente aunqe sea antes de auer se juntado con ella, y se quiere casar con otra, pierde la señal qe a dado porqe Ellos en començando a tratar El casamiento comiençan a dar El dote, y si Vno diçe en àlguna conuersaçion o borraçhera, yo me quiero Casar con fulana, hija de fulano y despues saliendo le al casamiento no quiere casarse le penan por ello y le quintan mucha pte de su haçienda

en El dote no tiene que Ver El desposado con el ni la despues de Rendido pagaualo de su bolsa, y si no del suegro y si El desposado no es de hedad para Casar se o la desposada es niña sirue a su suegro en casa, asta qe son de hedad para juntar se

Casamientos de los timaguas Los timaguas no haçen estas çeremonias por la falta de la haçienda ni tanpoco haçen las ceremonias de juntar las manos en el plato del aRoz por Respeto de los prinçipales por questa çeremonia es de solos los prinçipales pero consumen su matrimonio quando los juntan a entrambos a dos a beber en vn cañuto de la pitarrilla, y entonçes dan Vn grito y se van todos los combidados y quedan casados porqe nunca les juntan a beber asta ques ya gran Rato de la noçhe y esta propria çeremonia hagen los esclauos honrrados y ricos.--

Casamientos de esclauos Pero los esclauos Pobres qe siruen en casa enos se casan Vnos con otros sin beber ni sin alcaguete ninguno ni sin çeremonia mas de deçir El Vno al otro casemonos pero si Vn prinçipal tiene vn esclauo, de los ayoiyes qe le siruen en casa y lo quiere casar con esclaua de otro prinçipal de la misma calidad enbia Vna yndia por terçera, que diga El Amo de la esclaua qe quiere casar su esclauo con su esclaua y Conçertado El casamiento dale vna tinaja o tres o quatro Platos y no haçen otra çeremonia ninguna y lo que naçen destos es la mitad del amo de la esclaua, y la otra mitad del amo del esclauo y quando estos Vienen a tener hijos qe pueden seruir a sus amos quedan ellos heçhos tumaranpoques como emos diçho porqe en casandose Vn esclauo de Vn prinçipal con esclaua de otro prinçipal luego les dan casa por si y acuden a seruir a sus amos--Si se casa Vn libre con Vna esclaua o al Reues lo que naçe es medio esclauo y si ay dos hijos el vno es libre y el otro esclauo a escojer de los padres.--

En vna cosa pareçe qe Van fuera de toda Raçon y justa y es ques Vso entre ellos qe si vn yndio de otro pueblo deue a otro deste pueblo veynte pesos pongamos por caso y se los pide y no se los quiere pagar encojiendo Algun indio de Aquel pueblo donde le deuen aquellos Veynte pesos, aunque no sea pariente ni conoçido del que los deue le heçhan mano y le haçen pagar los Veynte pesos y es costumbre que al que paga estos veynte pesos el que los deuia primero le a de pagar quarenta pesos por ellos por

aquella fuerça qe le hiçieron a el esto diçen qe lo haçen por no entrar con mano armada a cobrar del otro pueblos sacan se sangre de los braços y los Vnos gustan _Amistades_ Para haçer amistades entre los qe estan Venidos ora sean particulares, o de pueblos con pueblos sacan se sangre de los braços y los Vnos gustan la sangre de los otros en Vna bellota, o en vn poco de vino y esta amistad no ay quebrantarla.

Echiceros. Bruxos. medicos. Ay en esta tierra Brujos y eçhiçeros aunqe Ay tambien buenos medicos qe curan con yeruas simples, especialmente contra qualquier Genero de ponçona, porqe ay muy admirables contra yeruas, son los naturales desta ysla muy agoreros de suerte qe por ninguna Via ningun natural se embarcaua en nauio donde fuese cabra o mono porqe deçian qe se auian de perder y desta muerte tienen otras mil abusiones, agora pocos años à ay entre ellos Vna heçhiçera la qual diçen qe la ynuentaron los naturales de ybalon despues de qe los españoles estamos aqui y es que ynuocan çiertos demonios que llaman naguined y arapayan, y macbarubac y con Aceyte de cocos y Vn colmillo de cayman sobre qe haçen sus sacrifiçios ynvocando los demonios y este aceyte venden vnos a otros, y quando lo Venden; haçen tambien sus sacrifiçios ynvocando al demonio pidiendole qe la virtud qe tiene se la traspase en aquel que se la compra y diçen qe con solo que le digan qe se muera Dentro de tanto tiempo se muere luego, si no le curan con otro açeyte qe Ay contra este y esta heçhiçeria a heçho muçho daño entre los pintados porqe El demonio haçe de las suyas, los Religiosos an procurado El Remedio desto con quitar les los aceytes y castigarlos--

Estornudar si Alguno Va a alguna guerra o haçer alguna Cosa de ynportançia, si Al salir de casa estornuda tienelo por mal aguero y buelue se.--

Fiestas No tienen estos naturales ninguna fiesta en todo El año qe la guarden mas de quando los maridos Van a las guerras no trauajan las mugeres en aquel tiempo

Al granar del aRoz tienen tambien siete dias quando comiençan a labrar sus sementeras, qe ni muelen aRoz para comer ni dexan entrar estranjeros en sus pueblos en todo este tiempo porqe diçen qe aquel es tiempo que estan Rogando a sus dioses qe les de buena coseçha.

Años y meses Reparten El Año en doçe meses aunqe no nombran mas de los siete [_sic_] y estos meses son lunares porqe los cuentan por las lunas, El primer mes es quando salen las cabrillas qe le lleman Vlalen, el otro mes le llaman dagancahuy ques quando desmontan los arboles para sembrar, el otro llaman daganenan bulan, ques quando juntan esta madera en las sementeras, El otro llaman, elquilin ques quando queman la sementera. El otro llaman ynabuyan qe es en tiempo de bonanças el otro llaman cauav ques quando desyeruan las sementeras el otro se llama[n cabuy: _crossed out in MS_.] yrarapun ques quando comiençan a cojer aRoz al otro llaman manululsul ques quando an acabado de cojer, con los demas meses, no tienen cuenta por que no tienen qe haçer en campo.

Bientos. tienen por opinion qe los Vientos salen de la mar, y fundanse en esta Raçon qe Ven ynçhada la mar; primero qe comiença a bentar

tortugas Ay en esta tierra muy gran cantidad de tortugas muy grandes mayores qe no adargas es cosa marauillosa, que quando se juntan El maçho con la hembra, se estan veynte y veynte y çinco dias pegados y estan tan enbeueçidos en aquel acto qe se heçhan los yndios a nado en medio de la mar y los atan los pies y las manos sin qe lo sientan y las sacan a tierra, y esto a mi proprio me a acaeçido haçerlo

Culebras. Ay en esta tierra culebras grandisimas qe son tan grandes como palmas, aunqe son bouas.--

Caymanes ay grandissima cantidad de caymanes qe son lagartos de agua en todos los Rios y por la mar qe haçen muçho daño.

gatos de algalia En muçhas yslas destas ay gatos de algalia.

tabones pajaros Ay en esta tierra vn genero de pajaro ques menor qe Vna gallina de castilla y ponen Vn guebo mayor qe de ansar ques casi El todo yema, y El pajaro entierra, los guebos vna braça debaxo de la arena. a la vera del agua y alli salen los pollos y con los piezitos haçia arriua, vienen desbiando la arena, y en estando aRiba luego al momento buelan.--

Palmas En todas estas yslas ay Gran cantidad de Palmas de cocos allan se piedras en algunos cocos tan grandes como abellanas que ellos preçian pero no se sabe hasta agora, la virtud qe tienen.

Saca se de las palmas gran cantidad de Vino qe saca vn yndio a la mañana de las palmas qe benefiçia dos arrobas de Vino y es dulçe y bueno y dell se haçe gran cantidad de agua ardiente, haçe se Vinagre bueno y buena miel de los cocos qe a falta de àRoz es buen sustento, haçen se basos y meçha para los arcabuçes y çestos de las ojas de suerte qe es arbol muy proueychoso.

Ay en estas yslas muçhos puercos y buenos cabras y gran cantidad de bufanos brabos qe façilmente tomandose çhicos se amansan, ay patos y algunas ansares traydas de çhina, ay gran cantidad de gallinas como las de castilla muy buenas y algunas qe no tienen colas qe tienen abusion de no comerlas los naturales, y son mejores qe las otras frutas de las qe ay en castilla no ay ninguna antigua en esta tierra con estar tan Veçina de la çhina a do ay tantas de la tierra propria, ay algunas y Raçonables como son muy buenos platanos nancas qe es fruta muy olorosa, y mayor quel mayor melon de españa macupas qe son como mançanas santores qe saben a menbrillo ay muy buenas naranjas y limones. Ay En la prouinçia de ylocos Vn arbol grande qe heçha la flor casi como la acçucçena qe tiene sabor de pescado y los yndios la cojen por la mañana y la cueçen y Comen en lugar de pescado y es cosa marauillosa, qe otro dia por la mañana esta otra vez llena de flor y ansi cada dia.

Ay por los montes donde Ay falta de agua Vnos bexucos grandes de a seys y ocho braças mas gruesos qe Vn dedo pulgar grueso qe cortandolos heçhan de si gran cantidad de agua, ques muy buena, conqe se Remedia la falta del agua sale de vn bexuco dos y tres cuartillos--

Capo 11

_Qe_ Trata de los Ritos y Çeremonias de los Moros de la Comarca de la Ciudad de Manilla y de sus Condiçiones

Dios batala la ley que antiguamente guardauan estos moros era que adorauan un dios qe llamauan entre ellos batala qe propriamente quiere deçir lios y deçian qe adorauan a aquel batala por qe era señor de todo y qe auia heçho los hombres y los pueblos y deçian qe este batala tenia muchos ministros qe enbiaua a este mundo a hobrar por ellos, lo qe aca se haçia a estos llaman anitos y cada anito tenia su offiçio vnos de las sementeras, otros de los nauegantes, otros de los qe yVan a la guerra, otros de las entermedades y ansi cada vno tenia El nombre del offiçio que tenia, como deçir El anito de las sementeras, el anito de la llubia, a estos anitos haçian sacrifiçio quando querian Algo de Cada vno conforme a su ofiçio la suerte del sacrifiçio era semejante a la de los pintados qe llamauan vn catalonan, qe es lo mismo qe Vaylan, entre los Pintados que es Como saçerdote y este haçia El sacrifiçio pidiendo Al anito lo que le querian pedir juntando mucho aRoz y Carne y pescado y haçia sus ynuocaçiones hasta ql demonio se le enrraua en el cuerpo mientras qe El catalonan estaua desmayado y basqueando, estan los yndios cantando y bebiendo y olgandose hasta qe El catalonan buelue en si y les da la Respuesta quel anito le daua a el y si era por enfermo ofreçian le muçhas cadenas y joyas de oro y deçian qe le Rescatauan la salud de aquel enfermo duraua este anito si era enfermo-el tiempo qe le duraua la enfermedad

Preguntando les qe porqe causa haçian El sacrifiçio al anito y no al batala deçian qe El batala es tan gran señor qe no le puede hablar nadie qe esta en el çielo y qe El anito ques de tanta Caledad y qe baxaua aCa a hablar les como El ministro del batala y qe ynterçedia Por ellos Vnan en algunas partes espeçialmente en las serranias en muriendoseles padre, o madre o pariente haçer de palo Vn ydolo pequeño y guardallo y asi ay casa, qe tiene çiento o ducientos de aquellos ydolos y a estos tambien llaman anitos porque diçen qe en muriendose Van a seruir al batala y asi les haçen sacrifiçios, ofreçiendoles Cosas de Comer y vino y joyas de oro Rogandole sea su ynterçesor con el batala, ques El que tienen Por dios--

Señorio de los moros Entre estos moros ay ni mas ni menos behetria qe en los pintados, qe auia prinçipales En sus Barrios a quien obedeçian qe castigauan sus delitos y les dauan las leyes qe auian de guardar y en los pueblos donde Auia diez o doçe prinçipales no mas Vno dellos El mas Rico era el qe obedeçian todos, tienen en mucho la antiguedad del linaje y ansi para ser señor aprouechaua mucho, quando haçian sus leyes para gouernar su Republica el mayor prinçipal a quien obedeçian los demas juntaua todos los demas prinçipales del pueblo en su casa y juntos proponia su platica diçiendo qe para Remediar muchos delitos qe se cometian era neçesario poner penas y haçer hordenanças para qe se Remediase y qe ellos pues qe eran los señores Viesen lo que les pareçia y que ordenasen, de suerte qe todos Vibiesen en Paz. desta puliçia careçian los pintados, porqe ninguno querià rreconoçer a otro por mas prinçipal, entonçes los demas Prinçipales Respondian qe les pareçia muy bien y que pues El era el mayor de todos hiçiese lo que le pareçiese ser justo qe ellos le dauan la mano, y asi El prinçipal haçia las leyes qe le pareçia ser necesarias porqe estos moros tienen letras de las quales careçen todos los demas naturales de las yslas y lo que el

hordenaua, aprobauan los demas prinçipales, y luego Venia vn pregonero que llaman Vmalahocan ques propriamente mayordomo y tomaua vna canpana, y salia por El pueblo y en cada barrio pregonaua las hordenancas, qe se auian hecho y El pueblo rrespondia que las obedecia y asi yva de en pueblo en Pueblo por todo El destrito de aquel principal y de alli adelante el que yncurria en la pena era lleuado Al principal y El le condenaua en ella y si la pena era de muerte y El condenado decia que queria ser esclauo se le perdonaua y quedaua esclauo, eran tambien jueçes los demas Prinçipales, cada vno en su barrio y quando se offrecia algun negocio de Calidad mandaua El principal mayor juntar todos los demas Principales para sentenciarlo, y concluydo con Voto de todos los demas usauan lleuar derechos, y no auia Cosa señalada en ellos, mas de lo que el proprio juez decia qe le diessen.

Casamientos Estos moros Vsauan sus casamientos de la mesma orden que Vsan los pintados en el dar El dote De suerte qe si El varon se apartaua y descasaua contra la voluntad de la muger, tenia perdido El dote y se quedaua Ella sin el y si la muger dexaua al marido Era obligada à Voluer el dote y si Cometia adulterio y por ello la dexaua el marido Voluia El dote doblado, y si aCaso la muger dexaua al marido por casar se con otro aquel con quien se Cassaua estaua obligado a dar al primer marido El dote qe auia dado y mas otro tanto de pena o lo qe El juez mandase, la muger adultera siendo prinçipal tenia pena de muerte cojiendola el marido en ynfragante y El adultero tambien y los podia matar, sin pena alguna, y si aCaso mataua al vno y se escapaua El otro auia Guerra abierta entre las parentelas, hasta qe El otro moria y si aCaso se esscapauan ambos, Rescatauan la vida a peso de oro, y si eran prinçipales tenian çien taes de pena, çinquenta la muger y çinquenta El delinquente, y con esto les perdonauan y quedauan amigos, y si eran timaguas tenian menos pena--

Guerras Las guerras y la esclauonia dellos tenian ni mas ni menos qe los pintados.

ladrones Era ley entre los naturales çerca de los ladrones qe Al que haçia hurto de menor cantia; qe eran hasta quatro taes qe son veynte pesos y siendo de alli para aRiba, era hurto mayor tenia de pena Voluer El oro y despues la condenaçion, al arbitrio del juez y era pena pecuniaria, y siendo hurto mayor qe se entendia de quatro taes para aRiba tenia de pena esclauo, y si el Vrto llegaua a vn cati de oro era la pena de muerte o de haçerlo esclauo, a el y a sus hijos, y los qe estubiesen dentro de su Casa.

Era tambien ley qe por El primer hurto era la pena pecuniaria y por El segundo esclauonia, y de alli para aRiua, era de muerte y si se le perdonaua era Como esta diçho aRiua haçiendole esclauo a el, y a su muger y hijos, y El hijo qe probaua estar fuera de casa, y posar en casa por si suya o de Algun pariente como Viuiese por si no se entendia la pena con El y asi era libre de suerte qe no cayan en la pena sino aquellos qe se allauan en casa, del delinquente por la sospeçha qe se tenia de saber todos del hurto--

Era tambien ley qe El que se descomedia al prinçipal conoçiendo le trataua mal de palabra, tenia pena de muerte, y si tenia posible para Rescatar la Vida, tenia de pena quince taes De oro, y si no tenia conqe o los parientes le ayudauan, a su Rescate; y El

delinquente pedia; misericordia conqe seria esclauo se le otorgaua la vida y asi quedaua Por Esclauo del ynjuriado porqe la pena del dinero era para El teniendo posible y si la pendencia, era entre personas yguales, prinçipales tratandose por justicia y por sus leyes tenia la mesma pena y si no queria el delinquente pasar por lo sentenciado era luego pregonada la guerra, entre los pueblos y parcialidades qe sucedia esto y de Alli los qe se prendian eran esClauos

Podiase este rrescatar, despues dando la cantidad y en el entreianto seruir Era ley qe si Venian dos timaguas y auia aFrenta en alguno dellos tenia de dinero Conforme A la Calidad de la afrenta y esto era al arbitrio del juez y si el afrenta era grande la pena asimismo y no teniendo de qe pagarla pasando de çinco taes quedaua por esclauo del ynjuriado y si El Delinquente pedia de med al principal, o a otro amigo, le prestase El su dinero quedaua por esclauo del que le prestaua El dinero y esta esclauonia se entendia, con solo El delinquente, y no con sus hijos ni parientes saluo con los hijos qe Vbiesse despues de esclauo.

Es también Vsança entre los naturales desta ysla ayudar se vnos a otros con dineros prestados, y El que los lleua prestados de Algun principal o timagua, quedaua de que passado çierto tiempo en qe auia de tratar con aq dinero pagaua la cantidad qe le fué prestada, y de mas desto por la buena obra qe se le haçia partia la ganançia

Era ley qe si el que llevaua El dinero que braua, y No tenia de qe pagar, quedaua por esclauo del y los hijos. qe tubiere despues que los de antes son libres.--

puedese Rescatar despues dando la cantidad el ó sus hijos. Era ley entre estos qe si dos personas haçian Compañia de merCaduria, y ponian tanta cantidad de dinero el vno y El otro yva el vno a tratar Con El dinero de entrambos, si yendo este tratante su viaje, le prenden enemigos, es obligado El otro Compañero que queda en el pueblo a aCudir a Rescatar al otro con la mitad del preçio qe conçiertan y El preso queda libre ansi de la deuda, de la conpañia Como del Rescate qe despues se le da, y No es obligado a pagar nada y si El que lleua El dinero se pierde por Culpa suya jugandolo o gastandolo con mugeres, esta obligado a pagar, Al Conpañero la Cantidad qe le dio y quedan obligados El y sus hijos a la paga y si la cantidad es tanta qe No alcançan conqe pagar dentro del tienpo qe se Conçiertan, queda por Esclauo del otro y la mitad de sus hijos qe si tiene dos hijos El vno queda por esClauo y el otro libre, y si tiene quatro quedan los dos esclauos y los dos libres, y ansi era siendo en mas cantidad y si los hijos alcançauan despues conqe pagar la deuda del padre quedauan libres.

Era ley al que mataua a otro qe muriese y si pedia misericordia quedaua por esclauo del padre o hijos del muerto o del pariente mas çercano y si eran quatro o cinco en la muerte pagauan todos Al señor del esclauo el precio qe El esclauo podia Valer y despues El juez los sentençiaua En lo que Le pareçia y si no tenian de qe pagar la pena quedauan por esclauos y si el muerto era timagua tenian pena de muerte los que se prueua qe lo mataron y si los Condenados piden misericordia quedauan por Esclauos de suerte qe despues de Condenados estaua en el escojer de los delinquentes la muerte o la esClauonia y si El muerto era Prinçipal todo El pueblo donde se prouaba qe lo mataron auian de ser esclauos matando primero los mas

culpados y si eran personas particulares, de tres o quatro o mas morian los mas culpados sin Remedio de misericordia y los demas y sus hijos esclauos. Quando algun entraua en Casa de Algun prinçipal de noçhe contra la voluntad de su dueño tenia pena de muerte y era costumbre quando se cojia alguno destos dalle primero tormento por saber si lo auia enbiado algun otro prinçipal y si confesaua auer sido mandado tenia pena de esClauo y El que lo enbio tenia pena de muerte de la qual podia librar se pagando cantidad de oro por El delito.

El que cometia Adulterio siendo entre prinçipales tenia pena de muerte y la mesma pena tenia El que era cojido con alguna mançeba de algun prinçipal y era desta suerte qe siendo cojido en ynfragante le podia matar El marido, y si aCaso se escapaua, huyendo tenia pena de dinero, y hasta qe la pagauan tenia pendençia entre las parentelas donde suçedia, lo proprio era entre los timaguas.

Esta Relaçion saco por mandado del Gouernador destas yslas miguel de loarca Vz° de la Villa de areualo Vno de los primeros que en ellas entraron curioso é estas cosas y asi la tengo por çierta y Verdadera--

[_Endorsed at end_: "Relaçion fha en conformidad de Vna çedula de su magd Sobre cosas particulares destas yslas--Es para El Real consejo de las yndias."]

[_Endorsed on outside wrapper_: "Relacion de las Yslas Filipinas, su descubrimiento, poblaçiones de españoles, usos y costumbres de sus naturales, religion, &a; hecha en virtud de Real Cedula por Miguel de Loarca, vecino de la villa de Arèvalo, uno de los primeros conquistadores y pobladores."]

RELATION OF THE FILIPINAS ISLANDS BY MIGUEL DE LOARCA

A treatise on the Philipinas islands, in which an account is given of all the islands and peoples reduced to the obedience of his royal Majesty, King Don Phelippe, our sovereign, and of the settlements that the Spaniards have made there; together with an account of the form of government among both the Spaniards and the natives, and of some customs of the Indians and Moros of these islands.

Although the chief settlement of the Spaniards in these islands is the city of Manila, and the island of Luçon, wherein it is situated, is the finest and richest of all the islands discovered (on which account we should discuss and begin to write about it first), yet, since the island of Çubu was the first to be settled, and served as the starting-point for the conquest of all the others; and, too, because your Lordship has allowed me so short a time in which to write this relation; and because I know them better, I shall commence with the island of Cubu and those adjacent to it, the Pintados. Thus I may afterward speak more at length on matters pertaining to this island of Luçon and its neighboring islands--where, because the natives are Moros, they differ somewhat from the former in customs, mode of life, and language.

It cannot be denied that the men who have come to this country have lacked the desire for investigation, since neither ecclesiastics nor laymen have undertaken to relate what occurred in this land at the time of its conquest; and, although it is said

that father Fray Alonso de Buyça has written a large volume in Mexico on this subject, I doubt the assertion, because I have seen his letters which came last year, in this ship "Sanct Martin." In these letters he asked for exact information about events in this region of sixteen years ago, because he mistrusted the accounts which have been sent to him from here; he also requested any one of the settlers of this land, who should write, to give a faithful account of all things for times to come. At present, it will be difficult to arrange such information, and much time will be needed therefor. In view of this and the short time before me, I shall not treat of that particular subject; but I shall fulfil what his Majesty has ordered from your Lordship by his royal decree; and I shall also add a description of some customs of the natives, in order that, since they are his Majesty's vassals, he may know of the barbarous life from which he has delivered these natives, and of the civilized manner in which they now live under his gracious sway.

Chapter First

Of the island of Çubu, and of the other islands under its jurisdiction.

Island of Çubu. The island of Çubu, the first to be settled by Miguel Lopez de Legazpi, has a circuit of nearly a hundred leagues and a length of about fifty leagues, for it is very narrow. At the two extremities it is, at the widest place, about twenty leagues wide. One extremity, the one lying toward the north, is called Burula. The other extremity, which we call Las Cabeças and the natives Sanbuan, lies at the south; for, as is inferred, this island runs nearly north and south. One cannot sail very close to the island; because all along the coast where the town of Çubu is situated are to be found bays that curve in different directions. On the other and western side of the island the land lies almost northeast and southwest. The entire island contains about three thousand five hundred Indians, living in different, and for the most part small, villages. Here I shall mention only the principal ones, for the others are small, numbering only from eight to ten houses.

Jaro. Jaro is under the charge of an encomendero who also holds an encomienda elsewhere; the village is inhabited by five hundred Indians.

Daraguete. Daraguete is also an encomienda, with two hundred Indians.

Peñol. El Peñol is also an encomienda, with two hundred Indians.

Jaro. Jaro is likewise an encomienda, with two hundred Indians.

Temanduc. Temanduque is also an encomienda, with five hundred Indians.

Temanduc. In the same province of Temanduque another encomendero has seventy Indians; and it is also an encomienda.

Barile. The village of Barile is another encomienda; it is inhabited by four hundred natives. It is also an encomienda.

Burugan. The village of Burugan has about seventy Indians. It is also an encomienda.

Candaya. The province of Candaya has three hundred and fifty Indians, belonging to two encomenderos. It is also an encomienda.

No Spaniards are to be found in any of the principal encomiendas, in all this province, although fourteen of them possess holdings therein. These Spaniards, because they were inhabitants of the town of Çubu, received each two or three small villages, together with service from the Indians, fowls, and other means of maintenance; for the principal encomiendas were distant from them thirty or forty leagues, more or less. On the other side of the above-mentioned native communities, at about two arquebus-shots from the Spanish town of Ssantisimo Nombre de Jesus (thus called because an image of the child Jesus, of the time of Magallanes, had been found there, and was held in great reverence by the Indians), is a village of the natives belonging to the royal crown, with about eight hundred Indians. The commander Miguel Lopez de Legazpi exempted this community from paying tribute; for they had always taken sides with the Spaniards, and had helped them to conquer some of the other islands.

Observations on the island of Çubu. In this village live thirty Spaniards, and as many encomenderos. Counting both citizens and soldiers, fifty or sixty Spaniards ordinarily reside there.

Alcalde-mayor in Çubu. The governors of these islands have always appointed an alcalde-mayor, at a salary of three hundred pesos taken from the fines forfeited to the royal treasury; and the royal treasury not being sufficient, the alcalde-mayor has not, as yet, appointed any deputy. There are six regidors, who, up to the present time, have been elected annually. The past governors appointed also an alguazil-mayor, whom they can remove and replace at their pleasure. There is no remuneration for this last office; and it is therefore given to an encomendero, who is generally one of the leading citizens. There are also two alcaldes-in-ordinary, and one notary for the cabildo and the public. If all these officials were not also encomenderos, they would be unable to support themselves; for the town possesses no commerce which comes within their reach. The town has the best port of these islands, and it was for this reason that Miguel Lopez de Legazpi founded a settlement there. It was he who founded the above-mentioned town, in the year of sixty-four. Perhaps the traffic with Maluco may prove of advantage to the town, for there is no other place in its vicinity with which any commerce could be carried on. Its neighborhood is poor, and all the vast district round about lacks gold mines or gold-placers, except in the island of Mindanao--and that but little--as will be described later. The island of Çubu produces a small quantity of rice, borona, and millet and little or no cotton; for the cloth which the natives use for their garments is made from a kind of banana. From this they make a sort of cloth resembling colored calico, which the natives call _medriñaque_. In these islands great value is set upon the land which can produce rice and cotton, because cotton and cloth find a good market in Nueva España. The condition of the people will be described when I shall speak of all the Pintados in general, for they all are very similar. All are provided with fowls, swine, a few goats, beans, and a kind of root resembling the potatoes of Sancto Domingo, called by the natives _camotes_. After rice, fish is the main article of maintenance in this and other islands, for it

abounds in all of them, and is of excellent quality in this island of Çubu. Although deer have been found in all the islands discovered hereabout, there are none here; and if any should be brought hither from elsewhere they would immediately die.

Island of Matan. To the south of the settlement of Çubu, about two arquebus-shots from it, lies the island of Matan where Magallanes was killed; it forms the port of Çubu. The island is about four leagues in circumference, and half a league wide; it has a population of about three hundred Indians, scattered through four or five small villages, all of which are under the jurisdiction of the town of Çubu.

Island of Vohol. On the other side of the island of Matan, and farther south, about eight leagues from the settlement of Çubu, lies the island of Vohol, which is an encomienda with two thousand Indians. The natives of this island are closely related to the people of Cebu and are almost one and the same people. Those inhabiting the coast regions are mainly fishermen. They are excellent oarsmen; and, before the arrival of the Spaniards, they were accustomed to cruise about in their vessels on marauding expeditions. They are also traders. There was once a large town in this island [Bohol], which, shortly before the Spaniards came hither, was plundered by the people of Maluco, and the majority of its inhabitants were dispersed throughout the other islands, where they now dwell. The settlements inland among the mountains are small and poor, and are not yet wholly under subjection. In this island, as well as in the many nearby uninhabited islets--these latter abounding also in fish--there is great abundance of game, both deer and boars. The island is about forty leagues in circumference, and eight or ten leagues wide.

Island of Negros. West of the island of Çubu lies another island, called by the Spaniards Negros, because its mountain districts are inhabited by some blacks. The Indians have given it various names, such as Nayon, Mamaylan, and others, all taken from the names of villages in different parts of the island. It contains some six or seven thousand Indians; but the number of blacks has not been ascertained, because of their hostility. The side of the island facing Çubu is sparsely populated; for it has only one settlement worthy the name, which is situated on the river Tanay, and half of the Indians on that river are natives of Bohol. The southern side, facing the island of Panay and the town of Arevalo, is thickly settled; for it contains the rivers Ylo, Ynabagan, Bago, Carobcop, and Tecgaguan--all fertile districts, rich in foods, such as rice, swine, and fowls; and abounding in medriñaque, although there is no cotton. The coast facing Çubu lies about two and one-half leagues from that island, and on the side facing the island of Panay and the town of Arevalo there is a like distance; so that two straits are made with these islands of Zubu and Panay respectively. The side toward Çubu has three encomenderos; and that toward Panay and the town of Arevalo has eight. All other encomenderos hold encomiendas in other parts of the island. This island is about ninety leagues in circumference, and about twelve or thirteen leagues wide. None of its villages belong to his Majesty.

Island of Fuegos. Near the straits formed by Negros Island and that of Çubu, there is an island which we call the island of Fuegos. It has a circuit of ten leagues, and a population of nearly two hundred Indians, and is a part of an encomienda. This island produces a great quantity of wax.

Island of Camotes. East of the island of Çubu are two small islets, each about five leagues in circumference. They are called the islets of Camotes. The two are inhabited by about three hundred Indians, and are under the jurisdiction of the city of Çubu. The people are poor, although they possess some wax and a great quantity of fish. The villages are small, consisting of only seven or eight houses each. These islets are about three leagues from the island of Çubu, and seven from the city of that name.

Island of Baybay. About three leagues farther east lies the island of Baybay, or Leyte, as it is also called. It is a large and well-provisioned island, although the people dress in medriñaque. Leyte is thickly settled; it may have a population of fourteen or fifteen thousand Indians, ten thousand of whom pay tribute because that has been a people hard to conquer. There are twelve encomenderos; but his Majesty owns none of the Indians. This island is about eighty leagues in circumference, and fifteen or sixteen wide. Its principal settlements and rivers are Vaybay, Yodmuc, Leyte, Cavigava, Barugo, Maraguincay, Palos, Abuyo, Dulaque, Longos, Bito, Cabalian, Calamocan and Tugud. This island possesses neither mines nor gold-placers; the only cloth it produces is medriñaque, which, as I have said before, resembles calico, and is made from a kind of wild banana.

Island of Panaon. Between this island and that of Mindanao, which lies north and south, is the island of Panaon. It is about eight leagues in circumference, and three leagues wide. The population is poor, and numbers only about one hundred men, who belong to one encomendero.

Island of Siargao. Twelve leagues from the island of Panaon, and next to the island of Mindanao, is the island of Siargao, which is about fifteen leagues in circumference and six leagues wide. It may have about four hundred inhabitants, and its villages are built around rough and dangerous estuaries. There is only one encomendero. The people are poor because of their indolence; for although there are numerous small islets near this island, which contain many gold-placers, they do not work them. They give as a reason that, if the corsairs should discover that they were working these mines, they would come hither to take them captive; but even now, when no one can molest them, they do not work the mines, and hence we may infer that their poverty is mainly due to sloth.

Island of Maçagua. West of the island of Baybay is a small island called Maçagua, about which father Fray Andres de Urbaneta related so many wonders. It is four leagues in circumference and one league wide; it has about sixty inhabitants, as well as an encomendero. The people are poor and wretched, possessing nothing but salt and fish.

Island of Maripipe. At the other side, northeast from the island of Baybay, lies the island called Maripipe. It is a very mountainous island, and by reason of its great roughness it is barren. It is about seven leagues in circumference and two and one-half leagues wide. It has a population of about one hundred Indians.

Island of Limancaguayan. Nearer the strait and cape of Espiritu Santo, and about three leagues from Maripipe, is another island, called Limancaguayan. Like Maripipe

it has a circumference of about seven leagues, and a population of one hundred. This island produces rice and medriñaque. These two islands belong to one encomendero, together with the island of Fuegos, which we mentioned above.

Island of Masbate. Farther to the north-northeast of this island of Leyte lies the island of Masbate, which is about thirty leagues in circumference, and six leagues wide. It has about five hundred Indians, who belong to one encomendero. It has also gold mines from which much gold was dug, for the natives of Camarines went thither to work them; but they have left the place on account of the Spaniards, and therefore the mines are not worked. The island of Leyte is considered the centre of all the islands mentioned above, because they all lie in its neighborhood.

Island of Bantayan. About two leagues north of the island of Çubu lies the island of Bantayan. It is about eight leagues in circumference and two leagues wide, and has a population of about one thousand Indians; this and the above-mentioned island of Vohol are under the charge of one encomendero. Its inhabitants are well-disposed. They have large fisheries, for there are many shoals near the island. There is also a pearl-fishery, although a very small one. The land produces millet and borona, but no rice, for all the island has poor soil notwithstanding that it is level. Some of the natives of this island cultivate land on the island of Çubu, which, as I have said, is two leagues away. The island abounds in excellent palm-trees--a growth common to all the Pintados islands, for all of them abound in palms.

Island of Capul. Capul is the name of the island forming a strait with the island of Luçon. Through this strait pass all the ships which come from España. Capul is about twelve leagues in circumference and four leagues wide. It has about five hundred Indians, and belongs to one encomendero. Its inhabitants are poor and have rice and medriñaque.

Island of Viri. Still nearer the cape of Espiritu Santo, and in the strait itself, lies the island of Viri. It is about five leagues in circumference and two leagues wide. It has a population of about one hundred. This island and that of Maçagua are under one encomendero.

Island of Ybabao. Southeast of the island of Baybay, lies the island of Ybabao, or as it is also called, the island of Candaya [also Tandaya]. It is about one hundred and ten leagues in circumference. No one has yet gone through the land, and therefore its width is not known. They say that its population is as large as that of the island of Baybay, and that it is a fertile and well-provisioned island. The people seen by the Spaniards will number about five thousand Indians, who are scattered through the following villages:

The village of Daguisan. The river of Ylaga. The river of Yba. The river of Basey. The villages of Hubun. The villages of Balingigua. The villages of Guiguan. The river of Sicavalo. The river of Bolongan. The river of Sibato. The village of Tinagun. The River of Calviga. The estuaries of Ulaya. The river of Paguntan. The river of Napundan. The river of Bolo. The river of Pono. The river of Gamay. The villages of Panpan. The river of Catubi. The river of Volonto. The river of Yuatan. The river of Pagaguahan. The village of Baranas. The village of Arasan.

Islands of Bantac. Close to the island of Ybabao, on its eastern side and in the gulf of Nueva España [_i.e._, Pacific Ocean], are to be found two islands, called Bantac. They are thinly populated, and according to what the Indians say, no one has yet set foot on them.

Verde Island. On this same side, opposite the town of Guiguan on the gulf side, lies Verde Island. It is about eight leagues in circumference, and four leagues wide. It contains about one hundred and fifty Indians.

Island of Canaguan. On the western side, opposite the river of Tinahon, lies the island of Canaguan, which is about four leagues in circumference and one league wide. It contains about one hundred men.

Island of Caguayan. The island of Caguayan lies very close to the western side of the island of Ybabao, and is three leaguo in circumference and one league wide. Its population numbers two hundred men.

Island of Batac. The island of Batac, which is near this place, contains one hundred men. All these islands which have been mentioned are under the charge of the encomenderos of Çubu, and under the jurisdiction of the city by the same name; so that, counting each island by itself, and that part of the island of Mindanao which has been explored, the jurisdiction of the city of Çubu extends over a circuit of six hundred and sixty-seven leagues.

Island of Mindanao. Of all the islands discovered up to the present time, Mindanao is supposed to be the largest, although but few of its inhabitants are friendly--almost none, in fact--and those dwell along the coast. The Spaniards have explored only about one hundred and fifty leagues of this island, namely, from the river of Catel to the principal river, which is called Mindanao. From the city of Çubu one has to sail southeast to reach the nearest point of Mindanao, which is called Dapitan. Dapitan has a port, and lies in the middle of the discovered section of the island. Once this section was thickly populated, but now there are only a few inhabitants left. It produces rice and gold, for there are gold-placers and mines all over the island; but the gold is found in so small a quantity that it can hardly be detected. From Dapitan to the point of Cinnamon there are more than thirty rivers whose banks are settled.

Observations on the Island of Mindanao. But those who live along the shore are very few, and are called Lutaos--a name applied to a tribe of people in this land, whose only means of sustenance is derived from fishing; and who take their wives, dogs, cats, and all their possessions in their boats. The fish that they catch they trade with the people of the mountains.

Tree-dwellings of the mountaineers of Mindanao. The mountaineers of this island build their houses in certain trees, so large that in each one a house is built which can contain forty or fifty married men and their families; the tree serves as a fortress against the enemy. As far as seen this region abounds in wax. The land is very rough and mountainous, and the inhabitants dress in mediñaque cloth.

Forty leagues from Dapitan, on the side facing Maluco, is Cavite Point, where there is abundance of cinnamon; this is the district which extends toward Maluco.

Island of Taguima. Not far from this Cinnamon Point, lies the island of Taguima, which is about fourteen leagues in circumference, and four leagues wide. It has a population of about five hundred Indians, with two encomenderos. In all parts of Mindanao are found a great many civet-cats. The Portuguese ships, on their way from Malaca to Maluco for cloves, pass by this island, and formerly did much harm to the natives, often committing acts of treachery while making that passage. Civet-cats are found in all parts of the island of Mindanao; but the people are poorly supplied with food and clothing.

Island of Soloc. Twenty leagues from this Cinnamon Point lies the island of Soloc. Its inhabitants are Moros from Burney. It was discovered at the same time as was the river of Burney. The island is about twenty-four leagues in circumference, and is said to have somewhat more than one thousand inhabitants. It is said to have elephants and a fine pearl-fishery. It belongs to one of the encomenderos of Çubu, and is within the jurisdiction of that city.

Island of Mindanao, continued. All the region northeast of Dapitan, as far as the river of Butuan, is under one encomendero, except the villages of Gonpot and Cagayan. These two villages, on account of their production of cinnamon, are under his Majesty, although their population is small, not exceeding two hundred men. The same encomendero has charge also of the district between Dapitan and almost to the Cinnamon Point, so that his encomienda in this island of Mindanao is of nearly sixty leagues' extent; he is also encomendero of the above-mentioned island of Soloc, and holds another encomienda in the island of Çubu. With all this, he is poor [and dying of hunger: _crossed out in original MS_.], and cannot help laying hands on all the discovered land of Mindanao

Rivers: Paniguian, Ydac, Matanda, Ytanda, Tago, Ono, Beslin--all of which have about three thousand men, for the most part hostile. Around the river Butuan, which belongs to Guido de la Veçaris, dwell about six hundred Indians who are in this island. Farther on are to be found the rivers Surigao, Parasao and others, all poor regions notwithstanding their gold-placers. The same may be said of the rivers Paniguian, Ydac, Matanda, Ytanda, Tago, Ono, and Beslin--all of which have a population of about three thousand, mostly hostile.

Two attempts have been made to explore the chief river of Mindanao--the most important of the island, and from which the island of Mindanao derives its name--but with little result, for our people have been able to discover only six or seven villages. Of these villages the principal one is where the petty king lives; others are Tanpacan, Boayen, and Valet, with others, which, according to what has been seen, have a population of a little more than three thousand, although it is reported that there are many more than that number.

Island of Camaniguin. Opposite Butuan River, in the direction of Çubu, and between Vohol and the island of Mindanao, lies the island of Camaniguin. It is about ten leagues in circumference, and has a population of about one hundred Indians.

This island is two leagues from Mindanao. It is a craggy and mountainous island. It produces some wax, and la gente della por la mayor parte anda sienpre muy city of Çubu.

Chapter Second

Of the island of Panay and of the district under its jurisdiction

Island of Panay. Twelve leagues from the nearest point of Çubu, and two and one-half leagues from Negros Island, lies the island of Panay, the most fertile and well-provisioned of all the islands discovered, except the island of Luçon; for it is exceedingly fertile, and abounds in rice, swine, fowls, wax, and honey; it produces also a great quantity of cotton and medriñaque. Its villages stand very close together, and the people are peaceful and open to conversion. The land is healthful and well-provisioned, so that the Spaniards who are stricken with sickness in other islands go thither to recover their health. The natives are healthy and clean; and although the island of Çubu is also healthful and has a good climate, most of its inhabitants are always afflicted with the itch and buboes. In the island of Panay the natives declare that no one of them had ever been afflicted with buboes until the people from Bohol--who, as we said above, abandoned Bohol on account of the people of Maluco--came to settle in Panay, and gave the disease to some of the natives. For these reasons the governor, Don Gonçalo Ronquillo, founded the town of Arevalo, on the south side of this island; for the island runs almost north and south, and on that side live the majority of the people, and the villages are near this town, and the land here is more fertile. In this town dwell fifteen encomenderos, who have among them about twenty thousand Indians, all pacified and paying tribute. Since the town is situated on the side nearest Negros Island, its nearest neighbor, the above-mentioned governor placed under its jurisdiction the rivers Ylo, Ynabagan, Bago, Carobcop and Tecgaguan--which, as has been said before, constitute the best district of Negros Island. For all these reasons, people flocked thither to build their houses; and the place has become the best-provisioned district in all the islands. This island of Panay provides the city of Manila and other places with a large quantity of rice and meat.

Alcalde-mayor of Arevalo, with a salary of 300 pesos. The city of this island has one alcalde-mayor, four regidors, one alguazil-mayor, two alcaldes-in-ordinary, and one notary for the public and for the cabildo. The regidors are elected for life, and the alguazil-mayor remains in office as long as does the alcalde-mayor. Being a new town, there are few lawsuits; and the notary can depend on no other compensation than that which he derives from lawsuits among the Indians (for he accompanies the alcalde-mayor on his official visits), and from the cases which are brought before the law for settlement. This city holds jurisdiction over a circuit of three leagues, but it possesses no territory of its own.

The following are the principal communities in this island:

The village of Oton, next to the town. The village of Ticbaguan. The river Jaro. The river Yvahay. The river Ajuy. The river Harahut. The river Panay. The river Aclan. The village of Antique. The village of Bugason.

and others of less importance. The alcalde-mayor receives a salary of three hundred pesos, paid from the fines forfeited to the royal treasury; and if those do not suffice, he will be empowered by the governor and other royal officials to collect the tribute which his Majesty receives in that island--from somewhat more than two thousand men, who dwell in the vicinity of the rivers Haraut, Ajuy, and Panay--the fifths of the gold which is dug in that region, almost nothing in amount. This town is about fifty leagues from that of Santisimo Nombre de Jesus in the island of Çubu. As this island contains great abundance of timber and provisions, it has almost continuously had a shipyard on it, as is the case now at the location of the town of Arevalo, for galleys and fragatas. Here the ship "Visaya" was launched. This island is about one hundred leagues in circumference.

Island of Ymaraes. About two arquebus-shots from the island of Panay lies the island of Ymaraes. It is about twelve leagues in circumference, and has a population of about five hundred Indians, all of whom are in charge of one of the encomenderos of the island of Panay. It abounds in rice, cotton, honey, wax, and much game, as is usual in all the islands. It has much timber, which serves for the shipyards, and for house-building in the neighboring islands. Although of such extent, Ymaraes comes under the jurisdiction of the town of Arevalo.

Island of Cuyo. Opposite Antique, which is located in the island of Panay, and about sixteen leagues farther in the same westerly direction, lies the island of Cuyo. This island is also in charge of one of the encomenderos of the island of Panay, and has a population of about eight hundred. It abounds in rice which bears a reddish kernel, because the soil is of that color. A great many goats are being raised, for the region is favorable for that. There are large fisheries, and some pearls are gathered. A large quantity of cotton cloth is woven there, although the cotton is not produced on the island. Formerly many ships from Burney were wont to come to barter for _bruscays_, which are a kind of sea-shell which in Sian is used as money, as cocoa-beans are used in Nueva España. It is under the jurisdiction of Arevalo, although the authority of that town has never been exercised therein. This island is twelve leagues in circumference.

Islets of Lutaya. Not far from this island are five [seven] very small islets called Lutaya, Dehet, Bisucay, Cadnuyan, Tacaguayan, Lubit, and Tinotoan. The people are very poor, and are kept in slavery by the chiefs of the island of Cuyo. These islets, all together, contain somewhat more than one hundred men. The chief occupation in all these islets is making salt and mats--the latter from rushes, for they are a wretched people. These they pay as their tribute. This island is six leagues in circumference.

Island of Osigan. Northeast of the island of Panay and three leagues from its extreme point, lies the island of Osigan, which we call the island of Tablas. It is about eighteen leagues in circumference, and is quite mountainous. Wax is collected there. It has a population of about two hundred and fifty Indians, living in small villages.

Island of Çibuyan. Six leagues from Osigan lies the island of Çibuyan. It is about twelve leagues in circumference, and six leagues wide. It has about three hundred Indians, of whom two hundred are under one of the Panay encomenderos. In this

island are to be found very good gold mines, but they are not properly worked, for the Indians are all Pintados, and are very slothful. They belong to the jurisdiction of Arevalo.

Island of Buracay. About two arquebus-shots from the north point of the island of Panay, lies the island of Buracay. It is about three leagues in circumference, and one-half league wide. It is inhabited by about one hundred Indians, who cultivate rice there, and in addition derive profit from some goats.

Island of Anbil. One half league from this island is another island, called Anbil. It is about three leagues in circumference, and one wide. Its fifty Indians are mostly ship-builders.

Island of Simara. About two leagues from the island of Tablas--or, as it is also called, Osigan--lies the island of Simara. It is about four leagues in circumference, and two leagues wide. It has a population of one hundred and fifty. These people are traders, and raise goats, and therefore the island is called Cabras ["Goats"] Island. It is about twelve leagues from the island of Panay.

Island of Sivaay. Four leagues west of the north point of Panay, is the island of Sivaay. It is five leagues in circumference, and one and one-half leagues wide, and has a population of seventy Indians.

Island of Similara. About three leagues farther, toward the island of Mindoro, is found the island of Similara, with a population of ninety Indians. It is four leagues in circumference, and one league wide. All the people of these islets gather a very scanty harvest; they make salt, and are traders.

Island of Batbatan. South of the north point of Panay, and about one and one-half leagues from that island, lies the island of Bacbatan, with a population of eighty Indians. The island is about three leagues in circumference, and one league wide. The inhabitants raise their wheat and produce their wax on the island of Panay. All these islands--Buracay, Anbil, Simara, Sivaay, Similara, and Bacbatan--are under one of the encomenderos of Panay.

Island of Banton. The island of Banton lies about one and one-half leagues from the island of Simara, or Cabras. It is about eight leagues in circumference and three leagues wide, and has two hundred Indians. The island is very craggy; it abounds in palm-trees, potatoes, yams, and wax. The people are traders.

Island of Donblon. The island of Donblon lies between Çibuyan and the island of Tablas. It is seven leagues in circumference and three leagues wide. Donblon is inhabited by nearly two hundred and fifty Indians, and abounds in wax. This island and that of Banton come under one of the Panay encomenderos, and under the jurisdiction of the town of Arevalo. The jurisdiction of this town extends also over the islands of Ymaras, Cuyo, Bacbatan, Sivahi, Similara, Buracay, Anbil, Simara, Osaygan, Banton, Donblon, Cibuyan, and over the larger populated section of Negros Island--namely, from the cape of Sitaravaan to Siparay, an extent of more than twenty leagues. Banton, which is the last island of this jurisdiction, lies about fifty-five or fifty-six leagues from the town of Arevalo.

Island of Cagaian. Sailing south-southeast from the town of Arevalo, one comes to the open sea; for there are no other islands in that direction except the ones called Cagayan--two low islets about fifteen leagues from the island of Panay. They are surrounded by many low reefs; and unless their narrow entry is well known, the ships which go there encounter great dangers. These islands have about four hundred inhabitants, all of whom are very skilful ship-builders. It is said that a few years ago the natives peopled these islands in order to fortify themselves by the reefs, for fear of the pirates. Then they undertook to return to the island of Panay in order to dwell there; but very many of their women died there. Seeing this, as they are soothsayers they returned to the islands of Cagayan, whence they set out every year, and scatter themselves over all the islands to build ships. These Indians of Cagayan have made his Majesty's ships in these islands, as well as the galleys, galliots, and fragatas. They also help in repairing and righting ships. Being therefore the most important people in these islands, the adelantado Miguel Lopez de Legazpi allotted the islands of Cagayan to the encomenderos of Negros Island. Afterwards it seemed best to put them under his Majesty's control. Thus the town of Arevalo holds jurisdiction over an extent of about two hundred and fifty leagues.

Chapter Third

Of the Island of Luçon

Island of Luçon. The island of Luçon is the most important island of the whole group which has been discovered. It is thickly populated and well-provided with rice and gold-mines. These mines have yielded much gold, especially in the province of Ylocos. This island is divided into three provinces, the chief of which is that wherein was founded the city of Manilla, the capital of this kingdom and the seat of the governor. Hither flock more Spaniards than are found in all the other islands. One league and a half from this city is the port of Cavite, where the ships from Nueva España anchor. The ships from Çhina enter also through the river of this city, for they usually come in great numbers to carry on their trading. His Majesty has a fortress here, with its governor, three royal officers, one major, and one royal standard-bearer--all appointed by his Majesty. There are also two alguaçils-mayor--one of court and one of the city, one government secretary, one notary for the cabildo, and four notaries-public. Manila is also the seat of the bishop of all the islands; in this city he resides and has his cathedral church. There are also seven regidors in this city; three of them are proprietary magistrates, and are appointed by his Majesty--namely, Captain Juan de Moron, Don Luis Enrriquez, and Pedro de Herrera. The other four are appointed by the governor--namely, Captain Graviel de Ribera, Captain Joan Maldonado, Captain Bergara, and Captain Rodrigo Alvarez. There is also a convent of Augustinian monks, one of descalced friars, and one house of the Company [of Jesus].

The city is situated midway on the shore of a large bay, about twenty leagues in circumference. The region all about this bay is fertile, and well-provisioned. The inhabitants are Moros, instructed in that faith by those of Burney. The river has a fresh-water lake, about five leagues above this city; it is more than twenty leagues in

circumference. The district abounds in rice and cotton. The people possess much gold in the way of trinkets, but there are no mines in this region. This same race of Moros have made settlements as far as the villages of the Batangas; their number will be told later. They have also peopled the island of Mindoro and that of Luban, but they are to be found in no other region of these islands. The inhabitants of the province of Camarines at the eastern end of this island, through whose strait arrive the ships from Nueva España, resemble the Pintados; and even those at the other and southeastern [_sc._ northern] end of this island, toward the Japanese, also closely resemble the Pintados--although they do not tattoo _[pintan]_ themselves as the latter do, and bore their ears differently; for in these two provinces there is but little tattooing. The Pintados tattoo the whole body very gorgeously; but the Moros do not tattoo themselves at all, nor do they bore their ears. Unlike the men of Visaya, the Moros wear their hair short, although their women bore their ears, but in a very ugly manner. The Moros inhabit only this district of the bay of Manilla. with a fifteen-league coast, the most fertile land of this island. The following encomiendas are to be found in the neighborhood of this city:

The encomienda of Vatan, eight hundred men.

The encomienda of Vitis, with about seven thousand men.

The encomienda of Macabebe, with two thousand six hundred men.

The encomienda of Calonpite, with about three thousand men.

The encomienda of Candava, with two thousand men.

Near this encomienda is a village which, on account of its antiquity, is called Little Castilla. It belongs to his Majesty, and has a population of seventy.

The encomienda of Pale, with three hundred men.

The encomienda of Binto, with four hundred men.

The encomienda of Malolos, eight hundred men.

The encomienda of Guiguinto, four hundred men.

The encomienda of Catangalan, with eight hundred men.

The encomienda of Caluya belongs to his Majesty, and has six hundred men.

Formerly all the above-mentioned encomiendas had one alcalde-mayor, but since Don Gonzalo came he has appointed the following officials:

Corregidor of Batan. In Batan, a corregidor, with a salary of one hundred and fifty pesos.

Alcalde-mayor of Lubao. In Lubao, another, with a salary of three hundred pesos.

Alcalde-mayor of Calompite. In Calompite and Macaveve, another, with a salary of three hundred pesos.

Alcalde-mayor of Candava. In Candava and two other encomiendas, another, with a salary of two hundred pesos.

Alcalde-mayor of Bulacan. In Bulacan and its vicinity, another, with a salary of two hundred pesos.

One language is spoken in all these encomiendas. Quite near the city, and along the coast from Tondo, which is situated on the other side of the river of this city, another language is spoken. This village of Tondo belongs to his Majesty, and possesses a population of one thousand three hundred and fifty Indians.

The village of Quiapo also belongs to his Majesty.

The village of Pandacan, which is held by an encomendero, has one hundred and fifty men.

The village of Santa Maria is under an encomendero, and has a population of [_blank space in MS_.].

The village of Capaques has two hundred men, and belongs to his Majesty.

The encomienda of Pasic has one encomendero, and contains two thousand men.

The encomienda of Tagui is under one encomendero, and has six hundred and sixty men.

The encomienda of Taytay is inhabited by five hundred Indians. All these encomiendas are situated along the river of Manilla, from Tondo to the lake, and are under the jurisdiction of one alcalde-mayor, who appoints a deputy for Tondo. The alcalde-mayor has a salary of two hundred pesos; and his deputy, one hundred.

Around the lake the following settlements are under the jurisdiction of another alcalde-mayor:

The encomienda of Maribago, three hundred men.

The encomienda of Tabuc, with [_blank space in MS._].

The encomienda of Vahi, with two thousand five hundred men.

The encomienda of Pila, with one thousand six hundred men.

The encomienda of Mayay, with four hundred men.

The encomienda of Lumban, with one thousand five hundred men.

The encomienda of Maracta belongs to his Majesty, and has six hundred men.

The encomienda of Balian, with six hundred men.

The encomienda of Sinoloan, with seven hundred men.

The encomienda of Moron, with one thousand one hundred men.

The last two encomiendas have a much larger population; but they are hostile, and live in the mountains. All the above-mentioned encomiendas are found around the lake. Turning toward the coast of Manilla, on the other side of Tondo, we find the following villages:

On the coast near Manila are Laguo, Malahat, Longalo, Palañac, Vacol, Minacaya, and Cavite. All these villages are in the neighborhood of Cavite, and belong to his Majesty, to whom they pay tribute. On entering the bay opposite the other point, which is called Batan, is:

Alcalde-mayor for the coast. The encomienda of Maragondon, with four hundred and fifty men. This encomienda of Maragondon, together with all the above-mentioned coast villages which belong to his Majesty, is under the jurisdiction of one alcalde-mayor, who receives a salary of three hundred pesos.

Outside of the bay of Manilla, on the east, are the villages of the lowlands of Tuley, which belong to his Majesty and pay him tribute.

Corregidor of Balayan. The encomienda of Balayan has six hundred men, with one encomendero; one corregidor is appointed here, who receives a salary of one hundred and fifty pesos.

Alcalde-mayor of Vonvon. The district around the lake of Bombon has a population of about three thousand four hundred. Then come the villages of the Batangas district, with one thousand men and one encomendero. These two encomiendas are under the jurisdiction of another alcalde-mayor. All the land between Tuley and Batangas is inhabited by Moros, who, as we have said above, have abundance of cotton, and possess much gold handed down to them by their ancestors.

Proceeding about three leagues from the settlement of Batangas, which we mentioned above, along the coast toward Camarines, we come to the river of Lobo, on which are about a hundred Indians. Two leagues from Lobo is Maribago, where there are gold mines; here dwell about one hundred Indians. Farther on is the village of Biga, with a population of about one hundred and fifty Indians. Next is Galvan, with about another hundred and fifty Indians. All these villages have one encomendero. Farther along the coast is the river Dayun, with about six hundred Indians; and next, the river Tubi, on which, in the tingues [hills], are about five hundred Indians.

Next are the river Carilaya and other small settlements, with a total population of about five hundred Indians.

Still farther is the river Caguayan, with about two hundred Indians. All this territory has three encomenderos, and is all under the jurisdiction of the alcalde-mayor of Mindoro. Here begins the province of Camarines, although a few settlements of little importance may be found between the two regions.

Chapter Fourth

Which treats of the Camarines Provinces

Provinces of Camarines and Vicor. Farther along the coast near the Pasacao River begin the provinces of Vicor and Camarines, which, as we have said above, are situated on the east side as you enter the Philipinas islands. Disembarking at the Pasacao River, which is seventy leagues from the city of Manilla by sea, and

journeying three leagues by land, one comes to the Vicor River flowing north; its source is in the opposite coasts of the island. [11]

Alcalde-mayor of Camarines. Here lies the town of Caçeres, the seat of an alcalde-mayor who receives a salary of three hundred pesos. There are also two alcaldes-in-ordinary, and six regidors, whom the governor appoints for as long a period as he chooses. This town of Caçeres is situated in the middle of the entire province, on the banks of the river Vicor. This river district is allotted to eight encomenderos, seven of whom have in charge about seven hundred Indians each, and the other about two thousand. Along the same river, his Majesty possesses the villages of Minalagua and Nagua, with two thousand Indians. Following this river, one comes to a lake called the lake of Libon, which is but scantily populated. The district round about is one encomienda, with one thousand five hundred Indians living in the village of Libon and its environs. This lake of Libon, lying in a mountainous region, has many creeks, by which one can easily go to Yguas, Albay, Camarines, Bicagua, and other places. The town of Caçeres has in all twenty-four encomenderos. Fourteen of them, including the seven above mentioned, have seven hundred Indians each; one has two thousand; another, that of lake Libon, has one thousand five hundred; and the rest have about three hundred Indians each. The inhabitants of the Vicor River district pay their tribute in gold and rice, for they possess these articles in great abundance--for in this province are the excellent mines of Paracale, sixteen leagues from the town; they work also the mines of Catanduanes, thirty leagues from the town. The town has no dependencies, nor does it hold any jurisdiction over other communities. The whole district is under the jurisdiction of the alcalde-mayor of the province of Laguna. This province has a population of about one thousand five hundred, and is allotted to three encomenderos.

Albay and Baquian are inhabited by about eight hundred Indians, who are allotted to two encomenderos. Camarines, with about five hundred men, is under one encomendero.

Libon is under one encomendero, and has one thousand five hundred men.

The province of Paracale and its coast, as far as Mahuban, is inhabited by about two thousand men, and is allotted to three encomenderos. The king owns a share of this province.

The district around the bay of Yvalon has a population of about one thousand five hundred, being divided between two encomenderos.

Island of Catanduanes. The island of Catanduanes has a population of about four thousand, and is allotted to four encomenderos. The alcalde-mayor receives a salary of three hundred pesos, which is paid from the fines forfeited to the royal treasury, or from the royal treasury itself. He appoints no lieutenant, except one for the town when he is absent. The governor appointed a notary for this town, who, having little to do, attends also to the affairs of the alcalde-mayor, and accompanies him on his tours of inspection. Thus his various occupations yield him an annual income of nearly four hundred pesos.

There is also a treasurer in this town, appointed by the governor, at a salary of two hundred pesos. His duty is to collect the tribute due to his Majesty, and to go every year to Manila to give an account of his work.

The country is fertile and healthy. It abounds in rice and palm-trees, from which wine and a great quantity of brandy are made.

As already said, the natives of this province closely resemble the Pintados--although the former are more slothful; for they spend nearly all their time in drinking, while their wives cultivate the land. Like the Pintados, they are a sociable people, and observe the same customs.

They all worship the ugly wooden idol, and talk to the demon. They have also many wizards. Not having lived in this province, I am not acquainted with their manner of sacrifice, nor have I found one who could tell me of it.

Mines. As I have said, there are mines in Paracale, in the bay of Caporaguay, and in the island of Catanduanes. All these districts are in the neighborhood of the town of Caçeres.

Distances. From Pasacao, one has to follow the coast of the island eastward twenty leagues to Bucaygan, and sixty leagues more to the northwest, before he reaches Vicor River. All this may be shortened to the three leagues [by land] between Pasacao and the Vicor River. The distance between Vicor River and the cape of Babuyanes--situated at the other end of the island, toward Japan, as above stated--is one hundred and twenty leagues. The coast between Vicor and Babuyanes is rugged, and extends northwest and southeast. Not all this land is inhabited, but only three districts of it, namely: the province of Valete, with about eight hundred Indians; ten leagues farther, that of Casiguran, with about five hundred Indians (a district resembling Ylocos, which lies on the opposite coast, although the two provinces have no communication, because of the ruggedness of the country); and, farther on, the province of Alanao River. This last is well peopled, and produces gold and cotton; its native Indians resemble those of Valete and Casiguran. Besides these three districts, no other settlement on this coast is encountered until the cape of Babuyanes is reached. From the cape the coast runs east and west until the river of Cagayan is reached. This is a very large river. It is twelve leagues from the cape to the mouth of this river.

River Cagayan. Cagayan is a river of great volume, although its bar forms shallows. At high tide the bar has two brazas of water, and at low tide one. On its banks are large settlements with a population of more than thirty thousand. The people gather a great quantity of rice, and keep many swine. They have also some gold, although there are no gold mines. Their trade is carried on with the men of Ylocos. This region is unwholesome, especially when the north wind prevails.

Islands of Mandato and Buyon. On the opposite coast, near the island of Luçon, are two inhabited islets, called Mandato and Buyon respectively, each one about five leagues in circumference, settled by Moros, on account of their lying so near the island of Luçon opposite the bay of Manila. [_Marginal note:_ "The island of Luçon curves from the city of Manilla, where the change in direction begins, to the river of

Cagayan."]

Island of Marinduque. Between the island of Banton and that of Luçon, four leagues from the former and five from the latter, lies the island of Marinduque. It is about twenty-six leagues in circumference, and eight leagues wide, and contains about one thousand men. Capul and this island are under the charge of one encomendero. The Indians are Pintados, although under the jurisdiction of neither Çubu, Arevalo, nor Camarines.

Chapter Fifth

Which treats of the province of Ylocos

Island of Luzon, continued. Going out of the bay of Manilla, and sailing north toward the province of Ylocos, first comes the province of the Çambales. This province has about one thousand men, who are like the Chichimecos of Nueva España. Their customs are much like those of the Moros; they differ from the latter in their dress. These people wear short trousers, and short-sleeved jackets shaped to fit [the neck: _crossed out in MS_.], which resemble the _saltambarca_. [12] On the middle of the breast, and on the shoulders, they wear a badge resembling a cross, fashioned in different colors. Some of them cut only half of their hair--namely, from the brow to the crown of the head. The villages of this province which are known are Marayomo, Pinahuyu, Mahaban, Buanguin, Tuguy, Polo, Bongalon, Dalayap, Cabatogan, and Bacol. It is the custom among this people to punish murderers by boring a hole through the crown of the head and taking out the brains.

Province of Bulinao. Next comes Bulinao, also inhabited by Çambales; but the province belongs to his Majesty. It has a population of about four hundred peaceful Indians, besides many more who live among the mountains. The latter are a warlike people, whose only delight and satisfaction is in waging war and in cutting off one another's heads, which they hang up in their houses. The man who can display the most heads in his house is he who is most respected and feared by all. They cultivate the land although only in small tracts. They are like the Chichimecos of Nueva España, who cannot be subdued--except that the villages of Bulinao, as I have said, contain about four hundred Indians who are pacified. These people recognize a God in heaven; but in times of trouble and sickness they invoke their dead and their ancestors, like the people of Visaya.

Bay of Pangasinan. About five leagues farther is the province of Pangasinan. Its bay is about six leagues around. Three large rivers, which flow from the mining district of the mountains, fall into this bay. This province has a peaceful population of four thousand. The land is allotted to six encomenderos; but the best portion of it, which has one thousand men, belongs to his Majesty. The people resemble the Cambales above mentioned, in both dress and language; but they are more intelligent, for they are traders and traffic with the Chinese, Japanese, Borneans, and the natives of other islands. This province abounds in food supplies, such as rice, goats, and swine; and many buffaloes are hunted. The main occupation of this people is commerce; but they are also good farmers, and sell their articles of food and

clothing to the miners; the gold that they obtain in return for these they barter with the Spaniards. The men are very jealous of their wives, whom they kill immediately if caught in adultery; nor do the relatives of the latter resent the deed. These people, like the Pintados, kill their children if they have many, in order that they may not live in poverty.

Alcalde-mayor of Pangassinan. For two years this district has had one alcalde-mayor, who receives a salary of one hundred pesos. From this province one can go by land to Manilla, over a very smooth and good road, having to travel only fourteen or fifteen leagues to arrive at the Capanpanga River.

Port of Japon. Four leagues farther is a port which is called the port of Japon. There is a settlement of [Spaniard: _crossed out in MS_.] Indians, of the same race as those of Pangasinan.

Alinguey and Baratao. Six leagues farther are the villages of Alinguey and Baratao, with a population of about two thousand. Once they were allotted to one encomendero, but now they belong to the royal crown. The people are of the same race as those who inhabit Pangasinan.

Purao. Four leagues farther are the villages of Purao, with a population of two thousand. These towns are under the encomendero of Bitis and Lubao. The people differ from the above in language, but resemble them in their behavior and customs. They till the land; and possess much gold, on account of being near the mines. These people do not kill their children, as do the people of Pangasinan.

Villages of Lumaquaque. Three leagues farther is the valley of Lumaquaque, where live about one thousand five hundred natives. Half of this district is under one encomendero, the other half belongs to his Majesty. The people resemble those of Purao.

Villages of Candon. Two leagues farther are the villages of Candon, with a population of about one thousand eight hundred. They are under two encomenderos. The people resemble those of Purao.

Province of Maluacan. Three leagues farther is the province of Maluacan, with a population of about one thousand eight hundred. It is under the encomendero of Bonbon.

Valley of Landan. Two leagues farther is the valley of Landan, with a population of about one thousand Indians, who belong to the hospital of the city of Manilla.

Village of Vigan. Opposite this valley is the village of Vigan, with about eight hundred inhabitants. It belongs to his Majesty. Not far from Vigan is settled the town of Fernandina, which Guido de la Vezaris founded in the year seventy-five. He appointed there six regidors, two alcaldes, and one chief justice for all the provinces of the Ylocos.

Alcalde-mayor of Ylocos. At the coming of Limahon, Fernandina was plundered, and there only remains now one alcalde-mayor, with twenty or thirty Spaniards, who usually dwell there as if in banishment. The alcalde-mayor receives a salary of three

hundred pesos, and appoints notaries at his pleasure.

Valley of Bantay. One league from this town is the valley of Bantay, with a population of about one thousand six hundred, and one encomendero.

Valley of Sinay. Three leagues farther is the valley of Sinay, which is under the same encomendero of Bantay, and has a population of about one thousand six hundred.

The valley of Vavo. Two leagues from Sinay is the valley of Vavo. It is under one encomendero, and has a population of about one thousand Indians.

Province of Cacaguayan. Still farther is the province of Cacaguayan, with a population of about four thousand. Two thousand of them are under two encomenderos--each with one thousand; and two thousand belong to his Majesty.

Province of Ylagua. Two leagues farther is the province of Ylagua, which belongs to his Majesty. It has a population of about five thousand, but they are not all peaceful.

Valley of Dynglas. Three leagues inland from this province is a valley called Dinglas. It has a population of about two thousand Indians, and one encomendero.

Valley of Vicagua. Farther along the coast from Ylagua is the valley of Vicagua, with a population of two thousand, and two encomiendas. This valley is twenty leagues from the Cagayan River. There are to be found some rivers and settlements, but the inhabitants are not pacified or even known.

All the people of the Ylocos resemble the Pintados in their manner of living, but they eat raw meat. They are a quiet and peaceful people, dislike war, and are humble and well-disposed.

Thus, from the city of Manilla to the Cagayan River hither, the distance is about one hundred and ten leagues, as stated above. On account of the shortness of the time before me, I am unable to give a more detailed account of this island of Luçon, which is the most important in this land.

Island of Mindoro. Opposite the encomiendas of Bonbon and Batangas lies the island of Mindoro. The Moros form the greater part of its population. Three leagues from the island of Luçon is located the village of Mindoro. This is a good harbor for ships, and belongs to his Majesty. The village is inhabited by about two hundred and fifty Moros. The island is eighty leagues in circumference, and is scantily populated, for it has in all less than five hundred inhabitants. Some blacks live in the mountains, who gather a large quantity of wax. The island is ill supplied with provisions.

Island of Luban. Four leagues from the western point of this island, and opposite the bay of Manilla, lies the island of Luban. It is twenty leagues from Manilla, and has a circumference of about ten leagues. It has six villages, with a total population of about five hundred Indians.

Close to this island is a smaller one by the same name, with about one hundred inhabitants. The people are the same as those of Luzon.

Island of Elin. The island of Elin lies two leagues south from the island of Mindoro. It is seven leagues in circumference and is inhabited by about two hundred Visayan Indians.

Alcalde-mayor of Vindoro. These islands--namely Mindoro, Elin, and Luban--are under one encomendero, and all have one alcalde-mayor, who holds jurisdiction also over that region of Luçon which begins at Batangas and ends at the province of Camarines, to which region we shall now return.

Islands of the Babayanes. Opposite the Cagayan River, in the open sea toward China, are seven islands, called Babuyanes. Because many swine are imported therefrom into the province of Ylocos, and since the word for swine in the Ylocos language is _babuyes_, the islands have been called by that name. Of their inhabitants very little is known.

Island of Calamianes. Returning from Burney and sailing from Manilla twelve leagues beyond the island of Elin, we find the islands of the Calamianes. These islands being somewhat out of the way, very little is known about them--that is, about their inhabitants, for only a few villages along the coast have been seen, where the tribute is collected. The natives of these coast-towns are Pintados; those who live in the mountains are blacks. A very large quantity of wax is collected there, which is an article of barter for nearly all the other islands. They lack provisions and clothing. The most important of the Calamianes islands is Paraguan, which has a circuit of one hundred and fifty leagues. The other islands are small, and only the following are inhabited: Tanianao, Binorboran, Cabanga, Bangaan, Caramian (which is also called by another name, Linapacan), Dipayan, and Coron. In all these islands, only three hundred Indians pay tribute; therefore very little is known about them. These islands are all under the jurisdiction of the alcalde-mayor of Mindoro, [and pay tribute: _crossed out in MS_.] and belong to the royal crown.

Chapter Sixth

Of the inhabitants of the Pintados Islands and their mode of life

The natives of the Pintados Islands are not very dark. Both men and women are well formed and have regular features. Some of the women are white. Both men and women wear their hair long, and fastened in a knot on the crown of the head, which is very becoming. The men tattoo their entire bodies with very beautiful figures, using therefor small pieces of iron dipped in ink. This ink incorporates itself with the blood, and the marks are indelible. They are healthy people, for the climate of that land is good. Among them are found no crippled, maimed, deaf, or dumb persons. No one of them has ever been possessed by evil spirits, or has become insane. Therefore they reach an advanced age in perfect health. The Pintados are a courageous and warlike race; they have continually waged war on both land and sea. They bore their ears in two places and wear beautiful ornaments, not only in their ears, but also around their necks and arms. Their dress is neat and modest, made generally of cotton, medriñaque, or silk (which they get from China and other places). They are greatly addicted to the use of a kind of wine which they make from rice and from the

palm-tree, and which is good. Very rarely do they become angry when drunk, for their drunkenness passes off in jests or in sleep.

The men are very fond of their wives, for it is the men who give the dowry at marriage. And even if their wives commit adultery, action is never taken against the woman, but against the adulterer. An abominable custom among the men is to bore a hole through the genital organ, placing within this opening a tin tube, to which they fasten a wheel like that of a spur, a full palm in circumference. These are made of tin, and some of them weigh more than half a pound. They use twenty kinds of these wheels; but modesty forbids us to speak of them. By means of these they have intercourse with their wives. [13] The inhabitants of the mountains do not follow this custom; all, however, circumcise themselves, saying that they do it for their health and for cleanliness. When they marry, they are not concerned whether their wives are virgins or not.

The women are beautiful, but unchaste. They do not hesitate to commit adultery, because they receive no punishment for it. They are well and modestly dressed, in that they cover all the private parts; they are very clean, and are very fond of perfumes. It is considered a disgrace among them to have many children; for they say that when the property is to be divided among all the children, they will all be poor, and that it is better to have one child, and leave him wealthy. The Pintados are very strict as to whom they marry; for no one marries below his station. Therefore chiefs will never marry any but women of rank. All the men are accustomed to have as many wives as they can buy and support. The women are extremely lewd, and they even encourage their own daughters to a life of unchastity; so that there is nothing so vile for the latter that they cannot do it before their mothers, since they incur no punishment. The men, however, are not so vile as the Moros. The Pintados love their wives so dearly, that, in case of a quarrel they take sides with their wives' relatives, even against their own fathers and brothers.

Chapter Seventh

Which treats of the belief held by the natives of the Pintados islands concerning the creation

There are two kinds of people in this land, who, although of the same race, differ somewhat in their customs and are almost always on mutually unfriendly terms. One class includes those who live along the coast, the other class those who live in the mountains; and if peace seems to reign among them, it is because they depend upon each other for the necessities of life. The inhabitants of the mountains cannot live without the fish, salt, and other articles of food, and the jars and dishes, of other districts; nor, on the other hand, can those of the coast live without the rice and cotton of the mountaineers. In like manner they have two different beliefs concerning the beginning of the world; and since these natives are not acquainted with the art of writing, they preserve their ancient lore through songs, which they sing in a very pleasing manner--commonly while plying their oars, as they are island-dwellers.

Also, during their revelries, the singers who have good voices recite the exploits of olden times; thus they always possess a knowledge of past events. The people of the coast, who are called the Yligueynes, believe that heaven and earth had no beginning, and that there were two gods, one called Captan and the other Maguayen. [14] They believe that the land breeze and the sea breeze were married; and that the land breeze brought forth a reed, which was planted by the god Captan. When the reed grew, it broke into two sections, which became a man and a woman. To the man they gave the name of Sicalac, and that is the reason why men from that time on have been called _lalac_; the woman they called Sicavay, and thenceforth women have been called _babayes_. One day the man asked the woman to marry him, for there were no other people in the world; but she refused, saying that they were brother and sister, born of the same reed, with only one knot between them; and that she would not marry him, since he was her brother. Finally they agreed to ask advice from the tunnies of the sea, and from the doves of the air; they also went to the earthquake, who said that it was necessary for them to marry, so that the world might be peopled. They married, and called their first son Sibo; then a daughter was born to them, and they gave her the name of Samar. This brother and sister also had a daughter, called Lupluban. She married Pandaguan, a son of the first pair, and had a son called Anoranor. Pandaguan was the first to invent a net for fishing at sea; and, the first time when he used it, he caught a shark and brought it on shore, thinking that it would not die. But the shark died when brought ashore; and Pandaguan, when he saw this, began to mourn and weep over it--complaining against the gods for having allowed the shark to die, when no one had died before that time. It is said that the god Captan, on hearing this, sent the flies to ascertain who the dead one was; but, as the flies did not dare to go, Captan sent the weevil, who brought back the news of the shark's death. The god Captan was displeased at these obsequies to a fish. He and Maguayen made a thunderbolt, with which they killed Pandaguan; he remained thirty days in the infernal regions, at the end of which time the gods took pity upon him, brought him back to life, and returned him to the world. While Pandaguan was dead, his wife Lubluban became the concubine of a man called Maracoyrun; and these people say that at that time concubinage began in the world. When Pandaguan returned, he did not find his wife at home, because she had been invited by her friend to feast upon a pig that he had stolen; and the natives say that this was the first theft committed in the world. Pandaguan sent his son for Lubluban, but she refused to go home, saying that the dead do not return to the world. At this answer Pandaguan became angry, and returned to the infernal regions. The people believe that, if his wife had obeyed his summons, and he had not gone back at that time, all the dead would return to life. [_Blank space in MS_.] Inheritances, and their inventor. Their ceremonies. The omentum [15].

Another belief, that of the mountaineers, who are called Tinguianes

The Tinguianes believe that in the beginning were only the sea and the sky; and that one day a kite, having no place where to alight, determined to set the sea against the sky. Accordingly, the sea declared war against the sky, and threw her waters upward. The sky, seeing this, made a treaty of peace with the sea. Afterward, to avenge himself upon her for having dared to assert herself, they say that he showered

upon the sea all the islands of this archipelago, in order to subdue her; and that the sea ran to and fro without being able to rise again. They say that from this event arose the custom of _mavaris_--that is, taking vengeance for an insult received, a very common practice in this land; and they consider it a point of honor to take revenge. Then they relate also the story of the reed; but they say that the kite pecked the reed, and the aforesaid man and woman came out. They add that the first time when Cavahi gave birth to children, she brought forth a great number at once. One day the father went home, very angry, and threatened the children. The latter were frightened and fled; some into the most hidden rooms of the house; some hid in other places nearer the open air; some hid themselves within the _dindines_, or walls of the houses, which are constructed of reeds; some in the fireplace; and some fled to the sea through the same door by which the father had entered. It is said that those who fled to the most hidden rooms are the chiefs of these islands; those who remained nearer the outside are the timaguas; those who hid themselves within the walls are the slaves; those who hid themselves in the fireplace are the blacks; and those who fled out to the sea through the open door, are the Spaniards, and that they had no news of us until they beheld us return through the sea.

Chapter Eighth

Of their belief concerning the dead

It is said that the souls of those who are stabbed to death, eaten by crocodiles, or killed by arrows (which is considered a very honorable death), go to heaven by way of the arch which is formed when it rains, and become gods. The souls of the drowned remain in the sea forever. By way of honor to these, they erect a tall reed and hang upon it a garment--that of a man, if the dead be a man; but a woman's, for a woman. This garment is left there until it falls to pieces through age. When the children or other relatives of drowned persons are sick, the relatives are taken and placed in a barangay, in company with a _baylana_, who is a sort of priestess; and, at the place indicated by the priestess, they throw into the sea a chest filled with robes and other articles, which they have brought with them. At the same time their ancestors are invoked to protect and help the sick man during his illness.

Belief regarding the dead

If those who die from disease are young, the Pintados say that the _mangalos_, who are goblins, are eating their bowels, wherefore they die; for these people do not know that the corruption of humors causes diseases. They say of those who die in old age that the wind comes and snatches away their souls. And of those who die thus, the Arayas (which is a certain alliance of villages), they say, go to a very high mountain in the island of Panay, called Mayas. The souls of the Yligueynes, who comprise the people of Çubu, Bohol, and Bantay, go with the god called Sisiburanen, to a very high mountain in the island of Burney.

The god Sidapa. They say that there is in the sky another god, called Sidapa. This god possesses a very tall tree on mount Mayas. There he measures the lives of all the new-born, and places a mark on the tree; when the person's stature equals this mark,

he dies immediately.

Belief concerning the destination of souls. It is believed that at death all souls go directly to the infernal regions; but that, by means of the _maganitos_, which are the sacrifices and offerings made to the god Pandaque in sight of the mount of Mayas, they are redeemed from Simuran and Siguinarugan, gods of the lower regions.

It is said that, when the Yligueynes die, the god Maguayen carries them to Inferno. When he has carried them thither in his barangay, Sumpoy, another god, sallies forth, takes them away, and leads them to Sisiburanen, the god before mentioned, who keeps them all. Good or bad alike, he takes them all on equal terms, when they go to Inferno. But the poor, who have no one to offer sacrifices for them, remain forever, in the inferno, and the god of those regions eats them, or keeps them forever in prison. From this it will be seen how little their being good or bad avails them, and how much reason they have to hate poverty.

Baylanas. The natives of these islands have neither time nor place set apart for the offering of prayers and sacrifices to their gods. It is only in case of sickness, and in times of seed-sowing or of war, that sacrifices are offered. These sacrifices are called _baylanes_, and the priestesses, or the men who perform this office, are also called _baylanes_. The priestesses dress very gaily, with garlands on their heads, and are resplendent with gold. They bring to the place of sacrifice some _pitarrillas_ (a kind of earthen jar) full of rice-wine, besides a live hog and a quantity of prepared food. Then the priestess chants her songs and invokes the demon, who appears to her all glistening in gold. Then he enters her body and hurls her to the ground, foaming at the mouth as one possessed. In this state she declares whether the sick person is to recover or not. In regard to other matters, she foretells the future. All this takes place to the sound of bells and kettle-drums. Then she rises and taking a spear, she pierces the heart of the hog. They dress it and prepare a dish for the demons. Upon an altar erected there, they place the dressed hog, rice, bananas, wine, and all the other articles of food that they have brought. All this is done in behalf of sick persons, or to redeem those who are confined in the infernal regions. When they go to war or on a plundering expedition, they offer prayers to Varangao, who is the rainbow, and to their gods, Ynaguinid and Macanduc. For the redemption of souls detained in the inferno above mentioned, they invoke also their ancestors, and the dead, claiming to see them and receive answers to their questions.

Belief concerning the world. The god Macaptan. They believe that the world has no end. They say that Macaptan dwells highest in the sky. They consider him a bad god, because he sends disease and death among them, saying that because he has not eaten anything of this world, or drunk any pitarrillas, he does not love them, and so kills them.

The god Lalahon. It is said that the divinity Lalahon dwells in a volcano in Negros island, whence she hurls fire. The volcano is about five leagues from the town of Arevalo. They invoke Lalahon for their harvest; when she does not choose to grant them good harvests she sends the locusts to destroy and consume the crops. This Lalahon is a woman.

Burials. These natives bury their dead in certain wooden coffins, in their own houses. They bury with the dead gold, cloth, and other valuable objects--saying that if they depart rich they will be well received in the other world, but coldly if they go poor.

How they guard the dead. When anyone dies, the people light many fires near his house; and at night armed men go to act as sentinels about his coffin, for fear that the sorcerers (who are in this country also) may come and touch the coffin; for then the coffin would immediately burst open and a great stench issue from the corpse, which could not any longer remain in the coffin. For this reason they keep watch for several nights.

Slaves killed at the death of chiefs. When any chief descended from Dumaguet dies, a slave is made to die by the same death as that of the chief. They choose the most wretched slave whom they can find, so that he may serve the chief in the other world. They always select for this a slave who is a foreigner, and not a native; for they really are not at all cruel. They say that the reason for their killing slaves, as we have said, at the death of any chief is very ancient. According to their story, a chief called Marapan more than ten thousand years ago, while easing his body asked a slave of his for some grass with which to clean himself. The slave threw to him a large stalk of reed-grass, which seems to have hit the chief on the knee, causing a wound. As he was at the time a very old man, he died, as they say, from the blow; but before his death he gave orders that, when he should die, the slave and all his children should be put to death. From this arose the custom of killing slaves at the death of a chief.

Mourning indicated by fasting. When the father or mother or any near relative died, they promised to eat no rice until they should seize some captive in battle. The actual sign of mourning among them was the wearing of armlets made of bejucos [rattans] which covered the entire arm, with a similar band around the neck. They drank no pitarrilla, and their only food was bananas and camotes, until they had either taken a captive or killed some one, when they ceased their mourning; it might thus happen that they would eat no rice for a whole year, and therefore they would be, at the end of that period, very languid and weak. Sometimes a man determined, soon after a relative's death, to eat nothing, but to abandon himself to death. But his timaguas and slaves quickly assembled, and made a collection throughout the village; bananas were given him for food, and _tuba_ (which is a wine made from the palm-tree) for drink, so that he should not die. These gains were the perquisites of the chiefs. This kind of mourning is called among them _maglahe_.

Mourning among the women. The mourning observed by the women they call _morotal_. It is similar to that of the men, except that the mourner--instead of going to capture or kill some one before she is allowed to cease mourning and to eat rice again--embarks in a barangay with many women; they have one Indian man to steer, one to bail, and one in the bow. These three Indians are always chosen as being very valiant men, who have achieved much success in war. Thus they go to a village of their friends, the three Indians singing all along the way, keeping time with their oars; they recount their exploits, the slaves whom they have captured, and the men whom they have killed in war. The vessel is laden with wine and pitarrillas. When

they reach the village, they exchange invitations with the inhabitants, and hold a great revel. After this they lay aside their white robes, and strip the bejuco bands from their arms and necks; the mourning ends, and they begin to eat rice again, and to adorn themselves with gold.

Larao of the dead--_that is, mourning_. One of the observances which is carried out with most rigor is that called _larao_. This rule requires that when a chief dies all must mourn him, and must observe the following restrictions: No one shall quarrel with any other during the time of mourning, and especially at the time of the burial. Spears must be carried point downward, and daggers be carried in the belt with hilt reversed. No gala or colored dress shall be worn during that time. There must be no singing on board a barangay when returning to the village, but strict silence is maintained. They make an enclosure around the house of the dead man; and if anyone, great or small, passes by and transgresses this bound, he shall be punished. In order that all men may know of a chief's death and no one feign ignorance, one of the timaguas who is held in honor goes through the village and makes announcement of the mourning. He who transgresses the law must pay the penalty, without fail. If he who does this wrong be a slave--one of those who serve without the dwelling--and has not the means to pay, his owner pays for him; but the latter takes the slave to his own house, that he may serve him, and makes him an ayoey. They say that these rules were left to them by Lubluban and Panas. To some, especially to the religious, it has seemed as if they were too rigorous for these people; but they were general among chiefs, timaguas, and slaves.

Wars. The first man who waged war, according to their story, was Panas, the son of that Anoranor, who was grandson of the first human [parents: _crossed out in MS_.] beings. He declared war against Mañgaran, on account of an inheritance; and from that time date the first wars, because the people were divided into two factions, and hostility was handed down from father to son. They say that Panas was the first man to use weapons in fighting.

Just wars. There are three cases in which these natives regard war as just. The first is when an Indian goes to another village and is there put to death without cause; the second, when their wives are stolen from them; and the third is when they go in friendly manner to trade at any village, and there, under the appearance of friendship, are wronged or maltreated.

Laws. They say that the laws by which they have thus far been governed were left to them by Lubluban, the woman whom we have already mentioned. Of these laws only the chiefs are defenders and executors There are no judges, although there are mediators who go from one party to another to bring about a reconciliation.

Chapter Ninth

Which treats of slavery in the Filipinas Islands

Laws of slavery. No Indian in this country is made a slave or is put to death for any crime which he commits, even if it be theft, adultery, or murder--except that for

each crime there is an established fine, which they have to pay in jewels or gold, and if the culprit is unable to pay the fine he will borrow the money, and pledge himself to the man from whom he borrows. As a result he becomes a slave, until he shall repay what was lent to him; after that, he is free again. Therefore, according to the crime committed, they are slaves; and there are three classes of slaves in these islands. The first, and the most thoroughly enslaved, is the bondman of him who is served in his own dwelling; such a slave they call _ayuey_. These slaves work three days for the master, and one for themselves.

Kinds of slavery. Another class of slaves are those called _tumaranpoc_. They live in their own houses, and are obliged to go to work for their master one day out of four, having the three days for themselves. If they fail to work for their master, in order to cultivate their own fields, they give the master each year ten _çhicubites_ of rice, each çhicubite being equal to one fanéga.

There are other slaves, whom these people hold in most respect, who are called _tomatabans_; these work in the house of the master only when there is some banquet or revel. On such occasions they bring small gifts, and share in the drinking. But when one of these slaves dies, the property left by the slave is shared with his children by the master. During their lifetime, these slaves are bound to work for their master five days in a month; or, if they do not work, they annually give the master five çhicubites of rice.

Value of the slaves. The ayueys are worth among these people two gold taes of Labin sian, the equivalent of twelve pesos. The tumaranpoques are worth the same sum. The tumatabans are worth one tae, or six pesos.

The ayuey women, like their husbands, work in the houses of chiefs. The tumaranpoque women, if they have children, serve half of the month in spinning and weaving cotton, which their masters supply; and during the other half of the month they work for themselves. The tumataban women spin only one hank of cotton each month for their masters, who furnish to them the cotton in the boll. Only the ayueys receive food and clothing from their masters; to the others the masters give nothing. When these slaves die the masters take away all their property, except from the tomatabans, as we have said above. Those whom these natives have sold as slaves to the Spaniards are mostly the ayueys.

The rules which they observe for punishing any one so severely as to enslave him are as follows: for murder, adultery, and theft; and for insulting any woman of rank, or taking away her robe in public and leaving her naked, or causing her to flee or defend herself so that it falls off, which is considered a great offense.

Thieves. If a thief commit a great robbery, he and all his relatives (or at least his nearest kin) are fined. If they are unable to pay the fine, they are made slaves. This law applies to all classes, and even to the chiefs themselves; accordingly, if a chief commit any crime, even against one of his own slaves or timaguas, he is fined in the same manner. But they are not reduced to slavery for lack of means to pay the fine; as, if they were not chiefs, they would be slaves. In case of a small theft, the punishment falls upon the thief alone, and not on his relatives.

In time of famine. When there is a famine the poor, who have not the means of sustenance, in order not to perish, go to the rich--and almost always they seek their relatives and surrender themselves to them as slaves--in order to be fed.

Another kind of slavery. There is another kind of lordship [slavery: _crossed out in MS_.], which was first introduced by a man whom they call Sidumaguer--which, they say, occurred more than two thousand years ago. Because some men broke a barangay belonging to him--in Languiguey, his native village, situated in the island of Bantayan--he compelled the descendants of those who had broken his barangay to bequeath to him at their deaths two slaves out of every ten, and the same portion of all their other property. This kind of slavery gradually made its way among all the Indians living on the coast, but not among the Tinguianes.

Real timaguas. The freemen of these islands, who are called timaguas, are neither chiefs nor slaves. This is their mode of life. If a timagua desires to live in a certain village, he joins himself to one of the chiefs--for each village usually has many chiefs, each of whom has his own district, with slaves and timaguas, well known to him--to whom he offers himself as his timagua, binding himself to observe the following laws: When feasts are given to other chiefs he must attend; for it is the custom that the timagua drink first from the pitarrilla, before any chief does so. He must, with his weapons, accompany the chief when he goes on a journey. When the latter enters a boat the timagua must go to ply the oar, and to carry his weapons for the defense of the vessel; but if the vessel sustain any damages he receives no punishment for this, but is only reprimanded. For this service the chief is under obligation to defend the timagua, in his own person and those of his relatives, against anyone who seeks to injure him without cause; and thus it happens that, to defend the timaguas, fathers fight against their sons, and brothers against one another. If the timagua goes to any other village and there is wronged, the chief will endeavor, with all his forces, to avenge him to the same extent. Thus the timaguas live in security, and are free to pass from the service of one chief to that of another, whenever they so desire, and without any obstacle being placed in their way.

Of the manner in which they set out on raids. These natives have a method of casting lots with the teeth of a crocodile or of a wild boar. During the ceremony they invoke their gods and their ancestors, and inquire of them as to the result of their wars and their journeys. By knots or loops which they make with cords, they foretell what will happen to them; and they resort to these practices for everything which they have to undertake. The Indians along the coast are accustomed to set out every year on their plundering expeditions in the season of the bonanças, which come between the brisas and the vendabals. The Tinguianes set out after they have gathered their harvests; and since their custom is to be enemies to those who are such to their friends, they do not lack opportunity for fighting.

While on a plundering expedition, if they could take their enemy alive they did not kill him. If any one slew a captive after his surrender, he must pay for him with his own money; and if he were unable to do so he was held as a slave. The booty that they take, whatever it may be, belongs to the chiefs, except a small portion which is given to the timaguas who go with them as oarsmen. But if many chiefs went on a raid, the

one who offered the _magaanito,_ or the sacrifice mentioned above, received half of the booty, and the other half belonged to the other chiefs.

Captured chiefs. If any chief were taken captive, he was well treated; and if any friend ransomed the captive because he was far from home, the captive returned to him double the amount that his friend had paid for him, because of his good offices in withdrawing the chief from captivity; for the latter would, otherwise, always remain a prisoner. When a chief was taken captive, or committed adultery or murder, all his relatives contributed toward his ransom, each according to the degree of his kinship; and if the relatives had not means to do this the chief remained a slave.

Borrowing. If they lent rice to anyone, one year was allowed for repaying it, since it is something that is planted. If the loan were not repaid after the first harvest, double the amount was to be paid at the second; at the third harvest, fourfold was due on an unpaid loan; and so on, regularly increasing. This was the only usury among them, although some have stated otherwise; but those persons were not well informed. Now, some who are lazy, and unwilling to exert themselves to pay the tribute, ask a loan for this purpose, and repay a somewhat larger sum.

Inheritances. It is their custom to share inheritances in the following manner. If a man died and left four children, the property and the slaves were divided into four equal parts, and each one of the children took his own share. If the dead man left a bastard child, the latter would receive only what the brothers were pleased to give him; for he had no right to one of the shares, nor could he take more than what his brothers voluntarily gave him, or the legacy made by his father in his favor. If the father chose to favor any of his children in his will, he did so. If the dead man left no children, all his brothers inherited his property, having equal shares therein; and if he had no brothers, his cousins-german would inherit; if he had no cousins, all his kinsmen. His property, then, went to the children, if he had any; if not, his brothers were necessarily the heirs; if he had no brothers, his first cousins; and in default of these, all his relatives shared the estate equally.

Chapter Tenth

Which treats of marriage customs in these islands

Marriage of the chiefs. Great mistakes have been made regarding the marriages formed among the natives of this country since they have become Christians, because the marriage customs once observed among the natives have not been clearly understood. Therefore some religious join them in marriage, while others release them, and others reëstablish the marriage, thus creating great confusion. For this reason, I have diligently endeavored to bring to light the way in which they observed the marriage ceremonies, which are as follows. When any man wishes to marry, he, since the man always asks the woman, calls in certain timaguas who are respected in the village. (This is what the chiefs do. For there appear to be three ranks of men in these islands--namely, chiefs, timaguas, who are freemen, and slaves--each class having different marriage customs.) The chiefs, then, I say, send as go-betweens some of their timaguas, to negotiate the marriage. One of these men takes the young

man's lance from his father, and when he reaches the house of the girl's father he thrusts the spear into the staircase of the house; and while he holds the lance thus, they invoke their gods and ancestors, requesting them to be propitious to this marriage. If the marriage takes place, the lance belongs to the go-between, or it is redeemed.

After the marriage is agreed upon--that is to say, after fixing the amount of the dowry which the husband pays to the wife (which among the chiefs of these islands is generally the sum of one hundred taes, in gold, slaves, and jewels, and is equivalent to one hundred pesos)--they go to bring the bride from the house of her parents. One of the Indians takes her on his shoulders; and on arriving at the foot of the stairway to the bridegroom's house, she affects coyness, and says that she will not enter. When many entreaties have proved useless, the father-in-law comes out and promises to give her a slave if she will go up. She mounts the staircase, for the slave; but when she reaches the top of the stairway and looks into her father-in-law's house and sees the people assembled within, she again pretends to be bashful, and the father-in-law must give her another slave. After she has entered, the same thing takes place; and he must give her a jewel to make her sit down, another to make her begin to eat, and another before she will drink. While the betrothed pair are drinking together an old man rises, and in a loud voice calls all to silence, as he wishes to speak. He says: "So-and-so marries so-and-so, but on the condition that if the man should through dissolute conduct fail to support his wife, she will leave him, and shall not be obliged to return anything of the dowry that he has given her; and she shall have freedom and permission to marry another man. And therefore, should the woman betray her husband, he can take away the dowry that he gave her, leave her, and marry another woman. Be all of you witnesses for me to this compact." When the old man has ended his speech, they take a dish filled with clean, uncooked rice, and an old woman comes and joins the hands of the pair, and lays them upon the rice. Then, holding their hands thus joined, she throws the rice over all those who are present at the banquet. Then the old woman gives a loud shout, and all answer her with a similar shout; and the marriage contract or ceremony is completed. Up to this time, her parents do not allow the young couple to eat or sleep together; but by performing this ceremony they deliver her up as his wife. But if, after the marriage contract has been negotiated by a third party, the man who seeks marriage should repent of the bargain and seek to marry another woman, he loses the earnest-money that he has given, even if he has had no intercourse with the former; because when they commence negotiations for the marriage they begin to give the dowry. If a man say in conversation, or at a drunken feast, "I wish to marry so-and-so, daughter of so-and-so," and afterward break his promise and refuse to marry her, he is fined for it; and they take away a great part of his property.

In regard to the dowry, neither the husband nor the wife can enjoy it until they have children; for until then it belongs to the father-in-law. If the bridegroom is not of age to marry, or the bride is too young, both still work in the house of the father-in-law until they are of age to live together.

Marriage among the timaguas. The timaguas do not follow these usages, because they have no property of their own. They do not observe the ceremony of joining hands over the dish of rice, through respect for the chiefs; for that ceremony is for chiefs only. Their marriage is accomplished when the pair unite in drinking pitarrilla from the same cup. Then they give a shout, and all the guests depart; and they are considered as married, for they are not allowed to drink together until late at night. The same ceremony is observed by rich and respectable slaves.

Marriage among the slaves. But the poor slaves, who serve in the houses, marry each other without drinking and without any go-between. They observe no ceremony, but simply say to each other, "Let us marry." If a chief have a slave, one of his ayoiys, who serves in the house, and wishes to marry him to a female slave of the same class belonging to another chief, he sends an Indian woman as agent to the master of the female slave, saying that her master wishes to marry one of his male slaves to the other's female slave. After the marriage has been arranged, he gives his slave an earthen jar, or three or four dishes, and there is no other ceremony. Half of the children born to this couple will belong to the master of the female slave, and the other half will belong to the master of the male slave. When the time comes when their children are able to work for their masters, the parents are made tumaranpoques, as we have said; because when a male slave of one chief marries the female slave of another chief, they immediately receive a house for their own use, and go out to work for their masters. If a freeman marries a female slave, or _vice versa_, half of the children are slaves. Thus, if there are two children, one is free and the other a slave, as the parents may choose.

In one thing these natives seem to go beyond all reason and justice. It is usage among them that, if an Indian of one village owes twenty pesos (to suppose a case) to an Indian in another village, and when asked for the money refuses to repay it, when any Indian of that village where the said twenty pesos is due is caught, they seize him--even if he is in no way related to or acquainted with the debtor--and compel him to pay the twenty pesos. It is their custom that he who first owed the twenty pesos must return to him who paid that sum forty pesos instead, on account of the violence used against him. They say that they act thus in order not to use the mailed hand for collecting from the other in that village, since that would result in war.

Friendship. Reconciliation between those who have quarreled, whether these are individuals or the people of different villages, is brought about by drawing blood from the arms of both parties, and each tasting the blood of the other, placed in a shell, sometimes mixed with a little wine; and such friendship is not to be broken.

Witches and sorcerers; physicians. In this land are sorcerers and witches--although there are also good physicians, who cure diseases with medicinal herbs; especially they have a remedy for every kind of poison, for there are most wonderful antidotal herbs. The natives of this island are very superstitious; consequently, no native will embark for any voyage in a vessel on which there may be a goat or a monkey, for they say that they will surely be wrecked. They have a thousand other omens of this sort. For a few years past they have had among them one form of witchcraft which was invented by the natives of Ybalon after the

Spaniards had come here. This is the invocation of certain demons, whom they call Naguined, Arapayan, and Macbarubac. To these they offer sacrifices, consisting of cocoanut-oil and a crocodile's tooth; and while they make these offerings, they invoke the demons. This oil they sell to one another; and even when they sell it they offer sacrifices and invoke the demon, beseeching him that the power which he possesses may be transferred to the buyer of the oil. They claim that the simple declaration that one will die within a certain time is sufficient to make him die immediately at that time, unless they save him with another oil, which counteracts the former. This witchery has done a great deal of harm among the Pintados, because the demon plays tricks on them. The religious have tried to remedy this evil, by taking away from them the oil and chastising them.

Sneezing. If any one who is going to war or is about to begin any important undertaking, sneeze on leaving the house, he considers it a bad omen, and turns back.

Feasts. These natives have no feasts that they observe, throughout the year-save that when the married men go to war, during their absence the women do not work.

At the rice-harvest. Besides these times they set apart seven days when they begin to till their fields, in which time they neither grind any rice for their food, nor do they allow any stranger, during all that time, to enter their villages; for they say that that is the time when they pray to their gods to grant them an abundant harvest.

Years and months. They divide the year into twelve months, although only seven [_sc_. eight] of these have names; they are lunar months, because they are reckoned by moons. The first month is that in which the Pleiades appear, which they call Ulalen. The second is called Dagancahuy, the time when the trees are felled in order to sow the land. Another month they call Daganenan bulan; it comes when the wood of those trees is collected from the fields. Another is called Elquilin, and is the time when they burn over the fields. Another month they call Ynabuyan, which comes when the bonanças blow. Another they call Cavay; it is when they weed their fields. Another they call [Cabuy: _crossed out in MS._] Yrarapun; it is the time when they begin to harvest the rice. Another they call Manalulsul, in which the harvesting is completed. As for the remaining months, they pay little attention to them, because in those months there is no work in the fields.

Winds. It is their opinion that the winds come from the sea, which they base on the fact that the sea swells before the winds begin to blow.

Turtles. In this land are very many turtles, of great size; they are larger than a shield. Here is a marvellous thing when the male and the female have intercourse, they remain thus joined together for twenty or twenty-five days. They become so stupefied during this act that the Indians dive into the sea, and tie the feet of the turtles without their perceiving it, and draw these creatures ashore. I have even done this myself.

Serpents. There are in this land enormous serpents, as large as palm-trees; they are, however, sluggish.

Crocodiles. There are enormous numbers of crocodiles, which are water-lizards. They live in all the rivers and in the sea, and do much harm.

Civet-cats. In many of these islands are civet-cats.

Tabon birds. In this land there is a kind of bird, smaller than a Castilian fowl; its eggs is larger than that of a goose, and is almost all yolk. This bird lays its eggs in the sand, a braza deep, at the edge of the water. There the young ones are hatched, and come up through the sand, opening a way through it with their little feet; and as soon as they gain the surface they fly away. [16]

Palms. In all these islands are great numbers of cocoa-palms. In some of the nuts are found stones as large as filberts, which the natives prize, although thus far it is not known what efficacy they have. They draw a great quantity of wine from the palm-trees; one Indian can in one forenoon obtain two arrobas of sap from the palm trees that he cultivates. It is sweet and good, and is used in making great quantities of brandy, excellent vinegar, and delicious honey. The cocoanuts furnish a nutritious food when rice is scarce. From the nut-shells they make dishes, and [from the fibrous husk?] match-cords for their arquebuses; and with the leaves they make baskets. Consequently this tree is very useful.

In these islands are very many swine, and goats of excellent quality. There are also a great many wild buffaloes, which, if caught when young, can be easily tamed. There are ducks, and some geese which have been brought from China. There are also a great many fowls of excellent quality, which are similar to those of Castilla. There are some fowls which have no tails, for which reason the natives superstitiously refuse to eat them; but these are better than the other sorts.

As for fruits like those in Castilla, they were formerly not to be found in this land, because of its proximity to China, where there are so many fruits peculiar to that country. There are here some tolerably good fruits, such as excellent bananas [17]; nancas, a very fragrant fruit, and larger than the largest Spanish melon; macupas, which resemble apples; and santors, which taste like the quince. There are also many good oranges and lemons.

In the province of Ylocos is found a large tree whose blossoms resemble the white lily, and taste like fish. The Indians gather the blossoms in the morning, cook them, and eat them in place of fish. And, wonderful to relate, on the next morning the tree is again full of blossoms; and this occurs day after day.

In the mountain region, where there is scarcity of water, are found certain bejucos, six or eight brazas high, and larger around than the thumb. When this stem is cut, there gushes forth a great quantity of water, of excellent taste; and this liquid supplies the lack of water. Each bejuco will yield two or three cuartillos of water. [18]

Chapter Eleventh

Which treats of the rites and ceremonies observed by the Moros in the vicinity of Manilla, and of their social conditions

The god Batala. According to the religion formerly observed by these Moros, they worshiped a deity called among them Batala, which properly means "God." They said that they adored this Batala because he was the Lord of all, and had created human beings and villages. They said that this Batala had many agents under him, whom he sent to this world to produce, in behalf of men, what is yielded here. These beings were called _anitos_, and each anito had a special office. Some of them were for the fields, and some for those who journey by sea; some for those who went to war, and some for diseases. Each anito was therefore named for his office; there was, for instance, the anito of the fields, and the anito of the rain. To these anitos the people offered sacrifices, when they desired anything--to each one according to his office. The mode of sacrifice was like that of the Pintados. They summoned a _catalonan_, which is the same as the vaylan among the Pintados, that is, a priest. He offered the sacrifice, requesting from the anito whatever the people desired him to ask, and heaping up great quantities of rice, meat, and fish. His invocations lasted until the demon entered his body, when the catalonan fell into a swoon, foaming at the mouth. The Indians sang, drank, and feasted until the catalonan came to himself, and told them the answer that the anito had given to him. If the sacrifice was in behalf of a sick person, they offered many golden chains and ornaments, saying that they were paying a ransom for the sick person's health. This invocation of the anito continued as long as the sickness lasted.

When the natives were asked why the sacrifices were offered to the anito, and not to the Batala, they answered that the Batala was a great lord, and no one could speak to him. He lived in the sky; but the anito, who was of such a nature that he came down here to talk with men, was to the Batala as a minister, and interceded for them. In some places and especially in the mountain districts, when the father, mother, or other relative dies, the people unite in making a small wooden idol, and preserve it. Accordingly there is a house which contains one hundred or two hundred of these idols. These images also are called _anitos_; for they say that when people die, they go to serve the Batala. Therefore they make sacrifices to these anitos, offering them food, wine, and gold ornaments; and request them to be intercessors for them before the Batala, whom they regard as God.

Government of the Moros. Among the Moros there is precisely the same lack of government as among the Pintados. They had chiefs in their respective districts, whom the people obeyed; they punished criminals, and laid down the laws that must be observed. In the villages, where they had ten or twelve chiefs, one only--the richest of them--was he whom all obeyed. They greatly esteem an ancient lineage, which is therefore a great advantage to him who desires to be a lord. When laws were to be enacted for governing the commonwealth, the greatest chief, whom all the rest obeyed, assembled in his own house all the other chiefs of the village; and when they had come, he made a speech, declaring that, to correct the many criminal acts which were being committed, it was necessary that they impose penalties and enact ordinances, so that these evils might be remedied and that all might live in peace. This policy was not in vogue among the Pintados, because no one of them was willing to recognize another as his superior. Then the other chiefs replied that this seemed good to them; and that, since he was the greatest chief of all, he might do whatever

appeared to him just, and they would approve it. Accordingly, that chief made such regulations as he deemed necessary; for these Moros possess the art of writing, which no other natives of the islands have. The other chiefs approved what he ordained. Immediately came a public crier, whom they call _umalahocan_, who is properly a mayor-domo, or steward; he took a bell and went through the village, announcing in each district the regulations which had been made. The people replied that they would obey. Thus the umalahocan went from village to village, through the whole district of this chief; and from that time on he who incurred the penalties of law was taken to the chief, who sentenced him accordingly. If the penalty be death, and the condemned man say that he prefers to be a slave, he is pardoned, and becomes a slave. All the other chiefs are also judges, each in his own district; but when any important case arises the head chief calls all the others together, in order to decide it, and the affair is settled by the vote of all. The chiefs are accustomed to impose the taxes; but there is no fixed amount for these, save what the proper judge decrees shall be paid.

Marriages. These Moros followed in their marriages the same customs as those of the Pintados, in giving the dowry. Thus, if the man should, contrary to the woman's desire, break his pledge and annul the marriage, he would lose the dowry, and she would retain it, free from him. Likewise, if the wife left the husband she was obliged to return him the dowry. If she committed adultery and the husband therefore left her, she returned him double the amount of the dowry. If the wife left the husband in order to marry another, the second husband was obliged to repay to the first husband the dowry which the latter had given to the woman, and to pay a fine, more or less--such an amount as the judge should order him to give. If the husband were a chief, and caught his wife in the act of committing adultery, he had the right to punish her with death, and the adulterer also, and could slay them with impunity. If he killed one and the other escaped, there would be open war between the two families until the other adulterer died. If both escaped, they must pay for their lives with a certain weight of gold. If they were chiefs, the penalty was one hundred taes, fifty for the woman and fifty for the adulterer. This done, they were pardoned, and remained friends. If they were timaguas, they incurred a lighter penalty.

Wars. In wars and slavery among the Moros, they observed the same customs as did the Pintados.

Thieves. There was among the natives a law concerning thieves. It was a petty theft if the amount were less than four taes (that is, twenty pesos); but if more than that sum, it was a serious offense. He who committed the former must return the gold, and then be sentenced, at the will of the judge, to pay a fine in money. If it were the greater theft, involving an amount of four taes or upward, he incurred the penalty of slavery. But if the goods stolen amounted to a cati [catty] of gold, the penalty was death, or the enslavement of the culprit and his children and all those of his household.

It was also a law that for the first theft the penalty was a fine in money, and for the second, slavery; for further offenses, it was death. Or if pardoned, as described above, he was made a slave, with his wife and children. This punishment did not

apply to the son who proved that he was outside the house--whether he dwelt in a house of his own or lived with relatives on an independent footing; and therefore he was free. Only those who lived in the house of the delinquent were liable to punishment, because they all were suspected of knowledge of the theft.

There was also a law that anyone who spoke disrespectfully of a chief, or uttered abusive language to him, was liable to death. If he could redeem his life, a fine of fifteen taes of gold was imposed. If he did not have the means to pay and relatives did not contribute to ransom him, and the delinquent begged for mercy, saying that then he would become a slave, his life was spared, and he became the slave of the injured party. For this reason the penalty of a fine was available for him who possessed wealth. If the quarrel were between persons of equal rank, the chiefs settled the matter according to justice and their laws, and the like penalty was imposed. If the delinquent refused to pay according to this sentence, war was declared between the villages or the factions. Hostilities then followed; and from that time those who were captured were enslaved.

One may be released after paying the sum decreed; until then he is a slave. It was a law that if, when two timaguas were together, either of them insulted the other, he must pay a sum of money according to the nature of the insult, which was decided by the judge. If the insult were a gross one, the fine was large accordingly; and if the culprit had not the means to pay more than five taes, he became the slave of the injured person. If the delinquent begged from the chief or some other friend the favor of lending him the money, he became the slave of him who loaned the money. This slavery extended only to the culprit, and not to his children or relatives, except to children who were born during his slavery.

It is usual among the natives of this island to aid one another with money-loans. He who borrowed from a chief or a timagua retained the money until a fixed time had elapsed, during which he might use the money that was lent to him; and besides, he divided with the lender the profit that he made, in acknowledgment of the favor that he had received.

It was a law that if he who borrowed the money became insolvent, and had not means to pay his debt, he was considered a slave therefor, together with the children born during his slavery; those already born were free.

It was a law among these people, when two men formed a business partnership in which each placed the same amount of money, that if one of them went to traffic with the money belonging to both, and while on a trading journey were captured by enemies, the other man who remained in the village must go to ransom his partner, with half of the ransom-price agreed upon; and the captive was then released from liability--not only for what was due to the partnership, but for the amount which was afterward given for his ransom, and was not obliged to pay anything. If the man who lost the money lost it in gambling, or by spending it with women, he was obliged to repay to the partnership the amount which he had drawn therefrom, and he and his children were obliged to pay it. If the amount were so great that they could not pay it within the time agreed upon, he and half his children would become the slaves of the

partner. If there were two children, one was a slave and the other was free; if four, two were slaves, and two free; and so on with any larger number. If the children were able to pay their father's debt afterward, they were set free.

It was a law that he who killed another must die; but if he begged for mercy he would become the slave of the dead man's father, children, or nearest relatives. If four or five men were concerned in the murder, they all paid to the master of the slave the price which the slave might be worth; and then the judge sentenced them to such punishment as he thought just. If the men had not means to pay the fine, they became slaves. If the dead man were a timagua, the penalty of death was incurred by those who were proved to be his murderers; but if the condemned men begged for mercy they became slaves. Accordingly, after they were sentenced the culprit might choose between death and slavery. If the man slain were a chief, the entire village where he was slain must, when that was proved, become slaves, those who were most guilty being first put to death. If the murderers were private persons only, three or four of the most guilty were put to death, without any resource in mercy; and the rest, with their children, became slaves.

When any person entered the house of a chief by night, against the will of the owner, he incurred the death penalty. It was their custom that when such an offender was caught he was first tortured, to ascertain whether any other chief had sent him. If he confessed that he had been thus sent, he was punished by enslavement; and he who had sent him incurred the death penalty, but might be released therefrom by paying a certain amount of gold for the crime.

He who committed adultery was, if he were one of the chiefs, punished with death; the same penalty was inflicted upon any man who was caught with the concubine of a chief. Similarly, the husband might kill the adulterer, if caught in the act. If perchance he escaped by flight, he was condemned to pay a fine in money; and until this was done there was enmity between the two families concerned. The same law was in force among the timaguas.

This relation was written by order of the governor of these islands.

Miguel de Loarca of the town of Arevalo.

was also one of the first, among those who came to these islands, who showed any curiosity regarding these matters; and therefore I consider this a reliable and true account.

[_Endorsed at end_: "A memoir regarding the peculiarities of these islands, written in obedience to a decree of his Majesty. To the royal Council of the Indies."]

[_Endorsed on outside wrapper_: "Relation of the Filipinas Islands, their discovery, the Spanish settlements, the usages and customs of the natives, their religion, etc.; written, in virtue of a royal decree, by Miguel de Loarca, a citizen of the town of Arevalo, one of the earliest conquerors and settlers." _A similar endorsement is written on the inside cover of the MS_.]

LETTER FROM DOMINGO DE SALAZAR TO FELIPE II

Royal Catholic Majesty:

After having written the letters and memoranda which are going to your Majesty, there came some neighboring Indians to this city, who begged me to make known to your Majesty the contents of their testimonial. A few days afterward I told certain of them that they should decide what they wished, and that I would write to your Majesty concerning them--as your Majesty is a most Christian king who considers well their interests, and has commanded that they be well-treated, and will order punishment for those who maltreat them.

On the same day, some of the most prominent Indians came, and with them more than forty others from the neighboring villages. They asked from me the things that I have stated elsewhere; and I certify to your Majesty that, if all that they said could be written in this account, it would be but little shorter than the other one which I am sending to your Majesty. Without doubt it would break your Majesty's heart if you could see them as they are, and how pitiable are their appearance and the things that they relate.

Another day there came chiefs from other villages to say the same and much more. Today ten or twelve chiefs have come to see me from a province called Mauban, which belongs to your Majesty. They are all heathen, and told me that they had learned that I wrote to your Majesty in their behalf. They asked me to remember them also. I did not wish to admit more than what was said by those who came first, as it would make a disturbance in the land, should they all come here to complain. Your Majesty will be pleased to command that their case be considered, and provision made for them. I can do nothing, save to deplore it, and to beseech your Majesty for the remedy. Manila, June twenty, 1582.

Fray Domingo, Bishop of the Felipinas

In the city of Manila, on the fifteenth day of the month of June, of the year one thousand five hundred and eighty-two, before the very illustrious Don Fray Domingo de Salasar, first bishop of these islands and a member of his Majesty's council, and in the presence of me, the secretary undersigned, there appeared certain Indians who spoke through Francisco Morantes and Andres de Cervantes, interpreters of the Moro tongue. They declared themselves to be Don Luis Amanicaldo, Don Martin Panga, Don Gabriel Luanbacar, and Don Juan Bautangad, Christians; and Salalila and Calao Amarlenguaguay, heathen; and Doña Francisca Saygan: all chiefs of the villages of Tondo and Capaymisilo; and many other chiefs. Through the interpreters, they said that they had learned that by this ship which is about to depart for Nueva España, his most reverend Lordship was to write to his Majesty. As they were suffering so many injuries, grievances, and vexations, as is well-known to all, they humbly begged that he be so kind as to inform his Majesty thereof in detail, in order that his Majesty, after having learned of their afflictions, may be pleased to remedy them. They were then asked what things they desired to be especially placed before his Majesty's consideration, and to declare the same. They replied that the injuries which they suffer, and which ought to be redressed, are those inflicted by the alcaldes-mayor. Much trouble is caused them by these officials, as within three

leagues there are four alcaldes-mayor and their officers, who inflict serious penalties for light offenses. They take at their own price the rice of the Indians, and afterward sell it at a very high rate, doing the same with all other articles of provisions and agricultural products. Furthermore, they oblige the Indians to act as their oarsmen, whenever they wish. If they return from an expedition which has lasted a month, they are told straightway to prepare for another, being paid nothing whatsoever; nevertheless in every village assessments are levied upon the natives, for the payment of those who go on such service. If at any time they are paid, it is very little, and that very seldom. Because of the many acts of oppression which they have suffered, many Indians have now abandoned Tondo, Capaymisilo, and other villages near this city of Manila. They have gone to live in other provinces, which has occasioned much damage and loss to the chiefs. Out of the three hundred Indians who were there, one hundred have gone away, and the said chiefs are obliged to pay the tribute for those who flee and die, and for their slaves and little boys. If they do not pay these, they are placed in the stocks and flogged. Others are tied to posts and kept there until they pay. Moreover, they dig no gold, for the officials oblige them to pay the fifth. If they do not make a statement of their gold it is seized as forfeited, even when it is old gold; and the gold is not returned to them until after payment of a heavy fine. They do not wish to let the alcaldes-mayor buy rice, because they all hoard it. If the natives come to complain of their grievances to the alcaldes-mayor alone, they are imprisoned and thrown into the stocks, and are charged with prison-fees. Their afflictions and troubles are so many that they cannot be endured; and they wish to leave this island, or at least to go to some encomienda of a private individual. In the said villages of the king they cannot endure the alcaldes-mayor.

Fray Domingo, Bishop of the Filipinas _Andres de Cervantes_ _Francisco Morante_

Before me: _Salvador de Argon_, secretary

LETTER FROM JUAN BAPTISTA ROMAN TO THE VICEROY

Most Illustrious and Excellent Sir:

I do not know whether the letters with new information which the governor is writing today will arrive in time to go on this ship, which has been despatched to this port of Acabite; so I wish to give your Excellency notice of what is going on. Yesterday--St. John's Day--in the afternoon, there arrived six soldiers who had gone with Captain Juan Pablo de Carrion [19] against the Japanese, who are settled on the river Cagayan. They say that Juan Pablo sailed with his fleet--which comprised the ship "Sant Jusepe," the admiral's galley, and five fragatas--from the port of Bigan, situated in Ylocos, about thirty-five days' journey from Cagayan. As he sailed out, he encountered a Chinese pirate, who very soon surrendered. He put seventeen soldiers aboard of her and continued his course. While rounding Cape Borgador near Cagayan one fair morning at dawn, they found themselves near a Japanese ship, which Juan Pablo engaged with the admiral's galley in which he himself was. With his artillery he

shot away their mainmast, and killed several men. The Japanese put out grappling-irons and poured two hundred men aboard the galley, armed with pikes and breastplates. There remained sixty arquebusiers firing at our men. Finally, the enemy conquered the galley as far as the mainmast. There our people also made a stand in their extreme necessity, and made the Japanese retreat to their ship. They dropped their grappling-irons, and set their foresail, which still remained to them. At this moment the ship "Sant Jusepe" grappled with them, and with the artillery and forces of the ship overcame the Japanese; the latter fought valiantly until only eighteen remained, who gave themselves up, exhausted. Some men on the galley were killed, and among them its captain, Pero Lucas, fighting valiantly as a good soldier. Then the captain, Juan Pablo, ascended the Cagayan River, and found in the opening a fort and eleven Japanese ships. He passed along the upper shore because the mouth of the river is a league in width. The ship "Sant Jusepe" was entering the river, and it happened by bad fortune that some of our soldiers, who were in a small fragata, called out to the captain, saying to him: "Return, return to Manila! Set the whole fleet to return, because there are a thousand Japanese on the river with a great deal of artillery, and we are few." Whereupon Captain Luys de Callejo directed his course seaward; and although Juan Pablos fired a piece of artillery he did not and could not enter, and continued to tack back and forth. In the morning he anchored in a bay, where such a tempest overtook them that it broke three cables out of four that he had, and one used for weighing anchor. He sent these six soldiers in a small vessel to see if there was on an islet any water, of which they were in great need. The men lost their way, without finding any water; and when they returned where they had left their ship they could not find it. They met with some of those Indians who were in the galley with Juan Pablos, from whom it was learned that Juan Pablo had ascended the river two leagues and had fortified himself in a bay; and that with him was the galley, which had begun to leak everywhere, in the engagement with the Japanese. The Indian crew was discharged on account of not having the supplies which were lost on the galley. Most of these men went aboard the "Sant Jusepe." They said that the Japanese were attacking them with eighteen _champans_, [20] which are like skiffs. They were defending themselves well although there were but sixty soldiers with the seamen, and there were a thousand of the enemy, of a race at once valorous and skilful. The six soldiers came with this news, and on the way they met a sailor who had escaped from a Sangley ship which had sailed from here, with supplies of rice for Juan Pablo. He says that the Sangleys mutinied at midnight and killed ten soldiers who were going with it as an escort, who had no sentinel. This one escaped by swimming, with the aid of a lance that was hurled at him from the ship.

Moreover, I have just detained some passengers who were going on this ship, because there are no troops on these islands, and a hundred soldiers have to go immediately as a reenforcement, although the weather is tempestuous. I expect to be one of them, if the governor will give me permission.

These enemies, who have in truth remained here, are a warlike people; and if your Excellency do not provide by this ship, and reenforce us with a thousand soldiers, these islands can be of little value. May your Excellency with great prudence provide what is most necessary for his Majesty's service, since we have no resource other

than the favor your Excellency shall order to be extended to us.

The governor was disposed to send assistance to the ship, which was a very important affair; but after these events he will not be able to do it, because there do not remain in this city seventy men who can bear arms. May our Lord guard the most illustrious and excellent person of your Excellency and increase your estate, as your Excellency's servants desire. From Cabite, June 25, 1582. Most excellent and illustrious sir, your servant kisses your Excellency's hands.

Juan Baptista Roman

LETTER FROM PEÑALOSA TO FELIPE II

Royal Catholic Majesty:

By this ship, which is to leave these islands on the last of June of this year, I am giving your Majesty a full account of the condition of affairs and events in this region. As it was about to sail news came of the fleet--which, I wrote among other things, I had despatched to effect a settlement in Cagayan--and of the punishment and resistance of the Japanese pirates, of whose coming we had news this year. The fleet sent by me, as above stated, met two vessels of the enemy near Cagayan, one of Japanese and the other of Sangleys; an engagement ensued, and those vessels surrendered after a fierce fight, in which two hundred Japanese, among them the commander of the fleet and his son, were killed, while we lost only three soldiers.

Juan Pablo de Carrion, whom I sent as my lieutenant-general in charge of this fleet, continued his journey, and entered the Cagayan River, where he was to make a settlement. At the entrance of the river he found six more Japanese vessels belonging to the fleet of those which had surrendered. There was also a goodly number of people there, and fortifications. On account of his lack of men--a severe storm having driven out to sea the flagship, which he took on this expedition--he did not sack these forts, but attempted only to enter the river. This he did, going up about six leagues, where he made a settlement in a place where he could erect a fort, whence he could direct offensive and defensive warfare against the enemy. This news came yesterday; and with all possible despatch I am sending reënforcements, boats, ammunition, and the provisions necessary. I considered it so needful to employ the soldiers for this purpose, because too small a force remains to me for the aid of Maluco, as I have written, since that undertaking is so important. However if they send from that place to beg aid, I shall give it with what forces I can. For I suffer a great lack of men and other things because no reënforcements have been sent me from Nueva España, although I have implored them. This land suffers from a constant and pressing need of reënforcements, on account not only of its unhealthful climate, but of the many emergencies which continually arise when I must send aid. These occasions now are not so much a matter of jest as they have been hitherto; for the Chinese and Japanese are not Indians, but people as valiant as many of the inhabitants of Berberia [Barbary], and even more so. I entreat your Majesty to give careful attention to this, and to order that in all vessels as many men as possible be sent; for it is the key to what is necessary for the preservation of this camp. I beg also that careful attention

be given in the other things.

The gratuity for the expenses incurred in these necessary undertakings and for others similar to them, which are thrusting themselves forward every moment--which was provided by your Majesty's auditors of your royal Audiencia of Mexico in the ship arriving at this bay on the twenty-fourth of last month, consisted of a decree and warrant in which they order that Doctor Sande be paid here for the time while he remained here after my arrival, and until his arrival at Mexico. For this purpose they set aside in their decree the tributes which belong to your Majesty, and order that they be attached for this and sent to them--threatening me with imprisonment if I do not comply. I have written to your Majesty already of the poor state of your treasury here and its many pressing necessities, and of the extreme difficulty experienced in raising the amount needful for the same. Will your Majesty please take suitable action in this? for without the aid of what little resources your Majesty possesses here, this colony cannot be preserved. May our Lord guard the Catholic and royal person of your Majesty for mary prosperous years, and give you increase of many kingdoms and seigniories for the good of Christianity. Manila, July first, 82.

[_Endorsed:_ "To the royal Catholic Majesty, King Don Phelipe, our sovereign, through his royal council of the Indies. Governor of the Philipinas."]

TWO PAPAL DECREES

Indulgence Granted to the Dominicans on Their Setting Out for the Philippines

Gregory, Bishop, servant of the servants of God: In perpetual remembrance of the affair.

Since, as we have learned, very vast kingdoms, islands, cities, and towns in the parts of the Western Indias are being converted to the faith of Christ, and daily the light of heavenly learning is beaming on the peoples thereof--who, hitherto unacquainted with the law of God, and under the yoke of the demon, were groping their way in the dark places of unbelief; but now, rejecting the errors of heathenism, are revering and following the name of our Savior Jesus Christ: therefore our beloved son, the master-general of the Order of Preachers [21] [Dominicans], has determined to send thither professed members under the care of their own vicar, with rules for austere life and a reformed standard of conduct--as is becoming to a religious and praiseworthy institute, and according to which their province of New Spain was established--who there may found a new province of their order.

We, on whom through appointment of the Lord it is incumbent to foster the spread of the gospel, desirous of taking part in this duty of preaching the gospel in kingdoms wherein Christ is unknown, desirous moreover to aid, in as faras we can, the pious and religious endeavors of the Friars Preachers--who, with their abandonment of fatherland and their self-denial of comforts, are now exposing themselves to dangers of land and sea for the sake of spreading the name of Christ--therefore, trusting in the mercy of almighty God and the authority of His blessed apostles Peter and Paul, we by our apostolic authority, in virtue of these presents do grant, etc., a plenary

indulgence and remission of all their sins to the professed members of the said Order, all and singular, if really penitent and confessed, who by leave or order or mandate of their afore-named master-general shall go to the Philippine Islands.

Given at Rome, at St. Mark's, under the seal of the Fisherman, on the fifteenth day of September, in the year 1582, the eleventh of our pontificate.

Foundation of the Province of the Dominicans in the Philippines

Gregory XIII, Pope. Beloved son, health and apostolic blessing.

Not long ago you acquainted us with the fact that, some time before, Paul Conestabile, master-general of the entire order of Friars Preachers, gave you leave--with thirty or forty professed members of the said order, to be gathered by you from the provinces of Spain, Aragon and Andalusia, and ten from the province of Mexico and from Chiappa, [22] to go to the Philippine Islands and to the kingdom of China. Moreover, appointing you his vicar-general in the said Philippine Islands and kingdom of China, etc., he granted to you, all and singular, the privileges which had been granted by former generals to the province of Santiago of Mexico--to the end that you might there establish a rule of life in accordance with the same, and found provinces, etc.

But since, as you also told us, the said General Paul is dead, and there are some who are doubtful of your power in the premises, and therefore you have humbly petitioned us to determine what through our apostolic bounty you should do in the premises: therefore, holding that you are free from any sort of excommunication, etc., and by these presents decreeing that the tenor of the said letters is to be considered as if herein expressed; moreover, being not unwilling to hearken to your petition, we by our apostolic authority, in virtue of these presents, approve and confirm the things contained therein, all and singular; and, as far as needs be, do again depute you to the aforesaid charge, [23] etc.

Given at Rome, at St. Peter's, under the seal of the Fisherman, on the twentieth day of October in the year 1582, the eleventh of our pontificate.

REPORT ON THE OFFICES SALEABLE IN THE PHILIPPINES

The following are the saleable offices in these Philipinas islands, from which some gain may be derived.

Seven positions as city magistrates in Manila; because, of the twelve which are available, three are filled with officials of his Majesty, and two by Captain Juan de Moron and by Pedro de Herrera, both possessing titles from his Majesty.

Two offices as notaries-public in the same city; for, of the three available, one is filled by Diego Alemán who was appointed by his Majesty, and the other two are appointed by the governors, and therefore are not royal notaries.

A notary of the cabildo, for no one has been supplied by his Majesty.

The office of alguacil-mayor [high constable] in this city was held by Hernan Lopez: he has lived during the last three years in Mexico, where he has married, and has not attended to his office; and consequently the governor disposes of this position. More will be given for this office on account of its dignity, as holding a seat in the cabildo next to the royal officials.

The office of chief clerk of registers and mines of these islands; for no appointment has been made by his Majesty.

Six magistrates for the town of Zubu, which is the required number. No one has been appointed by his Majesty.

In the said town, two notaries--one public, and the other for the cabildo; for they have not been filled by his Majesty.

In the said town, the office of alguacil-mayor; for his Majesty has made no provision for the said dignity.

The offices which are available in the town of Zubu are also available in the town of Caçeres, in the province of Camarines; and in the town of Arevalo, in the island of Panai.

The town of Fernandina in the province of Ylocos has proved to be so unhealthy a region that, from being the richest town of these islands, it has now only a few inhabitants with no organized cabildo or government.

The city of Segovia, in the province of Cagayan, is a newly-settled city. The offices have been filled by the governor with the early conquerors; it will therefore be convenient for his Majesty to confirm them, in order that the community may become permanently settled.

Concerning the office of alcalde-mayor in the villages and provinces of the Indians, the following method is carried out. The alcalde-mayor, who goes there for a year or two, takes with him his own alguacil and clerk, appointed by himself. The lawsuits which take place before them are seldom made public; and they can keep the fines forfeited to the royal treasury--which are not slight, for they fine the natives even for treading the ground. They keep neither archives nor record of anything, so that his Majesty is ill served in their office; the natives suffer, and the officials condemn themselves. In view of all this, it would be better for each province of Indians possessing the office of alcalde-mayor to have a permanent alguacil and clerk appointed by his Majesty; for if they are not appointed by the alcalde and are not his servants, they will not conform so thoroughly to his will. Thus light would be shed upon the legal proceedings, of which an account would be kept; and the fines forfeited to the royal treasury would not be lost, together with the expenses of justice. Finally, if they are appointed permanently, they will aim at the preservation of the Indians for their own benefit, and will not plunder and then go away, as they do now. The three most important provinces in which an alcalde resides are: the province of Pampanga, which is the most fertile region of these islands, and which has about thirty thousand Indians; the province of La Laguna de Bai, with a like number of Indians; and the province of Bombon, Balaian, Mindoro, with about twenty thousand

Indians. I believe that in these three provinces the offices of alguacil and clerk will be of no less value than they are in Spanish communities. In the other provinces, these offices are of little importance at present.

DOCUMENTS OF 1583

Complaints against Peñalosa. Gabriel de Ribera; [1583?] Affairs in the Philipinas Islands. Fray Domingo de Salazar; [1583]. Instructions to commissary of the Inquisition. Pedro de los Rios, and others; March 1. Foundation of the Audiencia of Manila. Felipe II; May 5.

Sources: These documents are obtained from MSS. in the Archivo general de Indias, Sevilla--excepting the third, which is from the Archivo general at Simancas.

Translations: The first and third documents are translated by Alfonso de Salvio, of Harvard University; the second, by Herbert E. Bolton, of the University of Texas; the fourth, by Henry B. Lathrop, of the University of Wisconsin.

COMPLAINTS AGAINST PEÑALOSA

Most powerful lord: [24]

Captain Gabriel de Rivera [25] beseeches your Highness on behalf of the Filipinas islands, kindly to see that due attention and consideration be given to the advancement and preservation of those islands, upon which his Majesty has set his eyes so fixedly, and which have cost so many thousands of ducats and Spanish lives. May what has been asked be provided, according to the memorials which I have presented to the royal person and to your Highness; for it befits the service of God our Lord, that of your Highness, and the advancement and good government of those islands.

The appointment of Don Gonzalo Ronquillo [26] by your Highness as governor for life, and the many sentences, decrees, and favors in his behalf, greatly injure the said islands in their advancement; they harass and totally ruin them as we have seen with our own eyes. Such an appointment is contrary to the orders and laws given for the new discoveries; for the Filipinas islands were discovered more than fifty years ago, and were settled at the time of the emperor (may he rest in peace). Since a way of return to Nueba España had not been discovered, the settlers for lack of sustenance abandoned the land, until the viceroy, Don Luis de Belasco, by order of your Highness despatched a fleet to the said islands, and sent Miguel Lopez de Legazpi as governor, who made a settlement and discovered a way of return. He went there at his own expense. All favors granted him in the meantime were so small and inadequate that he was not even allowed to take a repartimiento. The islands have been settled for twenty years, and have enjoyed peace and quiet. [27] The appointment may have been a very lawful one, but it should not be forgotten that it is injurious to the said islands and their advancement. God alone can remedy the abuses perpetrated every day, for, as is well known by your Highness, they are beyond any other remedy--inasmuch as Don Gonzalo has carried out no part of the agreement he made

with his Majesty. In regard to this, and the papers and memorials which I have presented, may your very Christian Highness take the measures befitting the service of God, and the advancement and good government of those islands.

Gabriel de Ribera

AFFAIRS IN THE PHILIPINAS ISLANDS

By Fray Domingo de Salazar

Memorial regarding occurrences in these Philipinas Islands of the West, also their condition, and matters which require correction; written by Fray Domingo de Salazar, bishop of the said islands, in order that his Majesty and the gentlemen of his royal Council of the Indies may see it.

At first, when the Spaniards came to these islands, there was a great abundance of provisions, such as are produced in the country; namely, rice, beans, fowls, swine, deer, buffaloes, fish, cocoanuts, bananas and some other fruits, wine, and honey. Of these a large quantity could be bought from the natives with very little money. Although among them there was gold, with which they traded and trafficked, yet it was most usual to barter eatables for rice until the Spaniards introduced the use of money, from which no little harm has come to the country. Wine and rice are measured by the ganta, which is equivalent to a quarter of a celemín in our measure.

The prices which articles brought after the Spaniards introduced silver coins--which are, as a rule, tostóns, as the four-real pieces are called--were as follows: [four] [28] hundred gantas of rice [for one tostón]; for another, a hundred of wine; and for another, twelve, fourteen, or sixteen fowls; and other things in proportion. These rates continued until a year and a half or two years ago. Then products began to be scarce in this country, and articles which were formerly cried through the streets have today reached so high prices and such scarcity that there is now no one who can obtain them, even when they go to search for them in the Indian villages. For what is thus found the common prices are forty or fifty gantas of rice, or eight or ten gantas of wine, for one tostón; fowls have advanced to two reals apiece, although the usual price is one real; while a hog costs four or five pesos, or six or eight for one of considerable size. Oil of agenxoli [sesame], cocoanuts, and butter, which formerly could be bought very cheaply, cannot now be obtained--although in this there is variation, as little or much comes to the market.

I have tried to ascertain the reason for so great a change, and for the dearness of food; and after thoroughly informing myself through persons who know, and through what I have seen with my own eyes, I find the following reasons therefor. First: When Don Gonçalo Ronquillo came here as governor of La Pampanga, [29] whence all this country used to be supplied with rice, wine, and fowls, a great number of Indians went to the mines of Ylocos, where they remained during the time when they ought to have sowed their grain. Many of them died there, and those who returned were so fatigued that they needed rest more than work. As a result, in that year followed a very great scarcity of rice, and for lack of it a great number of Indians in the said

Pampanga died from hunger. In Luvao alone, the encomienda of Guido de la Vaçares, the dead exceeded a thousand.

Second: in regard to the many occupations in which the Spaniards employ the Indians, such as setting them to row in the galleys and fragatas despatched by the governor and officials on various commissions, which are never lacking. At times they go so far away that they are absent four or six months; and many of those who go die there. Others run away and hide in the mountains, to escape from the toils imposed upon them. Others the Spaniards employ in cutting wood in the forests and conveying it to this city, and other Indians in other labors, so that they do not permit them to rest or to attend to their fields. Consequently, they sow little and reap less, and have no opportunity to attend religious instruction. It sometimes happens that while these miserable creatures are being instructed for baptism the Spaniards force them to go to the tasks that I have mentioned; and when they return they have forgotten what they knew; for this reason there are today many Indians to be baptized. In some cases when I have gone to a village to administer confirmation, I have returned without confirming any one, because the Indians were not in the place, but were occupied in labors ordered by the alcalde-mayor, and I could not collect them together. In proof of this, I send a mandate issued by a deputy of Tondo. (I was present at the time, and all the people were away, occupied in the tasks assigned to them; and the only Indians in the village were those who were being instructed for the reception of baptism.) This ordinance commanded all the Indians of the said village to cut wood, and those who were receiving instruction to quit it.

Third: Before the governor Don Gonçalo Ronquillo came, there were not more than three or four alcaldes-mayor in all these islands; but now there are sixteen and most of them are men who came with him. As they came poor, and as the salaries are small, they have taken away the Indians--as all affirm, and it is common talk--at the time for harvesting rice; and they buy up all other provisions, and many profit by selling them again. In this way everything has become dear, because, as they have forbidden the Indians to trade and traffic, they sell at whatever price they wish. Formerly the Indians brought their produce to the gates, and sold it at very low-prices; for they are satisfied with very little gain, which is not true of the Spaniards. But, not to ascribe all the guilt to men, but to our sins, the cause of this dearness has in part been that these years have not afforded as good weather as others. This is the state in which the country has thus far been up to the present.

Injuries inflicted upon the Indians

First: When a long expedition is to be made, the wrongs which they suffer are many. One is to despatch for the Indians who are to row in a galley or fragata a sailor who has neither piety nor Christian feeling. Moreover, it is notorious that, without inquiring whether an Indian is married or single, or whether his wife is sick or his children without clothing, he takes them all away. It has happened that when a husband has led this deputy to his wife, who was great with child, and has asked with tears that he might be left behind as she had no one to care for her, the sailor has beaten her with cudgels in order to make her go, and the poor husband also, despite his resistance. In other cases, their wives are abandoned when dying, the husband

being compelled to go away to row. The Indians are put into irons on the galleys, and flogged as if they were galley-slaves or prisoners. Moreover, the pay that is given them is very small; for they give each man only four reals a month--and this is so irregularly paid that most of them never see it. The [officials of the] villages from which they take the rowers divide the pay among themselves, or give it to those whom they impress as oarsmen. This statement is thoroughly authenticated; for when the governor, Don Gonçalo Ronquillo, sent to the mines, in Vitis and Lobao alone they divided three thousand pesos belonging to the Indians themselves; and when he sent to Borney, in Bonbón they divided more than two thousand. They say that in all Pampanga five or six thousand pesos were taken, and similarly in all towns where they get recruits.

Sometimes they do not go at harvest-time to collect the rice which they say belongs to your Majesty, but only when it is very dear; and then they require it to be sold for the price which it was worth when they harvested. Sometimes the Indians buy back for five or six tostons what they sold for one. The past year, when the Indians ate shoots of palms and bananas because they had no rice, and many Indians died from hunger, they made them sell the remaining rice at the price which it was worth at harvest-time. Sometimes the entire quantity of his rice is taken from an Indian, without leaving him a grain to eat. One poor widow, seeing that they were carrying off all her rice without leaving her a grain to eat, took, as best she could, two basketfuls to hide under the altar, and there saved them; but it is certain that if the collector had known it, they would have been taken from that place.

Another injury that they do to this poor people, under pretense of its being for your Majesty, whereby your royal name is detested among them, is as follows. Formerly, when rice was plentiful, four hundred gantas were worth one tostón; your Majesty's officials of La Pampanga furnished me with the price which it was worth. Last year the governor ordered that twelve thousand fanégas of rice be taken from La Pampanga for your Majesty, and that the Indians should give three hundred gantas for one tostón. It was then worth among them about a peso of gold, because it could not be had at any price. Many Indians died of hunger. The three hundred gantas which they took from them for one tostón were worth about six tostóns, and a person who wished to buy it could not find it. This present year, when they have so little grain and the famine is so great in La Pampanga, the Spaniards might have sent to other districts to buy rice, where--although they must go farther--it is more plentiful, and could be taken without injuring the Indians. Yet the Spaniards have chosen not to do this, but rather to order that it be taken from La Pampanga. And while the price among the Indians is fifty gantas for one tostón, they require them to give for your Majesty at the rate of two hundred and fifty gantas. At the season when this was collected, I was visiting La Pampanga, and I saw so much weeping and moaning on the part of the wretched Indians from whom they took the rice, that it moved me to great pity--and all the more since I could see so little means to provide a remedy; for although I wrote about it to the master-of-camp, who was at that time lieutenant-governor, it profited me little.

As for the means of collecting this rice, the alcalde-mayor or his deputy divides among the chiefs two, three, four, or more taes of gold (which is a certain weight worth five pesos), and orders that so many gantas of rice be collected for one tostón. Afterward they send, to collect this rice, men without piety; who, with blows, torture, and imprisonment enforce compliance with the rate of three hundred and fifty gantas for a tostón; and, in other years, one hundred of wine, and this year, sixty. It is a fact well established, for I have learned from the very persons who collect it that it often happens, that the Indian, not having so much rice as is demanded, is obliged to go to buy at the rate of fifty gantas for a tostón, and fifteen gantas of wine; and from him, as is said, they take two hundred and fifty of rice and seventy of wine for one tostón. If this occurred only with respect to rice, which is necessary for the expense which your Majesty incurs in this city, it would be but half a wrong, although I do not know what law permits them to invent one price for your Majesty and another for others. However this may be, I will pass on. But the real evil is that the governor, master-of-camp, alcaldes-mayor, your Majesty's officials and other persons to whom these wish to give it, all consume it at this same price, and they also collect it at this price for the hospitals of the city. Although the governor, in the orders which he gives for the hospitals and for other persons, such as alcaldes-mayor, does not name the number of gantas to be given for a tostón, yet the rate is not higher than for your Majesty. He is at fault, in that--knowing that they collect at this price--he neither causes what has thus been taken to be restored, nor punishes him who transgresses in this matter; thus many dare to take rice from them at these same prices, knowing that they will not be punished. I know that many alcaldes-mayor, having orders from the governor to buy from the Indians of their districts three hundred fanégas from each single man and five hundred from each married man, take it at the aforesaid price, and even much more than they are permitted to take, and sell it again at the current price. I know that they also go to collect, at the price fixed for your Majesty, for themselves and their friends, much more rice than they have a right to take according to order. The same is true in regard to cutting timber.

They compel the Indians to work at tasks in the service of your Majesty, paying them but little, and that irregularly and late, and often not at all.

I do not mention the injuries which the Indians received from the Spaniards during the conquest, for from what happened to them in other parts of the Yndias can be inferred what would happen here, which was not less, but in many places much more. I speak of what has happened and now happens in the collection of the tributes, so that your Majesty may see if it is right to overlook or tolerate things which go so far beyond all human justice.

As for the first, your Majesty may be assured that heretofore these Indians never have understood, nor have they been given to understand, that the Spaniards entered this country for any other purpose than to subjugate them and compel them to pay tributes. As this is a thing which all peoples naturally refuse, it follows that where they have been able to resist they have always done so, and have gone to war. When they can do no more, they say that they will pay tribute. And these people the Spaniards call pacified, and say that they have submitted to your Majesty! And

without telling them more of God and of the benefits which it was intended to confer upon them, they demand tribute from them each year. Their custom therein is as follows. As soon as the Spaniards have subjugated them, and they have promised to pay tribute (for from us Christians they hear no other word than "Pay tribute"), they say to the natives, "You must give so much a year." If they are not allotted in encomiendas, the governor sends some one to collect the tributes; but it is most usual to allot them at once in an encomienda to him who has charge of collecting the tributes. Although the decree relating to encomiendas says, "Provided that you instruct them in the matters of our most holy faith," the only care that they have for that is, that the encomendero takes with him eight or ten soldiers with their arquebuses and weapons, orders the chiefs to be called, and demands that they give him the tributes for all the Indians of their village. Here my powers fail me, I lack the courage, and I can find no words, to express to your Majesty the misfortunes, injuries, and vexations, the torments and miseries, which the Indians are made to suffer in the collection of the tributes. The tribute at which all are commonly rated is the value of eight reals, paid in gold or in produce which they gather from their lands; but this rate is observed like all other rules that are in favor of the Indians--that is, it is never observed at all. Some they compel to pay it in gold, even when they do not have it. In regard to the gold likewise, there are great abuses, because as there are vast differences in gold here, they always make the natives give the finest. The weight at which they receive the tribute is what he who collects it wishes, and he never selects the lightest. Others make them pay cloth or thread. But the evil is not here, but in the manner of collecting; for, if the chief does not give them as much gold as they demand, or does not pay for as many Indians as they say there are, they crucify the unfortunate chief, or put his head in the stocks--for all the encomenderos, when they go to collect, have their stocks, and there they lash and torment the chiefs until they give the entire sum demanded from them. Sometimes the wife or daughter of the chief is seized, when he himself does not appear. Many are the chiefs who have died of torture in the manner which I have stated. When I was in the port of Ybalon some chiefs came there to see me; and the first thing they said to me was, that one who was collecting the tributes in that settlement had killed a chief by torture, and the same Indians indicated the manner in which he had been killed, which was by crucifixion, and hanging him by the arms. I saw this soldier in the town of Caceres, in the province of Camarines, and learned that the justice arrested him for it and fined him fifty pesos--to be divided equally between the exchequer and the expenses of justice--and that with this punishment he was immediately set free. Likewise I learned that an encomendero--because a chief had neither gold nor silver nor cloth with which to pay the tribute--exacted from him an Indian for nine pesos, in payment of nine tributes which he owed; and then took this Indian to the ship and sold him for thirty-five pesos. And although I told this to the steward and asked for the Indian, he remained in slavery. They collect tribute from children, old men, and slaves, and many remain unmarried because of the tribute, while others kill their children.

What the encomendero does, after having collected his tributes in the manner stated, is to return home; and for another year he neither sees nor hears of them. He takes no more account of them than if they were deer, until the next year, when the

same thing is repeated. These injuries the Spaniards inflicted in all places until recently. In this district of Manila there is not so much of it now, because many of the natives are already Christians, and there are religious among them, and affairs are in better order. But in remote places and some not very far away, what I have stated occurs, and even worse things are done. Because all, or nearly all, of those who pay the tribute are infidels, and neither know nor understand more of the matters of our faith than they did a hundred years ago, and even more on account of the wrongs which they suffer, they abhor and abominate the faith. Indeed, as for the example of decency which those who mingle with the Indians set them there is no way to describe it here without offending your Majesty's ears; but I state it as an assured fact that they care not whether a woman be a believer or an infidel, single or married; all are on the same level. From this your Majesty will gather what these unhappy Indians will have conceived of us and of the faith which we preach.

I shall not omit to mention here a thing which is full of reproach to the Christians who have lived here, and even to all of us who hear it--namely, that the natives of these islands have been, from ancient times, infidels, of whom there are many now in this and other islands; and that the Moros have come to these islands from that of Burney to preach the law of Mahoma, through which preaching a large number of pagans have turned Moros. Those who have received this vile law keep it with much pertinacity, and there is great difficulty in getting them to leave it. Moreover it is known that the reason which they give--to our shame and confusion--is that they were better treated by the preachers of Mahoma than they have been and are by the preachers of Christ. [30] Since, through kind and gentle treatment, they received that doctrine willingly, it took root in their hearts, and so they leave it reluctantly. But this is not the case with what we preach to them, for, as it is accompanied with so much bad treatment and with so evil examples, they say "yes" with the mouth and "no" with the heart; and thus when occasion arises they leave it, although by the mercy of God, this is becoming somewhat remedied by the coming of the ministers of the gospel, with whose advent these grievances cease in some places. After Don Gerónimo [31] Ronquillo carne to govern, [it was decreed] that from the Indians should be taken the [taels?] [32] of gold which the Indians manufacture. Whether or not this has been done by order of your Majesty, I do not know; but I know that if your Majesty were in this country you would not order this law to be executed now; because most of them are still infidels, and I do not know what right there is to exact these taxes from the infidel, nor to what a people so [_illegible in original MS._] might be driven by such rigor. From this result many injuries to the Indians. For, as is well known, they have wrought the gold which they received from their ancestors, and they regard it as lost. [33] All the Indians are compelled to declare all the gold that they possess, and the amounts are placed on a list, in order that if they should come into possession of more gold in the future, it may be taken from them--not as the royal fifth, but as forfeited. Moreover as these Indians wear chains and ajorcas, [34] the alcaldes-mayor, in the attempt to profit thereby, require that these should be declared, on the ground that these are ornaments which the Indians have manufactured, and on which they have not paid the fifth; and although this may be a lie, it costs the Indian, before he is free, a good share of his gold. Indeed, they

denounced an Indian before the governor himself; and in spite of many entreaties from religious, he fined the Indian one hundred and twenty pesos, which was the third part of the gold about which he was accused. A religious assured me that it was gold received from his ancestors; but the Indian could not help himself.

I could never finish--and it would be a very annoying subject for your Majesty--relating all the hardships that befall these unfortunates in this country. They ought to be feasted and favored, in order that they may become attached to our faith, and understand the mercy that God has shown them in bringing them to the knowledge and manifestation of it; but those who here continue to forget this are the cause of their abhorring the faith. They consider your Majesty a cruel king, and think that you are trying only to profit by their estates and to claim their personal service--although all is so much to the contrary on the part of your Majesty, as witness the holy laws and ordinances which, for the good government of these lands, your Majesty has made and ordered to be observed.

But if it is true, most Christian king, that the intent of your Majesty in sending Spaniards to these lands is that God may be known, His faith preached, and His holy law received here; and that these Indians, by love, good works, and example, may be led to the knowledge of God and obedience to your Majesty--what law or right permits individuals to transgress in this matter by their greed and self-interest, and to do the opposite of that for which your Majesty sent them? This purpose is that in your royal name and with holy royal authority they may govern this country, dignified for this task by very honorable titles, and remunerated by large salaries, your Majesty so affectionately charging them to treat these natives well, and giving them for that purpose such holy laws, ordinances, and instructions. Yet these men turn aside their eyes from all this and close them to the injuries and ill-treatment which these unfortunates receive. What abhorrence to our holy faith arises in their minds from this conduct, and what an impediment to the conversion of the infidels is thus formed! And those who are already converted are regretting that step; for these men concern themselves so entirely with getting rich in the shortest possible time, to which end they are continually planning and undertaking every means which seems to them best suited to attain that object--even though it may be contrary to your Majesty's commands and prohibited by the laws of the kingdom and the ordinances of the Yndias, and though it may be injurious and prejudicial to those whom they were charged, by the authority of your Majesty, to make free, and to secure from all those wrongs. If this be true, what punishment would be fitting for such a crime? Or how could your Majesty so overlook a thing so pernicious, that you should not order it to be punished rigorously, and should not remedy evils which so greatly need correction? But whether this is so or not, it is not for me to accuse or to speak ill of any one. I only say, and truthfully, that this land is ruined; and it is doubtful whether, if it experiences another year like the two just past, it will endure till the third--and this is no exaggeration.

In the ship which just arrived from Nueba España came certain royal decrees--a remedy for some evils of which information had been given. It seems that the country received thereby some alleviation of its troubles, but I do not know what will follow. It

is a great misfortune to have your Majesty so far away. For if you were near us, all these ills would soon disappear--as I hope, by the Divine goodness and your Majesty's holy zeal, that they will not endure longer than till you shall hear of them, not by my report, but by information which may be quite sufficiently obtained in Nueba España; for what I say here is for no other purpose than that your Majesty may be informed of what is going on, and that you may order it to be remedied.

Since your Majesty orders, by your royal decree, that in case the governor do not keep the royal laws and ordinances which are made for these lands, I advise your Majesty of the fact: what might in compliance be said with entire truthfulness is, that I do not know what decree, provision, or ordinance issued for the benefit and aid of the Indians is kept or noticed; and if any promise is made, it is only for courtesy. Never have I seen any man punished who may have violated the decrees, or who may be scandalous in sin; and in order that it may be quite evident to your Majesty how badly your holy laws are kept, I shall proceed to demonstrate by the royal ordinances.

2nd. The second clause, commencing, "those who administer government," etc., is neither kept nor noticed, because it never is taken into account. Therefore the Indians understand that the good which is to be done them is but to subjugate them and make them pay tribute; and as this is the purpose of those in authority, they never do what is ordered in this clause, but at once send soldiers to force the Indians to submit although they may not desire it; and before they return they leave the natives subjects and tributarios.

4th. Clause four, for the same reason, is not heeded.

20th. In regard to clause 20, although it is so necessary, and so deserves to be obeyed, those in power act as if they were ordered to do the very opposite, as is explained above, where I discuss the wrongs that they inflict.

24th. To what is ordered in clause 24 some respect is now paid in this island; but heretofore everything has been done in contravention of it, and the penalty has never been enforced.

25th. Nor has clause 25 been observed in this island. On the contrary, there has been, I say plainly, a notable diminution in the royal exchequer, and the difficulties which are mentioned in the clause result.

29th. With regard to clause 29, the deeds of those who go on these expeditions are so contrary to the orders given in this clause that it would appear that they are sent to rob, rather than to pacify.

30th. Clause 30 is the least respected of all those contained in this book of ordinances, as was said, and there is most necessity for its observance. It is, moreover, certain that all the other ordinances are regulated by what is here commanded.

32nd. To clause 32, which treats of new settlements, no more attention is paid than if it had not been written. For no settlement is either made or contemplated in this island; no Spanish town has any pasture for cattle, or land for cultivation, although that would be a great convenience; and those who wish to undertake anything of the

sort--for there are two or three such--are granted no favor when this matter is discussed; nor is there any one who remembers the law.

33rd. No attention is paid to clause 33, nor is the pacification of the natives conducted on any orderly plan--except that here and there some men are sent to make the Indians tributary, without attention to securing their pacification or settlement. Some attention was, however, given to this in the expedition which was just made to Cagayan.

36th. We all know well that the principal aim of your Majesty is that expressed in clause 36, but this is not the aim of those who govern; accordingly, they do little for the conversion of the Indians, but much for their own profit.

138th. The part of clause 138 which is observed, for good or bad, is to subjugate the Indians and compel them to pay tribute; beyond this there is neither care nor thought.

139th. For the like reason, clause 139 is not observed, nor is there thought of it.

141st. Of what is ordered in clause 141 nothing is observed; for they care no more for rendering justice to the Indians than if these were beasts who lack reason.

144th. The part of clause 144 most important for observance was that beginning "the country being pacified" [_illegible in original MS._]; it was, indeed, the most necessary for observance. But in order to relate the harm that follows from not observing it, there should be another man who knows better how to say it than I do. This law or clause contains two parts. In the first is stated the obligation of the governor in allotting the Indians; in the second, the obligations of the encomenderos toward their encomiendas. As for the first, it might (and not without reason) be disputed whether, for your Majesty's peace of conscience and for the welfare of these natives, it is fitting that these encomiendas be allotted. But since this subject requires more time and space than I now have to devote thereto, let it remain for another voyage, when, by the help of God, these and other doubts will be dissipated, for the service of God and your Majesty. I venture to say this because, although your Majesty has so near you so many and so excellent learned men in all subjects, yet, to determine many matters relative to the Yndias, it is doubtless necessary to have dwelt in them, and that for not a few years. For the present it is sufficient to say that if the governors (before allotting the Indians) and the encomenderos (after their allotment) would observe even what is demanded from them in this clause, they would relieve your Majesty from painful scruples, and us from doubt, and thus from a heavy burden of conscience; while to the Indians would be given an extraordinary benefit. But all is contrary to this, because neither do the governors, when allotting the Indians, take notice of what is here required from them--for they make the encomiendas before the Indians are pacified, or even have heard the name of God or of your Majesty--nor do the encomenderos heed the obligation which they take upon themselves; but, confident of the encomienda allotted in this manner, they go to collect the tributes in the manner above stated; and among them are some who do so even more tyrannically.

145th. Of clause 145, that which has to do with the Indians is not observed any more than the foregoing in regard to reserving the chief villages for your Majesty. Your islands are not like Nueva España, where there is a chief village with many others subject to it. Here all are small villages, and each one is its own head. The governors, interpreting this law more literally than is good for the service of your Majesty, have added to your royal crown some very small maritime villages; and the advantage has been given to whomsoever they have wished--whether justly or not, it is not for me to decide. I can assure your Majesty that it is very little in way of tributes that finds its way into the royal chest, although there is much need that your Majesty should have money here to provide many necessities, which others cannot supply if your Majesty cannot. I also say that, according to accounts current here, no Indians are harder worked or less free than those apportioned to the royal crown. There are many other reasons which might be given to make this clear, which are very patent to us here. One is that, as the officials do not go out to collect the tributes, the governor sends one of his servants whom he wishes to favor, to collect them. He collects for your Majesty what they owe, and for himself whatever he desires; and this is most certain, as well as the method of collecting. Your Majesty's Indians undergo greater oppression than do the others. Those encomenderos visit their Indians, and once in a while they cannot help taking pity on them; but for those of your Majesty, there is no one to grieve and no one to care. I even hear it said that many soldiers, when without food, take it from the Indians, under the pretense that they serve your Majesty and are given nothing--saying that, as it belongs to your Majesty, they may do so.

146th. What is contained in clause 146 is the thing which would most attract the Indians to receive our faith if it were observed. But there is nothing which more impedes the conversion of these barbarians than that, from the very outset, the Spaniards go among them and compel them to become subjects of another and a foreign king whom they do not know; and without more ado demand tribute from them, which is the thing that they most unwillingly acquiesce in. Certainly it is a very great pity and a cause for much grief that such covetousness is found among us, that--through not knowing how to deal with these barbarians, through not having patience with them that they may understand the good which comes with us to them, and through greed for what they now pay us--we may be the cause of thousands of them remaining unconverted, and of those who are converted becoming so more through force than choice. I am certain that if this clause had been observed, all of these islands would be converted, and that not as a pretense, but in all sincerity. From this your Majesty may see the harm done by those who do not observe what your Majesty commands with respect to the pacification of the Indians. And--in order that you may know how these Indians feel about paying the tribute--when my arrival was made known among them, and it was said that I was captain of the clergy, as the governor was of the laymen, they asked if I had come to force on them any tribute, a thing which they so much fear. In the instructions which the governor, Don Gerónimo [_sc._ Gonzalo], recently gave to Captain Juan Pablo de Carrión, who made the expedition to Cagayan, there is a clause stating that "tribute shall not be demanded from them for one year"--which marks the beginning of some respect for your

Majesty's orders; and I hope to God that it is to be one of much importance, in order that those Indians, who three or four times have been so wronged and scandalized, may now have peace.

147th. Clause 147 is quite forgotten, nor can those who govern be persuaded that this so holy manner of preaching the gospel be tried; besides, your Majesty leaves no authority to the bishops or to other prelates to attempt the apostolic preaching of the gospel, but all the authority is given to the governors, or is assumed by them. If this clause were to be observed, the bishops and not the governors would have to reform whatever is needed. The preachers go either alone or with an escort; hence it is that the governors attempt more than the conversion of the Indians. They never find place for the fulfilment of this clause. It is without doubt a shameful thing, and unworthy of one who professes such a law as ours, that we should not trust in God, for sometimes the preachers would do more alone, unaccompanied by arquebuses and pikes; and, although I do not deny that this may be lawful and sometimes necessary, it would not be a bad plan that this be tried the other way, at some time. But it will not be done if your Majesty does not order otherwise.

148th. It is very necessary to observe clause 148 in this country, since the Indians are thinly scattered, and are settled amid rivers and marshes where they are found with much difficulty. Hence it is very desirable that the encomenderos do as they are here commanded, and not wait for the religious or ecclesiastics, who can not do it with the same facility as can the encomenderos. Moreover, since the removal of the Indians from their former homes is a thing very odious to them, and they change their homes very unwillingly and with much hardship, it would be better that they be vexed with the encomendero than with the minister--who has to teach them, and through whom they have to learn love, and who in all things strives for their good. The same is true of building the churches and monasteries.

Relation of what concerns the Sangleys

The commerce with the Sangleys has always been considered very important for the supplies and trade not only of this city, but of those who come here to invest their money, and for what is expected from it in the future. For it might be that by this means we shall get a foothold in that great realm, which of all things is so much desired. This trade has been so harassed and injured this year that we are in great dread lest those who come here, or many of them, will not return, or that they will not be willing to sell their merchandise at former prices, because of the bad treatment that they have received and the lack of order here.

During the past year and the present one the ill feeling has increased, because at first they paid nothing; but later anchorage dues were levied upon them--more by way of securing acknowledgment than for gain; while last year and this they have demanded three per cent from the Sangleys, from which many injuries to the latter have resulted. The first is, that they all were ordered to live apart, in one fenced-in dwelling made this year, whither they have gone very unwillingly. There the shops have made them pay higher prices than goods would cost them outside. A warden has been appointed for them, with judicial authority to punish them; and, according to

report, many wrongs and injuries are inflicted upon them. Indeed, for very trivial causes they are put in the stocks, and pecuniary fines exacted from them. Sometimes they have been fined for going outside at night to ease the body, or for not keeping their place clean.

Under the pretext that they must pay taxes to your Majesty, a penalty was imposed upon the sale of any article without its previous registration; but at the time of this registration the best of their merchandise was taken from them, and that at the price which the inspector or the registrar chose to set. Some pieces of silk were therefore hidden by the Sangleys, either to sell them to better advantage or to give them to persons to whom the goods had been promised. For this they were punished with as much rigor as if the penalty had been required from them for many years, instead of being, on the contrary, only the first or second time when they had heard of it. Among other things, I know that because a Chinese merchant sentenced him to one hundred lashes and a fine of seventy-five tostóns. A brother of his came to me to ask protection for him, and at my request they remitted the lashes; but he paid the tostóns before he could leave the jail. Of these and of other wrongs to individuals so many cases occur that I have been greatly troubled. For some would take the goods from the Sangleys by force, and keep them; others would not give them what the goods were worth; others would give them written orders [Span. _çédulas_] [35] (which are much in use among them), and afterward repudiate these. Thereupon they would hasten to me; and, as I could not secure reparation for these wrongs, I was greatly afflicted. The confusion and lawlessness which prevailed in taking the goods from them was so great, that in order to get these better and cheaper, those who had authority in this matter would not allow the Sangleys liberty to sell to those whom they might prefer. But these of whom I speak took all the goods. Then, after having selected what they desired, at whatever price they might choose, they would give the rest to their servants, friends, and associates. In consequence, although twenty ships have come from China--and so many have never before been seen in this space of time--nothing of all that comes from China has been visible this year. On the contrary, Chinese goods have risen to such excessive prices that a piece of satin formerly worth ten or twelve tostóns here, has been sold at forty or forty-five, and yet could not be found, even for the church, which is so needy that it has not been able to obtain silk to make a single ornament. The same is true of all other Chinese goods, which were formerly hawked in vain through the streets. Who may have been the cause of this, what has become of these goods, or where they may have gone, it is not incumbent upon me to say. What devolves upon me is, to represent to your Majesty the condition of this country, which can not last long volves upon me is, to represent to your Majesty the will insist upon knowing whose is the guilt, and upon providing a remedy for your vassals who are so greatly in need of it.

From this condition of affairs has resulted very great harm, which must be the reason why the trade of this city has ceased. That is, since all the goods have this year come into the possession of a few persons, the traders who came here on the strength of reports of the good trade in this country have not spent their money; or else those who have spent it have bought very little, and at so high prices that they will do well if they get back their money. The evil does not stop here; for these

traders are compelled to perform sentinel-duty, just as the soldiers do, and in order not to leave their goods to be stolen, they pay a soldier who does this for them, and collects the money. Thus every week they have to pay one tostón (the equivalent of four reals) for the services of a sentinel.

These same merchants were summoned for an expedition which was going to Iapón [Japan], and a fleet was made ready to sail thither; and in order to avoid going they paid as much as thirty and forty pesos each. Thus, in many ways, trade has been unfortunate this year. The latest injury--that which most harassed the Chinese, and most succeeded in irritating them--was that, in sending a galley on the expedition to Iapón which I mentioned, twenty or thirty Sangleys who had come this year to remain here were seized, and compelled to row. Many have come to me to complain, saying that they had come here to earn a living for their children; and asked that, since they were not allowed to accomplish what they came for, they might be permitted to return to their own land. But it profited neither them nor me to say this, for they went on that expedition and have not yet returned. From this another injury has come to us all. For since those who went in the galley, and others sent afterward, were fishermen, the fish that formerly was sold in the streets in great quantities, and for a trifling sum, now cannot be obtained at a high price. Next, they sent another vessel, loaded with rice as provision for the fleet, and ordered a like number of Sangleys to accompany it. In order to avoid going, each hunted up whomsoever he could find; and he who had no slave to send gave ten pesos to some other man to act as his substitute. These and other wrongs have caused two hundred Sangleys, who came this year to settle here, to return; and of those who were living here two hundred and more have gone away. There used to be a very prosperous settlement of them on the other side of the river, but now there appears to be almost no one--as your Majesty will see by the letter written to me by the vicar of the Sangleys, who is an Augustinian friar.

Another wrong is done to the Indians--not to all in general, but to many; it is, to hold them as slaves. This clause also concerns the failure of the governors to obey your Majesty's decrees and writs; for so many of these are issued, commanding that Indians must not be held as slaves of the Spaniards anywhere in the Yndias--either in the islands or on the mainland, in lands discovered or to be discovered. This applies, in whatever way the Spaniards may have obtained them: whether it be in just war; or if the Indians themselves have sold them to the Spaniards, saying that they are slaves; or even if among them these are actually slaves; or by any other means, and in any manner whatsoever. By the ship in which I came the Augustinian fathers brought a new decree from your Majesty, ordering with much rigor, and in strong terms, that the Spaniards shall at once liberate the slaves whom they may hold, under whatever circumstances they may have obtained them. This was presented to the governor, for I talked with him about it. But, to show that what I say above is true--that no decree in favor of the Indians is ever enforced--since this decree was presented the Indians are still in the same servitude as formerly, and some of them are even worse treated than in the past. The governor did not so long delay to enforce the decree (if there be one) relative to taking a fifth of the gold; for the first thing that he did on entering his office was to demand the fifth, while the decree regarding liberty is yet to be

executed. I have passed over many things in this connection which, if written here, would be annoying to your Majesty. A document in behalf of the city is being prepared which proves the great necessity in this country for servitude. It states that the Spaniards undergo much toil, and most of them many hardships, and that there is much need that your Majesty should aid and favor them; but asks that this be done by allowing them to hold slaves. Your Majesty will order this to be carefully examined, for it is a certain and well-established fact (and admitted by the very persons who hold and attempt to gain possession of slaves) that although among the Indians there are some who are really slaves, these are few; and that, rather than sell these now, the Indians will sell one of their children. All others are wrongfully obtained and unjustly enslaved--as would be done by a people so barbarous as this, who at this very time sell a relative for gain, and among whom the more powerful will sell the weaker. Most of those who today are in Manila as slaves are of this class. As soon as this decree was presented to him, the governor asked me to advise him what he should do. Accordingly, I convened the superiors of the orders, and the religious therein who had long resided here, with some very learned men who came with me. All of them, without one exception, were of one opinion, a copy of which goes with this letter; your Majesty will please order it to be examined--although it profits little, because proclamation of the decree and orders that it be obeyed were not issued until March of this year. Would to God that it had not been proclaimed! because before that the masters were afraid, and had already determined to give their slaves liberty, seeing that they were urged thereto in the confessional. But when the decree was proclaimed, and the petition which the city referred to your Majesty was granted, all returned to their obstinacy. Upon seeing this, I again convened the fathers and priests, and we agreed to admit the owner of slaves to confession, but on condition that they make no objection to what your Majesty may order; or that within two years from the departure of this ship (the term assigned to them by your Majesty) they should free the slaves. But I am sure that if your Majesty does not renew your order the masters would not release them, if two years or even twenty should pass. It is a great hardship, and a scandal, to have to deny them confession; and many say that they will not release their slaves until your Majesty so orders, even though they remain without confession. The decrees made by the city and by the protector of the Indians are being sent to you. Your Majesty will order examination of them, and whatever else may be proper, and command accordingly; because, although I have been of the opinion that for the present the masters may be absolved, many of the religious refuse to do so unless the slaves are first given their liberty.

It is next in order to inform your Majesty of what is done here with the prelates; [36] it is as follows: When a Spaniard comes to this country he is at once ordered to serve under the flag, although he may be a merchant who comes here to buy and sell. The authorities say that for the present it seems proper to allow the merchants to depend upon their merchandise, and the encomenderos to live upon their encomiendas. All the rest live a very poor and wretched life; for they are not supplied with any provisions, nor do they possess means to procure food and clothing. Notwithstanding all this, they are ordered with great severity to assist the sentinels and aid in other duties of war, just as if they were well paid. Hence ensue oppression

and ill-treatment of the Indians; for sometimes when an Indian has some food that he has cooked for his own meal, a soldier enters and takes it away from him. Not only that; they also maltreat and beat the Indians, and when I, being near at hand, go to them and reprimand them for it, they say to me: "What is to be done? must we be left to die?" I assure your Majesty that in this matter I suffer an intolerable torment; because all come to me with their troubles, and I have not the means to remedy them. I only pity them, and do what I can, with my limited means, to aid them. Moreover, the encomenderos refuse to pay tithes, although they have been ordered to do so; nor can the royal officials pay me what your Majesty orders to be given me from your royal treasury, because they assert that no adequate instructions are sent them. Thus I am without means for myself or for the poor. The former governors were accustomed to divide among the poor soldiers some of the rice paid to your Majesty as tribute, in order that they might endure their misery; but now not even this is given to them. It is a still greater oppression that the authorities neither consent to furnish them a living, nor give them permission to go in search of it or even to leave this island. I gave to the governor the decree regarding this matter which your Majesty ordered to be sent; but nothing has been done, because in it your Majesty did no more than to order him to attend to it, and to do what he might think best.

The governor consulted me about his intention to add to the tribute of the Indians two more reals apiece, with which to support the poor soldiers; and I convened the fathers and the clergy to confer about this matter. Seeing that this country cannot be sustained unless there are Spaniards in it, unless the encomenderos are supported, unless the tributes are collected with the aid and assistance of the soldiers here, and unless the Indians pay the tribute which the encomenderos levy for love of the faith, they concluded that the encomenderos are obliged to support the soldiers, who are necessary to render the country secure. But, on the other hand, they considered that as the encomenderos of these islands are very poor, and some of them are married, and very few have encomiendas of reasonable extent, and they can maintain themselves only with much difficulty--much less will they be able to support the soldiers. They concluded that your Majesty is not obliged to use your royal patrimony for this and the other expenses, but that those for whose benefit they are incurred (for which purpose the Spaniards are here) must bear the cost. Accordingly, if the tribute they give does not suffice for all the expenses necessary in order that they may have suitable instruction and may be protected, they, and not your Majesty, must bear these--as St. Paul says, and as the divine law commands. For this reason the governor wished to add the two reals before mentioned, and there was no lack of agreement in this opinion among the fathers and clergy. To me also it seems that, considering the divine law, these people are obliged to pay all the expenses. But considering the poverty of the common people, that perhaps the tribute they give might suffice, for all that is necessary--if it were well apportioned--and for other reasons that make the project doubtful, I have ventured to give the opinion that nothing should be added to the tribute which the Indians now give, until your Majesty can be informed and can order what action should be taken.

In these islands there are many soldiers who were married in Mexico, España, and other countries. Many of them left their wives twenty-five, others ten, fifteen, or

twenty years ago; and others, more or less. I have done my best to induce them to go to live with their wives, or to bring them here, but it has been of no avail. Will your Majesty please order that your decree in this matter be observed, for this is not done--nor do the governors try to observe it, saying that the soldiers are needed here; and thus they spend so many years, breaking the law of God and that of holy matrimony. I beg your Majesty, if it please you, to provide a remedy for this; for, if your Majesty does not order it, there will be no one here who can send them hence.

The thing most necessary for the protection of these Indians until they shall better understand our ways is, that there should be a protector who should look after them and defend them from the innumerable injuries that are inflicted upon them. The governor has named one who, it appears to me, does this well, and with care and diligence. But as his appointment is temporary, he dare not exercise his office with as much freedom as if he were appointed by your Majesty. I beseech your Majesty to order this matter disposed of in such manner that it may be to the advantage and not to the injury of the Indians--which would result if this office were given through favor or sale, instead of being conferred on a person who is unencumbered, and very zealous in the service of your Majesty and for the welfare of the Indians; of such there will be very few. He who is now protector is very persevering, and is qualified for this appointment. His name is Benito de Mendiola. [37] But this man might prove deficient; and for the future, if it shall please your Majesty--since this should be well done (for it surely is a very important matter), and the bishops are, by right, fathers of the unhappy--it might be entrusted to him whom the bishop appoints, your Majesty naming the salary or requiring that it be raised here. If it please your Majesty, I will see that the Indians pay it, which they will do very willingly. And if your Majesty does not commit this to the bishop, he and the governor might be entrusted to name the appointee, it being provided that together and in no other way may they remove him--because many times the protector has to ask things which the governor does not like. The governor becomes angry at him, and if it is in his power, removes him--as I have seen done more than once since I came. The inhabitants of this city are among the most loyal subjects that your Majesty has in all his islands; and the soldiers, although suffering so many hardships, as above stated, and many more which cannot be told, are so obedient to orders in the service of your Majesty that it is certainly a cause for thanksgiving to God that, in so great an expanse of country, there should be a prince so obeyed and feared, loved and reverenced as is your Majesty in these regions. And since this condition of affairs is conserved by subjects perceiving gratitude in their kings and princes, and knowing that their rulers reward them for loyalty, I humbly petition your Majesty to give attention to what I have said (which is unquestionably true); and that you show them favor, in order that they may know that your Majesty is pleased with their loyalty.

I understand that what they ask is, that your Majesty order that the limits of this city's jurisdiction (which is five leagues) be maintained; and that you make them a gift of some lands, of which they have none, but without which no commonwealth can be sustained or conserved. The cabildo of México has, besides other sources of income, an encomienda--that of Jalapa, a prosperous village near México. Here there is at present nothing with which to undertake any enterprise, unless your Majesty is

pleased that some village be given them as an encomienda, in order that from the tributes may be obtained means to defray the necessary expenses, and conduct the public business in such manner as your Majesty shall order. With that they will be well content. The governor despatched a soldier to Maluco to ascertain what conclusion the Portuguese of those islands had reached. He returned almost at the same time as the ship from Nueba España, with the news which the governor will write to your Majesty. This news gave great satisfaction to all the people of these islands, because your Majesty's interests are thereby promoted, since our Lord has placed in your Majesty's hands the spice-trade of Maluco, which your ancestors so greatly desired. I am sending the letter which the captain at Maluco wrote me, in order that it may please your Majesty to reward generously so worthy a Portuguese as this man is--who certainly has displayed great zeal in your Majesty's service--not forgetting him who obtained and bore the news. This is Ensign Francisco de Dueñas, a very intelligent man, and very reliable in his own duties, who by his energy and diligence succeeded with this undertaking, in which others had failed. He is an old soldier in these islands, and has served your Majesty well in times of war. He is loved by all in this city, and has a good reputation on account of his excellent qualities. He is a person to whom anything whatever may be entrusted; he is very faithful, and a very good Christian. Will your Majesty please order that some reward be given to him? because he merits it, and because others may thereby be encouraged. I also beg that the Portuguese soldiers of Maluco may be in some way rewarded for the affection with which they ask your Majesty to be their king and lord.

In the letter written to me by the captain, he complains that I have not written to him; and he has reason for this--although the blame was not mine; for the governor wrote to the captain without saying anything to me, as he has done in other undertakings. I do not say this to speak ill of the governor, but only that your Majesty may know how affairs go here, and what respect is paid to the bishops.

In regard to Maluco, your Majesty will send some one there who understands it well. To those here who understand the trade, it has appeared that the cloves and other spices will go at less cost by way of Nueba España, and with less risk and more quickly than by way of India; and that to preserve the supply of cloves, so that it may not be destroyed, it is necessary that your Majesty should not permit the Indians of those islands to be allotted, but should retain them under your Majesty's direct control, and they should be dealt with as the king of Portugal dealt with them. For if the Spaniards try to subjugate them, and order them to pay tribute, all will be lost--especially in view of the ill-treatment which the Castilians will inflict upon the natives if the conquered land be given to them as an encomienda (even though it be with name of pacification), as we have seen them do in all lands where they have been. The Indians would receive such harm at the first entrance of the Spaniards that it would not be repaired in many years. Your Majesty will pardon my boldness and accept my desire, which is very strong, to serve your Majesty, in stating what I and many conscientious persons here feel. Your Majesty will adjust the matter as shall serve your interests.

It is now three years since certain Franciscan religious left this island to go to China (as your Majesty will already know), without notifying the governor. Now they have determined to do the same thing; the custodian, whose name is Fray Pablo de Jesús, has gone thither with his companions, without saying anything to the governor, for which I am very sorry. For lack of their labors here, many Indians who were already Christians have remained without instruction, which I consider a great disadvantage. But, knowing that God moves the hearts of men (a matter that we cannot understand), I will overlook that. The governor took this with more asperity than I wished, for he sent after them, and the person who went thither treated them very rudely; but finally God ordained that they should arrive at this island. The governor ordered a proclamation to be made (its contents will be seen by the copy of the ordinance which I send to your Majesty), which even to me seems very harsh toward an order of so high character and strict obedience as is that of the discalced Franciscans. I advised the governor not to act with so much severity, but he did not see fit to grant my petition. I have since learned that the same person who went after them treated them very harshly in Pangasinán and Yllocos--perpetrating upon them many acts of oppression, taking away their ship, and refusing to let any one accompany them--which occasioned no little scandal to the Indians. Among other reasons which the religious have given me to justify their departure from here is the sight of the ill-usage which the natives of these islands receive from the Spaniards, especially those who have the charge of justice; and they say that all these are for hindrance, and no one for help. Hence no harvest can be gathered; and therefore they went to seek a place where they could gather it. Certainly they are not far wrong, for the things that occur here and the obstacles opposed by those who ought to aid us, are so numerous that many times I have longed to leave it all and flee to the mountains; but the charge that I hold keeps me within bounds. There is very little respect for the ministers of the gospel; and they cannot exercise their office without being dependent upon those who have more concern for their own profit than for the instruction of the Indians.

There was sent to the island of Macan, where the Portuguese live--near the city of Canton, in China--a father of the Society, and with him two Franciscan religious, to deal with the Portuguese there, in the same way as with those at Maluco; he was sent also to the Chinese governor at Canton. A copy of the letter is sent to you, in order that it may be seen what is asked from the Chinese governor and in what form; for the Chinese who were then here told me how it should be properly written; they said that their governor would thus learn our usages, and that he would be delighted if we would write to him as we write to one another.

To fulfil our obligation, and to bring this narrative--already so long--to a close, I will not omit, as your Majesty's servant and chaplain, to say that since these lands are your Majesty's, and you have in them so many and so loyal and obedient subjects, both Spaniards and Indians, you should please to see that the people are cared for and well treated; and that the governors preserve their liberties, and do not convert the government into a source of profit to those who govern, as has been done heretofore, to the great injury and deterioration of these colonies.

To remedy this condition, your Majesty should send to govern them not those who solicit that charge, but those whom your Majesty shall seek--Christian men, without greed; for such men are what the people desire, and would suit them and us. Let your Majesty send hither a man who comes alone, and without obligations to relatives or friends (in serving whom they neglect their duty to the early comers, whose blood has been spilled), who is content with the salary that your Majesty assigns him (which is always quite sufficient), and who hopes for advancement by your Majesty through his services; and who will not, by making himself rich in two years, destroy this country, or prevent others from enjoying it and gaining a livelihood. By doing this, your Majesty will have one of the best possessions in the Yndias. But if things go on as heretofore and there is no one to attend to it, it cannot continue long. If it shall please your Majesty to entrust the government to men who live here, there are those who could conduct it very well and creditably, without the many disadvantages which attend those who come from España.

The foregoing is such information as I can give your Majesty from here regarding the transgression and observance of the royal commands, laws, and decrees; and of the present state of this country, the wrongs that occur in it, and what matters ought to be remedied. On account of the little time before the ship departs, not all of this letter is so polished as to be fit to appear before your Majesty. If this relation is deficient (as it cannot fail to be) it is not in lack of truth or in desire to serve your Majesty and secure the welfare of these souls whom, because of their sins and my own, I have in charge. If there is anything which to your Majesty appears worthy of remedy, I humbly ask for it; and if I have said anything about which it appears to your Majesty I ought to have been silent, I also humbly beg that I may be pardoned. Since your Majesty knows that I am five thousand leagues distant from your court, and surrounded by so many griefs and afflictions, you will not be surprised at what I say, but at what I leave unsaid--and even why I myself did not go to beg for the remedy; for it certainly is a different thing to see and endure it here, than to hear it mentioned there.

Fray Domingo, bishop of the Filipinas

INSTRUCTIONS TO COMMISSARY OF THE INQUISITION

Instructions which the person who is or in future will be the commissary of the Holy Office in the city and bishopric of Manila and the Phelipinas Islands of the West, [38] must mark and observe, in order better to fulfil the office and trust which he holds.

1. For this office shall always be chosen persons who are thoroughly competent and well approved--whose purity of family descent, and exemplary life and habits, have been previously ascertained through written information. Besides this, confidence is placed in their prudence, moderation, and temperance, which qualities will enable them to exercise aright the trust conferred upon them, and they will exercise it, for the public good, for the better transaction of business, and not for any private ends. Above all, it behooves them, and they are earnestly charged, not to employ the name and title of the Holy Office for avenging individual wrongs, or for

the intimidation or affront of any person. The more such a person shall suspect the inquisitor's friendship, the more prudently must the latter deal with him; otherwise, not only will God be therein offended, but the Holy Office will be greatly wronged.

2. As soon as the commissary receives his appointment, and before he makes use of his powers, he must accept it in the presence of an apostolic notary or a royal scrivener, in whose presence he shall give oath of secrecy and fidelity according to the minute accompanying these instructions. He will show the said title to the governor, and to the ecclesiastical and lay cabildos, in order that they may receive, treat, and recognize him as a commissary and agent of so holy an office. He will take great care not to exceed his commission, but to fulfil it, observing these instructions and other particulars which will be sent to him, which treat of the manner of receiving acknowledgments, substantiating testimony, and visiting ships. To show the certificate of appointment to the cabildos is only a mark of courtesy, and in no way a necessary proceeding; for there is no need of their permission or approbation. The commissary is advised of this because the patent for his commission does not require any other contrasignature or permission for its validity.

3. Secrecy is the surest means, which the Inquisition is to employ very rigorously, for the detection and punishment of crimes. Therefore the commissary is strictly charged to observe secrecy in reference to these instructions, or any others which shall be sent to him, or letters written to him about business, and all else that comes to his notice in the capacity of commissary. He shall impose the same secrecy upon all those who act as accusers or witnesses, or who ratify their former testimony, and upon all honest persons who are present at such ratification--ordering all the said parties to observe secrecy, under pain of excommunication, and under the obligation of the oath which they took when making their depositions. The commissary, moreover, shall impose other punishments, pecuniary or corporal; and shall enlarge on the gravity of the sin committed in the disclosure of a secret by a witness, with this warning, that the Inquisition punishes from the standpoint of example, and according to the character of the person and the nature of the transaction. On account of the great distance, [to Manila] [39] it is fitting to make this provision, that whenever any person who shall incur excommunication for having disclosed a secret shall come, of his own free will, to ask for absolution, therefore with the confession of his guilt the commissary shall absolve him, and impose upon him some secret spiritual penance, such as will entail no stigma or infamy. The commissary shall submit his own denunciation to the Holy Office, without making further investigations concerning the matter except in serious cases. But should the disclosure of a secret result in any marked injury or bring dishonor to a person, in such an event further information is required, in order that in either case the Holy Office may, after due examination, justly dispose of the matter as is fitting, although no change will result for the absolved person.

4. Special care must be taken to warn bishops, vicars-general [_provisores_], visitors, and vicars, that they are not allowed to mention crimes of heresy or the like in their public letters and proclamations during visit; for his Holiness has referred and submitted such cases to the most illustrious inquisitor-general and the inquisitors

appointed by him in all the kingdoms and seigniories of his Majesty. Therefore they shall try these cases _privatim_, which other judges can neither try, nor undertake to investigate, nor otherwise handle. Since in visitations crimes often come to light which must be tried by the Holy Office, warning must be given that these should be submitted to the Inquisition, with all secrecy and without the knowledge of the guilty party. The same must be done in suppressing the titles of vicars, in annulling the head of processes and charges made by the bishops, and in suppressing the title of inquisitor-inordinary; for in these regions the jurisdiction over the crime of heresy is wholly apostolic, except in case of the Indians. If any doubt, contention, or difficulty regarding the execution of this clause should arise, the commissary, without further inquiry, shall promptly notify us that he has warned, in especially polite and respectful language, the prelate concerned, to whom he must show much reverence--for the reverential respect which is due him should not be in the least abated by the privilege of the commissary's office.

5. It sometimes happens that certain ecclesiastical or lay judges take up matters belonging to the Holy Office, and make judicial inquiries therein. The question whether they should forbear from investigation of such cases, and submit them to others, has caused differences to arise between them and the commissaries, and has made them set forth most weighty arguments. Since the main care shall be to prevent such clash of authorities, in order to avoid this it is enough to bid them not to meddle in such matters. But if they persist in doing so it will be necessary to send them an injunction, couched in very respectful terms, drawn up in writing before a notary; to note their answers; and then to report everything to the Holy Office.

6. In cases of disobedience, disrespect, hindrance, and obstruction to the free and just exercise of the Holy Office, which also are wont to occur, the commissary shall be careful not to lose his temper, or to give way to words or deeds injurious and offensive to any person; on the contrary, that is the time for him to control himself and show great moderation. He shall make a diligent and full inquiry from other persons regarding the whole case, and shall notify us through his report; in this way any disobedience or disrespect on the part of a judge or a private person will be punished with greater rigor and justification. The delay which is apparent in this case might seem injurious, but it will not be so--as it is not in the transactions of the Inquisition; for, after men have slept soundly, they are awakened by a very exemplary punishment.

7. Denunciations regarding the matters contained in the edict shall be received in the commissary's own house, in a suitable, secret, and convenient place. They shall always be made by day, unless it should be necessary to receive them by night. The persons who come for this purpose must be treated with kindness, each according to his station in life. Every sort of infamy upon the party concerned must be avoided as much as possible.

8. In receiving denunciations there shall be no delay, but rather great care and diligence, as likewise in examining the evidence, following and keeping within the bounds of the injunctions laid down in the instructions which are especially sent for that purpose. The same and even greater care, and much attention, are required in

forwarding depositions.

9. Since it often happens that some of the witnesses are out of the city, and therefore depositions must be taken in different places, let the case in question decide the course of procedure, whether or not the commissary shall order the witness to appear before him. Usually there is no need to cause the witnesses the trouble of coming a long distance, when the investigation can be entrusted to the parish priest [_cura_] or vicar of the place, the notary making certification at the head of the authorization therefor given to him by this clause. A case may arise where it is best to wait for the witness, and it may be desirable to hold him, in order to examine him personally; this is left to the commissary's choice, for, having the case before him, he can decide what is best to do. If any one be summoned on the affairs of the Holy Office and shall not render due obedience, a written order must be sent to him, imposing upon him the penalty of excommunication and a fine in money, should he disobey. A report of all proceedings in each individual case shall be made, so that the disobedient person may receive exemplary punishment, according to his station in life and the nature of his disobedience.

10. Some are accustomed to send their denunciations through memorials, with or without their signatures, or by letters-missive; but, since these persons write them under no pressure or oath, and without the presence of a judge or a notary, they expand their accusations to the detriment of their neighbor's reputation. Therefore the commissary ought to avoid as much as possible the acceptance of such letters and memorials, and shall order the witnesses to declare under oath what they know of the matter, in order to free their consciences, and shall examine them concerning the facts. If the acceptance of such a letter cannot be avoided, the person who writes it should be summoned and made to acknowledge it under oath before a notary, after which he should be examined about the letter. If the letter be written from a distant place, the rule in the preceding clause can be followed.

11. Likewise some persons, moved by passion more than by commendable zeal, are wont to denounce others on the ground that they are _confessos_, and therefore not entitled to wear silk, carry weapons, ride on horseback, or do other things forbidden to them by laws and royal ordinances of these realms, as well as by the instructions of the Holy Office, as likewise is set forth in the edict. In these cases one ought to be careful not to accept such depositions except from children and grand-children of _relaxados_, or from children of a relaxada, [40] or from persons who themselves have been reconciled to the Church [_reconciliados_]. The commissary may receive denunciations from these three classes of persons, and send them to the Holy Office, without making any arrest, issuing interdicts, or taking other steps. On the contrary he will maintain great secrecy, and charge the witnesses to do the same. As for other persons denounced as confessos, since they are not in the said class, nothing will be written. On the contrary, the same secrecy will be imposed upon the witnesses and they shall be very kindly admonished to be silent, and not to slander their neighbors, informing them that the Holy Office will take no offense at what they have testified.

12. The heading of the charge made against any person must begin with the words of the first witness, and not, as is customary with ordinary judges in these regions,

the formula, that "it has come to his notice," etc.--inserting first what he has heard concerning the crime from any witness. When the commissary receives documents of many clauses from this Holy Office for the investigation of different matters and against many persons, he will place as introduction to the inquiry that he makes in each case that clause of the document which applies to the matter in question, legalized by the notary.

13. Any arrest made by the Holy Office is a matter of much reproach and dishonor for that person, and of no less damage and injury to his property; therefore an arrest should be made with prudence, care, and for just cause. Authority for this is not given to the commissary, who neither should nor can arrest a person except in special cases, and by a special order entrusted to him against the person who is to be arrested; and even then, the commissary must see that the purport of the said order be executed, without exceeding it.

14. The crime of bigamy is very frequent in this country, so that it behooves all commissaries to make diligent inquiry concerning it, and to punish the crime. If the ecclesiastical or secular court arrest any one for this crime and proceed against him, let them administer justice freely and without hindrance. If they refer the case to the commissary without charge, and without his making any effort for such remission, the latter shall say that it is very well, and that they may refer and send the case to this Holy Office at their own expense--or at that of the prisoner, if he be well-to-do. If they still urge him to receive the case there, that it may be sent by the order and at the expense of the Holy Office, the commissary shall answer that he has no orders from us for such action. If, dissatisfied with this answer, they ask permission to inflict punishment there, he will answer that they may investigate the matter, and may do justice according to law. After that he will allow no more arguments on the question.

15. This clause applies when the said courts have anticipated the case by the arrest of the accused person; for if the latter were free, and through information received from witnesses his two marriages were proved, and the existence of the first wife at the time of the second marriage, which constitutes the crime, the commissary shall arrest and remand to prison the person thus proved guilty--sending with the prisoner the information or original record, but retaining there an authenticated copy of it. Concerning other cases of bigamy, which do not show the same degree of guilt, it will suffice to send authenticated copies of such records or depositions as are received, and to keep the originals. Special information must be sent concerning the prudence of the accused, his station in life, and his wealth; so that after due examination the necessary measures may be taken. If he should come to this country [Mexico], the commissary must give us notice of his coming, so that the Holy Office may hear of it by the first despatches which shall reach Mexico. He shall also write to the commissary who resides at the port of Acapulco, that any attempted absence or flight may be prevented.

16. Concerning the other crimes enumerated in the general edict, after the denunciation has been received and the witnesses have been examined, according to the order laid down in the instructions, it will suffice to send such information without making any arrest or taking other steps. The commissary shall also send

information concerning the person's birth-place, station in life, means, and the real estate that he owns in this country, or in España. He shall notify us, in case such person comes here, so that we may deal with him as the nature of his offense demands.

17. As for the judicial proceedings in matters which concern the Holy Office--whether they be settled, or informal, or pending official transactions--which other courts submit to the Holy Office, whether at the instance of the attorney-general or by agreement, all original documents must be delivered, without retaining a copy of any; oath to this effect will be made by the apostolic notary or by the royal scrivener who hands them over. Since suits which do not belong to the Holy Office are sometimes thus handed over, the commissary shall, on account of the danger that they may be lost at sea, not send documents until he shall first examine them. If they clearly prove to be cases not belonging to the Inquisition, he shall return them to the owners. In case of doubt, the commissary shall send an account of the offense, with the evidence, and the status of the process--saying whether it is decided or pending, and whether informal or received on trial; he will also report as to the rank of the accused person, and whether at the time any arrest has been made, or will be made in the future. Ordinarily, whether the case be one of bigamy or of some other crime, the commissary shall proceed as stated in the two preceding clauses. If he should not be sent as prisoner, it will not be right to do so until his offense be investigated here; accordingly the commissary may discharge him under bail or under juratory security. [41] If the accused is unable to provide security, the commissary shall command him not to leave the city, town, or province where the crime occurred and where he owns property, under severe penalties of excommunication, and pecuniary or bodily punishments, suitable to the person's station. If such person wishes to come to this country, he can do so by offering the same bail or security to the Holy Office; but he must first be warned not to make the journey if other matters render such a step unsuitable. He shall be assured that in his absence his trial and his honor will receive the same attention as if he were present.

18. When any arrest must be made according to these instructions, it must, for any case of bigamy, be made according to clause fifteen. The commissary shall issue orders entrusting the matter, as is customary, to some one of the familiars whom he has to keep in the city. Until he has familiars, for lack of them he shall entrust it to the person on whom he has most reliance, and in whose integrity he most confides. When it is necessary, but only then, he may ask for the aid of the royal officials of justice. Whenever this shall be necessary, the royal officials may seize only the person pointed out to them by the Holy Office; and they must assist him, giving their favor and aid only for such person. In order to obtain this help, the commissary needs only to ask for it in polite terms; and it may be demanded without the necessity of giving information, either written or oral, regarding the offense--and, indeed, he shall be very careful not to do so. On the contrary, if anyone should be so inconsiderate as to ask for such information, let the commissary send us a detailed account of what takes place in the matter.

19. Royal magistrates are under obligation to render this assistance, since the request therefor does not require from them any fees, alguacil, or scrivener. The magistrates are also under obligation to receive and keep any prisoner in their jails, to take good care of him, and to account for him, but without exacting therefor any prison-fees. Accordingly the commissary will, when occasion arises, notify the magistrates and request their assistance; and if necessary he will command it, under pain of excommunication and a money fine. Thus he will not be obliged to find another and special prison, and incur the expense of guards. If the rank of the person, and the condition of the prison, and the nature of the crime require a more special and secret prison, on account of the danger that the prisoner may be able to communicate his affairs to other persons, such arrangements are left to the judgment of the commissary, who is charged to see that in these arrests little outcry be made, and that all scandal be avoided.

20. When the criminal is arrested, the commissary shall send him by the first available ship, registering him as being in the shipmaster's charge--commanding the latter (under penalty, if necessary), to take good care of the prisoner until he shall be handed over, at the port of Acapulco, to the commissary who dwells there, who is duly authorized to act. If the prisoner be well-to-do, the commissary shall send at least one hundred pesos' worth of his property, in order to pay for the food that he needs during his imprisonment, and to meet the expenses that he may incur during the journey; otherwise, the commissary shall send whatever sum be may obtain from the property. Since these men who are twice married are not a very dangerous class of people, the commissary may in a case of flight exercise leniency, by allowing them to come and present themselves under a sufficient security, corresponding to their station and means.

21. A sequestration of property is very injurious to a person, especially in the Indias, where all the value of property depends upon its management. The commissary ought not therefore, in any case, to do this; on the contrary, the arrested person shall permit suitable provision for his property, according to his own preference, entrusting it by means of an inventory to some person in whom he has confidence. The latter shall bind himself, in due form, to be the depositary of such goods as the prisoner may leave in his charge on account of his arrest; and in such manner that it may not seem to be a deposit or a sequestration by the Holy Office, but simply a contract between two parties. This accomplished, the commissary shall obtain very minute information about the station of the prisoner, his mode of life, and the means and property that he may possess. If he has any reason to suspect that either the prisoner or the person to whom he has entrusted his property on account of the arrest, is endeavoring to hide, or squander, or alienate the property, he shall be careful not to allow such alienation or any other mismanagement of the property; until the Holy Office, having examined his offense, shall make suitable provision for a legal sequestration: for in punishing a crime, the property of the guilty person is always regarded as an accessory element, to be used in behalf of the person to whom it shall belong after the culprit is released from prison.

22. Money for the prisoner's food, for the expenses of his journey, according to his station, and for his bedding and clothes, must be taken entirely from his estates; and if he has none, let such of his goods be sold as will inflict least damage upon him, to the amount necessary, at a public auction before a notary or a royal scrivener. No officer or agent of the Holy Office shall take anything from the said sale, either personally or through agents--a command which is general in all cases when goods are sold by the Holy Office, whether they are sequestrated or not. To better ascertain which of the goods would cause him least damage, it will be advisable to consult the opinion and desire of the interested party.

23. All that has been said thus far concerning the acceptance of denunciations, and the reference of cases, prisoners, and proceedings to the Holy Office, does not apply to the Indians--against whom the commissary shall not proceed for the present, but shall leave them to the jurisdiction of the ordinary. [42] Cases involving them are not to be referred to us. All other cases, in which mestizos, mulattoes, and Spaniards, of all classes, are involved, shall be tried exclusively by the Holy Office rather than by the ordinary courts, as specified in the fourth clause of these instructions.

24. The Holy Office is wont to issue edicts--as, for instance, the general edict concerning matters of the faith, and other specific ones--for the prohibition and seizure of certain books. The public reading of these edicts is of the utmost importance, having the force of a notarial summons. It always takes place in the cathedral church, where the people are commanded several days beforehand to meet, under pain of excommunication. The sermon is assigned to the most learned preacher of reputation and authority, who preaches it elsewhere, on that same day; notice is therefore given to the monasteries and to all concerned. The Holy Office shall appoint both the preacher and the day, although it is best to make arrangements therefor with the prelate, and obtain his concurrence; for in so doing nothing is detracted from what is due to the Holy Office. Although the penalty of excommunication is imposed, it is not held to bind any except those who for petty considerations neglect to heed it. In denouncing their guilt the commissary shall absolve them, imposing upon them only some secret spiritual penances and not any pecuniary or ignominious punishment. Others who through carelessness, negligence, or ignorance, fail to appear, the commissary shall discharge with a gentle reprimand, setting at ease their consciences in regard to the excommunication.

25. The Inquisitor therein anticipating the action of any other judge is accustomed to visit all ships which arrive at the ports, no matter whence they come; therefore the commissary shall do so, if he is in a place where it can be done, and shall ask the principal officers of the ship the questions sent with these instructions. If he is unable to do so in person, he will entrust the matter to the parish priest or the vicar who resides in the port, sending him a copy of the questions to be asked. He will notify us as to the ports chiefly frequented by ships, where it will be best to keep persons with a special commission from us; and will name some of the persons to whom this commission may be given. When the commissary has succeeded in visiting the ship at its station in the harbor, the captain, master, or clerk, or some of the passengers will find it necessary to go ashore, to the city; then, while the supplies most needed are

being procured, he will examine them. In all this it is very important to avoid carelessness. This is understood only of ships which belong to Spaniards and come from Nueva Spaña, Piru, or Panama, or from Portuguese India, or from other regions.

26. One of the most important reasons for inspecting the ships is the books, especially the boxes which come as cargo. The royal officials and magistrates of his Majesty who reside in the ports shall send the said boxes to the commissary of the Inquisition, without opening them or taking any books out of them. The commissary shall open them and examine the books, comparing them with the general catalogue; and after seizing such as he finds are prohibited, he will give the rest to the owners To this end the commissary shall make known to the royal officials of the city, and to those who reside in the ports, the ordinance which accompanies this paper; and this applies even when the said boxes of books have been previously examined by another inquisitor.

27. Whenever a ship departs from the islands, the commissary must send replies to the letters which are written to him, and information of what is occurring there.

28. Finally, we recommend the examination of these instructions--which, although so full in their provision for all contingencies, properly apply to ordinary occurrences, with a few clauses for which provision had already been made. The most difficult task, therefore, will be to examine them carefully at first, and to bear in mind that any doubtful cases are to be decided by the commissary as shall be necessary, since he is so far away [from Mexico]. With this, and the confidence that we place in him personally and in his prudence and great zeal, we trust that the commissary will meet all success.

Given at Mexico, March first, one thousand five hundred and eighty-three. The licentiate _Bonilla_ The licentiate _Santos Garcia_

By order of the Inquisitors: _Pedro de Los Rios_

FOUNDATION OF THE AUDIENCIA OF MANILA

Don Phelipe, by the grace of God, king of Castile, of Leon, of Aragon, of the two Sicilias, of Ihm, of Portugal, of Navarra, of Granada, of Toledo, of Valencia, of Galicia, of Mallorcas, of Sevilla, of Cerdeña, of Cordoba, of Corcega, of Murcia, of Jaen, of the Algarves, of Algeçira, of Gibraltar, of the islands of Canaria, of the eastern and western Yndias islands, and the Tierra Firme of the great ocean; archduke of Austria; duke of Bergoña, of Brabante, and Milan; count of Absburg, of Flandes, of Tirol, and of Barcelona; lord of Vizcaya and of Molina; etc. Whereas, in the interests of good government and the administration of our justice, we have accorded the establishment in the city of Manila of the island of Luçon of one of our royal audiencias and chancillerias, [43] in which there shall be a president, three auditors, a fiscal, and the necessary officials; and whereas we have granted that this Audiencia shall have the same authority and preeminence as each one of our royal audiencias which sit in the town of Valladolid and the city of Granada of these our realms, and the other audiencias in our Yndias: now therefore we order to be made and sent to

the said island our royal seal, with which are to be sealed our decisions which are made and issued by the said president and auditors in the said Audiencia. Moreover, as to the course of procedure which they are to follow in the performance of their duties, we have ordered certain rules to be drawn up, as follows:

House of Audiencia

1. First, we ordain and command that in the said city of Manila there shall be a house of Audiencia, where may sit and reside our said president and auditors, and where our royal seal and register may be kept, and in which shall be the prison and its warden, and the smelter for precious metals. If there should, however, be no accommodation for living in the said house, the auditors shall lodge in other houses, which they shall occupy with the consent of their owners, paying them rent; and the Audiencia shall be held in the house where the president dwells, and therein shall be the prison and its warden.

2. It is our will and desire that the said Audiencia shall have as its district the said island of Luçon and the other Filipinas islands of the archipelago of China, and the mainland of the same, whether discovered or yet to be discovered.

Jurisdiction of the President and Auditors in Civil and Criminal Cases

3. We ordain and command that our aforesaid auditors shall have jurisdiction of all the civil and criminal cases which come to our said Audiencia on appeal from the governors, alcaldes-mayor, and other magistrates of the provinces and islands and district subject to our aforesaid Audiencia, and shall try them by examination and review, but shall not have jurisdiction of any case in the first instance--except it be in cases which belong to a superior court [44] or criminal cases which arise in the city, town, or towns where they may sit, or within five leagues thereof; and in the civil cases arising in the town or village where they may sit, the alcaldes-in-ordinary shall have jurisdiction.

4. _Item_: We ordain that our said judges try such civil and criminal cases in the same manner in which they would be tried by the judges and alcaldes of our audiencias of Valladolid and Granada, and that they may and shall render decisions according to the precedents of the alcaldes of our audiencias of Valladolid and Granada.

5. _Item_: We command that the governors, alcaldes-mayor, and other magistrates of the said district shall authorize appeals to be made from them to our aforesaid Audiencia in the cases in which rightly and in conformity with these rules it may have jurisdiction, except those which must go to the councils for settlement in conformity with the decree made by us, and excepting further the cases involving less than a certain sum in which by special decrees appeals from the alcaldes-in-ordinary must go before the governors--which cases we wish to remain as they are during our pleasure.

6. _Item_: In the civil cases in which judgments are pronounced after examination and review by our said president and auditors, they are to be executed without any further appeal or petition, or other recourse, except when the case involves so large

an amount that there may be ground for a further appeal to our royal person, in conformity with the provision and decree of our laws and ordinances. In such cases we desire that the privilege of appeal be given, under the condition that the party who makes a second appeal must and do present himself before us within a year after the original judgment has been communicated to his attorney. Yet we desire and command that the judgment of revision be executed notwithstanding such second appeal, the party in whose favor the judgment was rendered giving first sufficient and satisfactory bond that, if it shall be reversed, he will restore everything which has been adjudged and given to him thereby, in conformity with the judgment which has been pronounced by the persons appointed by us. We also ordain that the cases which shall come up on such second appeal must be presented as original cases before our council of the Yndias, being left just as they were; but an official report of the entire case is to be left in the possession of a clerk of the Audiencia before which it has been tried, and the parties must petition for such appeals before the Audiencia itself. Yet if the judgment of revision which is pronounced in our said audiencias be with regard to possession, we declare and order that no opportunity is to be given for such second appeal unless the judgment of revision is carried out, although it be contrary to that of the original trial.

7. _Item_: In the hearing and judging of said cases, either civil or criminal, the decision shall be whatever meets the approval of the majority; and should they be equally divided, two or three of the judges shall choose, impartially and in whatever manner may seem best to them, an advocate for the determination of the case upon which they have disagreed. The decision of the majority must be executed, even if this majority consist of but two. If there be but two judges in the Audiencia, they are empowered to try and determine all the said cases alone; if they can agree, their decision is valid, and in case of disagreement, they shall choose judges in the manner above described. If at any time there should be but one judge in the Audiencia, he is empowered alone to conduct the proceedings in all the said cases up to the point of rendering final decision. He may make investigations and issue orders for arrest, and when the affair is submitted for final decision, he may choose an assistant judge satisfactory to him. He is empowered to pursue this same course in cases of damage which cannot be repaired by definite sentence; and in a civil case of two hundred pesos or less, he is empowered to conduct alone an original trial or an appeal, as he may also do in criminal suits for slander.

8. _Item_: We ordain and command with regard to civil cases appealed from the alcaldes-in-ordinary of the city where the Audiencia may be, or from the other magistrates within five leagues thereof, that they may be appealed before the Audiencia; and if the judgment given by the Audiencia in said cases be of two hundred pesos of the mines [_pesos de minas_] or less, it shall be executed as if it were granted after review, and there shall be no appeal therefrom, whether the said judgment be in confirmation or in revocation.

9. [Technical directions for procedure in a case on appeal when the appellant desires, after appeal, to add to the evidence taken at the trial of first instance. Affidavits are presented on both sides before the judge of first instance, an

interlocutory decision is pronounced, time is allowed for filing objections, and the record of the second series of proceedings is added to that of the first.] [45]

10. _Item_: Whoever shall bring before our Audiencia a case on appeal may appear before the clerk whom he chooses. The clerk before whom he appears shall be required to notify our president and auditors of such appearance, that they may assign the case so as to produce equality among the clerks; and the same shall be maintained among the suits begun in the first instance in our said Audiencia.

11. _Item_: We command that the judgments pronounced by our said president and auditors for the region beyond the five-league limit, and writs of execution and other writs, shall be given in our name and with our title, royal seal, and record. Writs with seal and record shall receive the fees which by our royal tariffs of fees for our Audiencia have been commanded for them. The judgments pronounced for the region within the five-league limit shall follow the form of orders without seal or record, issued by our auditors, etc. And these writs shall be obeyed and executed in the same manner as writs and judgments sealed with our name and royal seal.

12. _Item_: Our president shall keep a record of votes, which he shall swear to keep secret, and in which he shall enter, in brief form, the opinions of himself and the auditors in all cases involving a hundred thousand maravedis and upwards.

13. _Item_: We will that our auditors repeal no sentence of banishment, nor allow writs of delay for debts; yet we permit them to issue writs of delay for six months to particular persons, and not in general--provided first that such person for legitimate causes which have intervened is unable to pay; and that he offers approved security, not clerical or noble, [46] that at the end of six months he will pay the debt. This term may be allowed for the same debt only once.

14. _Item_: We ordain that the appeals taken from decisions for plaintiff or defendant in pecuniary suits, and in suits involving only private interests, when said decisions are pronounced by those who report to the governors and corregidors of the district of our said Audiencia, shall go before it; but as for all other matters heard by such judges, and as for the results of secret investigation, they shall go before our council of the Yndias.

15. _Item_: Our Audiencia shall appoint no judge in cases of residencia [_juez de residencia_], or governors for the provinces subject to their jurisdiction, or judges for special criminal investigations [_pesquisidores_]. If any individual bring complaint or charges against the governor, and the Audiencia shall see that the matter is of such nature that it is of importance to know the truth concerning it, in such case they shall send one person to obtain the necessary information. The complainant or accuser must give bonds that he will pay the costs and the penalty which will be assessed against him in case the accusation proves false. In other cases special judges of investigation shall not make inquisitions, except with regard to riots and seditious associations, or other matters of so pressing importance that the delay requisite for consulting us would produce notable inconvenience.

16. In cases which occur outside of the five-league limit, our president and auditors may appoint judges by commission [_jueçes de comision_], to hear the cases and to

administer justice with regard to them. Care must be taken that they make their inquiries in cases which warrant inquiry, and in no others. Such judges by commission for crimes and misdemeanors shall be given authority only to carry on a legal inquiry [_informacion_], and to arrest the delinquents and convey them to the prison of the Audiencia. They may also collect their fees from those who owe them. The clerks before whom the cases are carried on shall hand the records in their entirety to the clerks of the Audiencia, where the matter shall be completed in such manner that the parties shall be obliged to pay only single fees. And if the clerks who attend such commissions have no commissioners [_receptores_], they shall be appointed by our Audiencia, and not by the clerks thereof.

17. _Item_: We command that the receiving of the testimony which must be taken in the transactions which proceed from our Audiencia shall be entrusted to the clerks of those cities where it shall need to be done. If there are no such clerks, our said Audiencia in the interim during which there are no official commissioners of examination [_receptores_] [47] shall appoint therefor a suitable person.

18. _Item_: Our auditors in the exercise of civil and criminal jurisdiction shall receive no fees, or fines, or amercements, or anything under color of charges for sitting as assessors to the judges. The fines which they lay in cases where the law assigns any fine to the judge shall be for our exchequer and treasury, and for no other person. If the auditors take any of the aforesaid payments, they shall restore them fourfold.

19. _Item_: We command that when any governors, alcaldes-mayor, or other magistrates of the district of our said Audiencia, shall fail to execute the writs and decrees which in our name the Audiencia shall send them, without showing that they have just cause to desist from the execution thereof, then in such case the Audiencia may send officials whose fees shall be at the cost of those guilty of disobedience, which officials shall cause the process of the Audiencia to be executed, notwithstanding the provision that the Audiencia shall not send out special judges of investigation [_pesquisidores_].

20. _Item_: Our Audiencia shall maintain those who have letters-patent of nobility or privileges of gentility in the said letters-patent and privileges. In other cases where claims of gentle birth are put forward, they shall not try them, but remit them to the audiencias of these kingdoms which have jurisdiction in such matters.

21. _Item_: We command that our president and auditors shall have no authority to grant permission to go to the provinces of Peru.

22. _Item_: We ordain and command that all criminal cases which shall come for judgment, from all parts of their jurisdiction, before our said Audiencia, of whatsoever nature or importance they may be, shall be tried, decided, and determined as on examination and review before our said Audiencia. The sentence accordingly given shall be executed and carried into effect duly, without process of appeal, petition, or any other legal remedy or recourse.

23. _Item_: We ordain that no one shall appear at the prison of our Audiencia as an attorney, even though he have special power of attorney therefor, unless he have

information that his client is confined in the prison, and shall swear that the judge who shall be trying the case is distrusted by him with just cause. In such case our auditors shall direct the judge to send them a signed transcript of the record, in order that, after the transcript has been submitted, if it shall appear that they should try the case, they may direct the transfer of the record to the Audiencia. In such case they shall grant the party a writ forbidding the judge to proceed further with the case; and the prisoner shall appear at his own expense, providing good security. Before the auditors have examined the record, they shall grant no writ of injunction, temporary or perpetual. If, however, the prisoner shall have appeared in person, and shall find that he has a right to a trial in the Audiencia, and to a writ of injunction against the judge who claims the right to try the case of to summon the parties to appear to the charges, let them give the writ. Meanwhile the prisoner shall be confined in the prison, and shall not be admitted to bail until by means of the record the nature of the charge is made evident in conformity with the laws of these realms which govern in such cases.

24. _Item_: We ordain and command that our president and auditors and the ordinary magistrates of our said Yndias, where there shall be a mint, shall have jurisdiction over all crimes of falsification of money committed by the moneyers although they be committed within the mint. Accordingly, they may call the case before them, unless the alcaldes of the said mint have anticipated them and begun to try it. Likewise, our said president and auditors, with respect to the mints in their jurisdiction, may appoint a person to report to the alcaldes and officials of the said mints.

25. _Item_: We command that on Saturday of every week two auditors in rotation, as the president shall assign them, shall inspect the prisons of the Audiencia and of the town where the Audiencia may be. There shall be present at the inspection the alcaldes, alguazils, and clerks of the prisons, and our fiscal attorney. At the inspection of the prison of the town or city the alcaldes-in-ordinary thereof shall be seated near the auditors.

26. _Item_: We command that the president and auditors of our Audiencia shall be present on every day that is not a holiday, in the court-rooms, to hear the statement of cases [_relaciones_]--three hours on the days when cases are not heard [_no de audiencia_] and four hours on days when hearings are given [_de audiencia_], according to the rules of our audiencias of Valladolid and Granada. He who is absent without sending a sufficient excuse shall be fined half his pay for that day, by the person whom the president shall appoint, whose report in the matter shall receive faith and credit, so that no auditor shall hold or try the said cases in his own house without being joined with all the others, as has been said with regard to the said Audiencia, to hear and determine pleas and matters brought before it.

27. _Item_: No auditor shall sit when a suit is begun that will affect him, his sons, fathers, sons-in-law, or brothers, or when he shall be challenged. As regards the penalty for challenging our president and auditors, the ordinances of Madrid shall be followed, the fine contained therein being doubled.

28. _Item_: Our president and auditors shall have no authority to bring before our Audiencia in the first instance any suit of their own, of their wives, or of their children. The said suits shall be tried by the alcaldes-in-ordinary, and shall come on appeal before our council of the Yndias if the case involves a thousand pesos or upwards. If the other party to the suit desires to appeal to our Audiencia and not to the council, he may do so; but the auditor, his wife, and his children shall have no such right of choice.

29. Further: The said auditors shall not appear for others in the said Audiencia or in any other, nor shall they undertake to arbitrate cases that may come before them, except that cases already begun may be submitted to all the auditors of the Audiencia for arbitration, and except where our permission may be given--under penalty of being suspended from the Audiencia for thirty days and losing salary for two months.

30. Our said president and auditors shall have no share with an advocate or commissioner [_receptor_] in his fees or salary. Nor shall they have the right to receive anything but food from any corporation or individual, or other person, who shall have been interested in a suit within a year previous, or who shall expect to be so interested, and the same as to their wives and children--under the penalty for forswearing, besides loss of office, being rendered incapable of holding any other office, and being required to pay double for what they have taken. They shall take great care not to converse much or be very familiar with advocates or attorneys who are pleading cases.

31. _Item_: We command that our president and auditors shall not be engaged in military expeditions, or expeditions of discovery, without my express command. They shall have no income-bearing estates [_granjerias_] either in cattle or in arable land, or in mines. They shall carry on no mercantile business by themselves, or in partnership, or through intermediaries; nor shall they avail themselves of the services of Indians in procuring water or wood or grass, or for other purposes on pain of being deprived of their offices.

32. _Item_: There shall be appointed to no position as corregidor or other officer of justice the son, brother, father-in-law, son-in-law, or brother-in-law of any president, auditor, or fiscal of our audiencias; and if any one shall be so appointed he shall not perform the duties of the office, under a penalty of a thousand pesos of gold for our treasury.

33. _Item_: We command that when any person desires to bring any suit or action against any of our auditors he may do so before our said Audiencia, or before the alcaldes-in-ordinary, and he may appeal from the said alcaldes to the said Audiencia.

34. _Item_: We ordain that when any auditor is offered as a witness the Audiencia shall appoint a magistrate, in order that the rights of the parties may not be lost for want of evidence; and they shall give direction that he is to give his testimony, unless it shall appear that he is offered as a witness maliciously to prevent him from acting as judge in the case.

35. _Item_: We command that an auditor who goes on a tour of inspection shall receive no more fees than are ordained and commanded to be given him, and shall

accept nothing from Indians or Spaniards except food, on penalty of repaying it fourfold.

36. _Item_: We command that our president of the said Audiencia shall try criminal charges against the auditors thereof jointly with the alcaldes-in-ordinary, notwithstanding the ordinance to the contrary.

37. Further, in case of inability of the president of the said Audiencia of such nature that he cannot carry on the functions of government, the Audiencia itself shall assume the government and do all that he had authority to do--the senior auditor filling the office of president, and taking charge of the other matters committed to the president until we make provision in some other manner.

38. _Item_: We command that our said president shall not have authority to give permission to the auditors of the said Audiencia to come to these realms without our express command.

Affairs of government

39. _Item_: We command that in our said Audiencia there shall be a record for affairs of government, in which our auditors shall register the votes that they give on affairs of government.

40. _Item_: We command that our president of our Audiencia shall send once a year to our Council of the Yndias an extended and detailed report, attested by his signature, of the salaries, payments, fees, and allowances paid in this territory from our royal treasury to all persons whatsoever, and shall state how much was paid to each, and for what reason. And he shall give a list of the corregidorships, stating in it to whom the appointment is given by our warrant [_cedula_], and to whom by order of our president and Audiencia, and for what reason; and he shall report on the qualifications and merits of each person, the amount of fees that each one receives, the amount of salaries in each corregidor's district, and the persons appointed in each district, and their qualifications. He shall also state the nature of their service, and how long it is since they were appointed to the said offices. The same reports shall be made by our fiscal and our officials of the royal treasury.

41. _Item_: We desire that one of our auditors, each in his turn, shall make a visit of inspection once a year to the villages of the district of the said Audiencia, and to the inns and, apothecaries' shops, seeing to it that the inns shall have fixed lists of rates. The medicines and other things in the apothecaries' shops which he discovers to be spoiled he shall pour out and not permit to be sold. On the same visit to the provinces of his district he shall inform himself as to the nature of the soil, the amount of the population, and the best means of supporting the churches and monasteries required. He shall observe what public buildings arc needed for the good of the towns and the better traveling of the roads. He shall find out whether the natives perform the sacrifices and commit the idolatries to which they are accustomed, how the corregidors perform their duties, and whether the slaves that go to the mines are instructed in doctrine as they ought to be. He shall ascertain whether the Indians support themselves, or whether they are made slaves, contrary to that which is ordained. And he shall inform himself in a compendious manner with

regard to everything else requiring his attention. The said auditor shall have warrant to attend to matters in which delay would be dangerous, or which are of such a nature that they do not require greater deliberation. He shall remit to the Audiencia the other cases to which he is not obliged to attend. For the acts aforesaid shall be given to the auditor the warrant of the decree dealing with inspections.

42. _Item_: We command that our said president shall grant no fee, office, corregidorship, or other source of profit by which means of support may be gained, to any man who has Indians in encomiendas.

43. _Item_: Our said president and auditors shall suffer no merchants to set upon their wares prices higher than those by us ordained and commanded.

44. Further: Whensoever the citizens and inhabitants of the district of our Audiencia shall be summoned by the said Audiencia they shall obey the summons in peace and war, as by our president and auditors shall be commanded; and they shall do and fulfil all that on our behalf they say and command, and they shall give them all aid and comfort which they desire--under penalty of infamy, and the other penalties incurred by vassals disobedient to their king and lord.

45. _Item_: Any person who desires to petition us for any favor for services not performed in our Yndias shall first make his declaration before the Audiencia in whose district he may be, and the Audiencia shall make an official report of the services performed, and of his character. This report, folded and sealed, with their opinion at the foot thereof, shall be sent in duplicate to our council, without being shown to the person interested. And if the person interested desires to make a report for himself, they shall receive and transmit it.

46. _Item_: We command that in each and every case when any towns or individuals of their district appear before our Audiencia to petition for license to make repartimientos, the Audiencia shall grant the license which seems to them due, but only so far as concerns suits pending before the said Audiencia, and for public works for which no other maintenance is provided, and for no other purpose. The said license in the aforesaid cases shall be granted, if such towns have no endowments [_propios_].

47. _Item_: When any one shall petition for an assignment of any town lots or agricultural lands in the city or town where our Audiencia shall reside, then after conference in the cabildo, notice of the judgment of the cabildo shall be given to our president, by means of two regidors deputed therefor. And when they have made their examination, that upon which the president together with the two deputies shall determine, shall be carried out, being attested by all in the presence of the clerk of the cabildo, that he may record it in the council-book. Petitions for assignments of lands and waters for machinery shall be presented before the president, who shall transmit them to the said cabildo that they may confer thereon. They shall return them by a regidor, who shall report their conclusions, so that after examination the president may determine that which is fitting.

48. _Item_: Our said president and auditors shall cause to be made a record-book in which shall be entered the names of citizens of this territory, the service performed

by each one, and the reward received by him, either in money, by way of fees, or in other ways, or by appointment, and to what offices. The said record shall be kept with great care, together with the record of votes, so that when any person makes a statement of services before them they may report their opinions in his case.

49. _Item_: We command that our Audiencia, at the end of the two months during which the two regidors appointed as inspectors of weights and measures have served, shall receive from them an account of their service.

50. _Item_: We command that our Audiencia shall have authority to order the execution of the ordinances made for the provinces under their jurisdiction, after being filed by them, and during the time while they are being sent to us for confirmation.

51. _Item_: That an auditor every year by turns, beginning with the most recently appointed, shall audit the accounts rendered by the cabildo of the city where our Audiencia shall reside.

52. Further: When the president and auditors shall be about to allot the lands, waters, watering-places for cattle, and pastures of any town, city, or village, among the persons who are to be settled therein, they shall do so with the counsel of the cabildos thereof, taking into consideration that in such allotments the regidors shall be preferred, provided they have no other allotments of arable lands or dwelling-lots. Let such allotments be made without prejudice to the Indians, retaining for them their arable lands, gardens, and pastures, so that all shall be cared for.

53. _Item_: We command that our president and auditors shall appoint no administrative or notarial official, or fill any other permanent office, even if it be vacant by resignation; nor shall they make such appointments in the interim before we appoint.

Ecclesiastical cases

54. _Item_: We ordain and command that our auditors of our Audiencia, in cases of unlawful procedure on the part of ecclesiastical judges [48] shall follow the procedure by and according to which in these our realms the audiencias of Valladolid and Granada proceed, without extending it further than is practised in our said audiencias.

55. _Item_: We command that our said Audiencia, governors, and other magistrates of their district shall ascertain and know if in those regions there are any persons who have letters of authorization or apostolic bulls to take possession of the property left by the archbishops who may die in those regions, or of the vacant bishoprics. When it is known who has them, let him cause them to be brought accordingly. First of all, let them appeal from such persons before his Holiness, nor give nor allow opportunity for them to be used in any manner, nor for possession to be taken of the said property or vacant bishoprics. They shall not do, or permit to be done, any other acts in prejudice of the rights and usages with regard to bishoprics to which we are entitled with respect to this matter, or in prejudice of the immemorial custom that possession shall not be taken. And such authorizations and bulls thus

obtained you will send in their entirety, in the first ships, to be presented before the members of our Council of the Yndias, together with the appeals which shall have been taken with regard to the matter.

56. _Item_: When there shall be doubt with regard to the signification of anything in the contents of an ecclesiastical appointment, or as to the requisite collation at the hands of the bishops of benefices for the clergy whom we present, let the president of the Audiencia decide it.

57. And when in our said Audiencia the aid of the secular arm is asked for by the prelates and ecclesiastical judges, let them plead by way of petition and not of demand.

58. _Item_: Our Audiencia and the other magistrates of our said district shall see to it that in the towns which are not populated by Spaniards no bulls shall be published. They shall not permit Indians to be compelled to hear the preaching of them, or to receive them. Those which are published from the pulpit shall be published in the Spanish language. We also give the same command to the commissaries of the holy crusade. [49]

Royal treasury and its officials

59. _Item_: We also ordain that the suits of our royal treasury be examined and decided before any others that shall be before the Audiencia; and that our fiscal shall take care to prosecute them, and to report to us what is done therein.

60. _Item_: Our president with two auditors at the beginning of each year shall audit the reports of the officials in charge of our royal treasury for the previous year; and the said officials shall finish them within the months of January and February. When they are completed they shall send a transcript thereof to our Council of the Yndias. We also command that at the end of the said two months, if the said accounts are not completed, the officials of our royal treasury shall receive no salary until they finish them; and each of the auditors who shall thus be ready to receive the said accounts shall have as a fee twenty-five thousand maravedis.

61. _Item_: The judicial settlement [_remate_] made with regard to auctions by our royal treasury must not be made without the consent of the majority of those appointed therefor, even when the auditor who shall be present desires it. Further, at such sales and settlements shall be present our fiscal with said officials, who shall sell nothing in his absence.

62. _Item_: We command that at the time when the auditing of the accounts of our royal exchequer by our president and auditors shall begin, in conformity with the decree given thereon, they shall go first of all to our royal treasury and weigh and count the gold and silver and the other things therein. They shall make a record thereof, and immediately begin the accounts; and when they are completed the balance shall be collected within the time required by the said decree, and shall be placed in the chest of the three keys, orders being given that the balance of the preceding year shall not be made up by the collections received during the auditing of the accounts.

63. _Item_: When the officials of our royal exchequer shall have need of absenting themselves from the city where they reside, they shall not have authority to do so without license from our president, who shall give it for a short time, to a destination within those regions, and no more. There shall be designated, in the place of the official on leave, a person suitable therefor in the judgment of the said president. And if the said official absents himself in any other manner he shall lose his position.

64. Further: At the time of the making up of the accounts of the tithes, for distribution according to the ecclesiastical appointments, there shall be present thereat an auditor.

65. _Item_: We command that no salary be paid from our royal exchequer, or from fines, to the judges in cases of residencia, or to criminal judges [_pesquisidores_] commissioned by our Audiencia.

66. _Item_: We desire that there shall be a record of all the suits and transactions of our royal exchequer; and that every Thursday in each week (and if that shall be a holiday, on the day before), after dinner, the senior auditor with our fiscal and the officials of our exchequer, and one of the clerks thereof, shall discuss article by article the said suits and transactions by means of the said record, considering the state in which they are and how the decisions reached at previous meetings have been carried out.

67. _Item_: We command that our president and auditors shall have no authority to direct the payment of any money from our royal exchequer, or to expend anything from it, without more express license and command--except when cases occur in which the delay required to submit them to us for consultation would cause irreparable injury. In such case, when it shall seem advisable to our president and auditors and the officials of our royal exchequer they shall expend therefrom that which they all jointly shall regard as requisite, and shall make expenditures in no other manner. The warrant which they shall give for this shall be signed by them all, on penalty that what is expended contrary to the tenor hereof shall be paid from their own property. They shall immediately report the amount thereof, the purpose and manner of the expenditure, and the necessity for which it shall have been made.

Fines paid into the royal treasury

68. _Item_: We command that our treasurer shall receive all fines, in whatever manner they shall be applied by our auditors, whether to our treasury, or to court rooms, or to other expenses. Our alguazil-mayor shall take charge of the enforcement of them. The amounts so received by the said treasurer shall be immediately brought before the officials of our royal exchequer, who shall deposit them in the chest of the three keys, and enter in a record everything thus collected from the said sentences. They shall keep separate the fines for the treasury and those for court rooms; and our said president and auditors shall supervise the care thereof taken by the treasurer, who shall at the end of each year, on account of the said sentences [_condenaciones_] and the receipt thereof, send to our Council of the Yndias a condensed report thereof, attested by his signature and that of the officials, and a certificate from the clerks of the said Audiencia as to the sentences given.

69. _Item_: There shall be in the possession of our president a record in which every clerk shall enter in his presence, every week, the sentences passed in presence of the said clerk, on pain of being obliged to pay them from his own property. When the president and auditors shall have need of anything, they shall give a warrant for it on our treasurer on account of those moneys collected under judicial sentences passed for similar objects.

Probate matters

70. Further: We command that our Audiencia shall audit the accounts of the administrators of the estates of deceased persons, and shall see if they have observed the ordinances and decrees given with regard thereto. These accounts shall be audited in the month of January, on pain of loss of salary for two months, to be taken from that due the first third of the year, unless they show that they have audited the said accounts in the said month. We command further that, for the good administration of the estates of deceased persons, our said Audiencia shall appoint each year an auditor who shall be judge of such administration, and may try the matter as if the whole Audiencia were to try it.

Indians, and matters relating to them

71. _Item_: Our said president and auditors shall always take great care to be informed of the crimes and abuses which shall be committed, or have been committed, against the Indians who shall be under our royal crown, or against those granted in encomiendas to other persons by the governors or private persons. The said president and auditors shall make inquiry as to the manner in which the ordinances and instructions given in regard to this matter have been and are observed, punishing the guilty with all rigor, and providing means to bring it about that the said Indians shall be better treated and shall be instructed in our holy Catholic faith, regarding them as our free vassals. This must be their chief care; it is that for which we have chiefly to hold them accountable, and that in which they are chiefly called on to serve us.

72. We command that our said president and auditors shall take great care to give no opportunity that, in the cases in which Indians shall be plaintiffs or defendants, orders shall be granted on _ex parte_ motions [_procesos ordinarios_] or that the suits shall be long continued without prompt decision. Our said auditors shall preserve the usages and customs of the Indians when they are not plainly unjust, and shall take care that the same are preserved by the inferior judges.

73. Let our said Audiencia and the bishop see to it that in every village there shall be a person appointed to give instruction in doctrine to the Indians and blacks who serve without going into the field, every day one hour; and to those who go into the field, on Sundays and feast-days. And let the Audiencia and the bishop compel their lord to bid them go and learn the doctrine.

74. _Item_: Let no judge of first instance in the district o our said Audiencia meddle with depriving the caciques [50] of their caciquedoms for accusations brought before the said judge, on pain of removal from office and a fine of fifty thousand milreis to our treasury. Let the decision of the case in dispute be reserved for our Audiencia, for

the auditor who shall next inspect the said villages.

75. _Item_: When a suit is brought against Indians, the plaintiff may make his complaint before our Audiencia, in whose district they are; and an order shall there be given the parties that within three months, which may be extended to not more than six, each one shall present his testimony. After the testimony of every twelve witnesses is taken, the report shall be sent, folded and sealed, without other publication or formal conclusion of the preliminary proceedings, to our council, that it may decree justice. And our auditors, before they send the record, shall cause the parties to be cited to come and appear before the said council in pursuance of the said action, within the term assigned them, with warning that if they do not appear, the case will be decided in their absence.

76. _Item_: We command that when anyone by his own authority shall deprive another of the possession of the Indians whom he shall have, our Audiencia, prohibiting the said violence and doing justice, shall restore matters to the state in which they were before the act was done.

77. _Item_: Let the president and auditors not permit any cacique or chief to come to this country from those regions without our license.

78. Further: Our auditors, on two days in the week and Saturdays, if they have no suits of poor persons before them, shall hear cases of Indians against Indians. We command that the auditor who shall go on a journey of inspection through the country shall have power to try cases with regard to the liberty of the Indians, making report before the Audiencia. Likewise the auditor who shall inspect the prison of the Indians shall examine the witnesses by personal examination, and not by report.

79. _Item_: Our president and auditors shall appoint a judge to allot the waters to the natives for the period during which need thereof may continue, whenever it may be necessary to do so, and no one shall be permitted to molest them therein. The said judge shall come to the Audiencia to give an account of what he shall have done, and he must not come at the cost of the Indians. Our said auditors shall take great care not to send a notary to take testimony [_receptor_] for light causes, to the Indians' villages or elsewhere, except in a matter of importance, and one in which there is great advantage in sending them.

Fiscal

80. _Item_: We command that our fiscal attorney of the said Audiencia shall have no authority to appear as an advocate in any case; and that he shall give his whole attention to what concerns us, our exchequer [_camara_] and treasury [_fisco_]; and he shall swear accordingly before our president and auditors. He shall serve in person, except when he shall absent himself for some just cause for a short time, with the permission of our president, and with his authorization for cases prosecuted at a distance from the seat of our said Audiencia. Our said fiscal shall take great care to see whether the decrees given and the ordinances made are carried out, especially those dealing with the instruction, conversion, kind treatment, and protection of the Indians.

81. _Item_: We command that our said fiscal shall sit on the right-hand bench, taking precedence of all the advocates; and at the inspection of the royal prison he shall sit in the court-room behind the auditors; and the same at the inspection of the city prison, the judges of first instance taking precedence of him; and in all other cases he shall take the best place after the auditors and after the alguazil-mayor of the Audiencia.

82. _Item_: We command that our said fiscal shall take care to assist and favor poor Indians in the suits they are carrying on, and to see to it on their behalf that they are not oppressed, maltreated, or wronged--acting in conformity with our laws and ordinances.

83. _Item_: We ordain and command that our said fiscal shall assume the charge and conduct of the cases concerning the execution of our justice, when appeal shall be taken from the corregidors or other judges.

84. Further: We command that our said fiscal shall bring no charges without waiting for a complainant, except when the fact is notorious, or when judicial inquiry has been made.

85. _Item_: It shall be his duty to concern himself, and he shall concern himself, with notorious immorality, and with the defense of the royal authority; and to this end he shall perform all necessary legal acts.

Alguazil-mayor and his deputies

86. _Item_: We command that our alguazil-mayor of our Audiencia shall be maintained in all the honors and dignities which are observed in the case of the alguazils-mayor of our audiencias of Valladolid and Granada, and that he shall take the place and seat taken by our said alguazils-mayor.

87. _Item_: We command that our said alguazil-mayor shall not farm out his office; and that he and his deputies shall observe the laws that deal therewith, and the oath that they take when admitted to office.

88. _Item_: We command that our said alguazil-mayor shall have authority to remove from office his deputies and jailers whenever he sees fit, and that he shall have authority to appoint and shall appoint others again, first presenting them before the Audiencia.

89. _Item_: We ordain and command that when our Audiencia shall depute any judge or commissioner of inspection [_visitador_] who shall need to take an alguazil, he shall take the deputy designated by our alguazil-mayor therefor, and shall employ him and no other--unless in some special case the contrary shall be approved by our Audiencia, for just cause.

90. _Item_: We command that our alguazil-mayor or his deputies, whensoever they shall be directed to arrest any person, shall do so and act accordingly without delay, concealment, or negligence--under a penalty of forty pesos for every occasion on which they do the contrary, in addition to the damage and concern of the parties, and of that which has been adjudged and decreed.

91. _Item_: We command that if a malefactor be found committing a crime they may and shall arrest him without a warrant. If it shall be in the day-time, they shall take him immediately before the Audiencia stating the cause of his arrest; if at night, they shall put him in jail, and without delay on the following morning shall produce him before the Audiencia, as aforesaid. They shall not venture to take any property from the person whom they arrest, on pain of being required to repay double what they have taken, for our treasury.

92. _Item_: We command that our said alguazil-mayor shall not tolerate forbidden games of chance or notorious immoralities; and if in the performance of his duty he shall meet with resistance, let him immediately come and declare the same to the said Audiencia, and on Saturday of each week let him come and give an account and review of what he has thus done, under penalty of being required to pay four pesos for the poor of the prison in each case.

93 _Item_: The said alguazil-mayor shall present before the Audiencia the two alguazils whom he shall appoint for himself, that they may be approved by us; and they shall not perform their functions until, after being thus presented before the said Audiencia, they shall swear in due form that they will well and faithfully perform their duties, observing the laws, decrees, and ordinances dealing with the same; and that they will not promise or give, and have not promised or given, for the sake of those offices, or for the profits thereof, or for anything else, the services of themselves or their men; and that from the income and profits of the said offices they have not given or promised anything. The same oath shall be required of the alguazil-mayor who shall present them, and likewise from the substitute alguazils--under the penalty prescribed for forswearing, and of dismissal from office.

94. _Item_: We command that they shall not take gifts or gratifications from the prisoners or from others for them, or for this cause lighten imprisonments or release prisoners. And they shall not make arrests without warrant, except in _flagrante delicto_, on pain of dismissal from office, of, being incapacitated for future employment, and of being required to repay fourfold what they have thus taken, to our exchequer.

95. _Item_: Our said alguazil-mayor shall appoint no jailer without first presenting him before our Audiencia, that it may be seen whether he is fit and able, and that he may be approved by our president and auditors--on pain of losing the right to appoint for a year. And the appointment shall be made by my said president and auditors.

96. _Item_: We command that he shall have no authority to take fees for executions without the previous payment of the party in interest, under the penalty prescribed for forswearing, and the other penalties contained in the laws and ordinances dealing herewith.

97. _Item_: Our said alguazil-mayor and his deputies shall be present at the sittings of the Audiencia, under a penalty of two pesos for every day of absence, for the poor of the prison.

98. _Item_: Our said alguazil-mayor or his deputies shall be obliged to make their rounds by night, on pain of being condemned to pay the damages resulting from their

fault or negligence, and four pesos for the court-room of our Audiencia, for every night when they fail to do their duty.

99. _Item_: We command our said alguazil-mayor to be present at the inspections of the prisons of our said Audiencia, under a penalty of two pesos of gold for every time of failure, for the poor thereof.

100. _Item_: We command them to do and execute that which is commanded in the ordinances made or to be made for the good administration and government of the city or town where our Audiencia sits.

101. _Item_: They shall not take weapons from those who carry them at nightfall or after candle-light, or from those who rise early to go to their labors and tillage.

102. _Item_: They shall take no fees for the executions which it shall be their duty to levy, or which they shall levy, on the property or goods adjudged, or which shall be adjudged, to our treasury.

103. _Item_: We command them not to take the money of those who are found gambling, except when they exact from them the legal fine, which they have authority to put in safe-keeping when they find them engaged in the said gambling.

104. Further: Let him take care to go by nigh and day through the public places to prevent disturbances and quarrels, on pain of suspension from his offices.

105. _Item_: Let him take no fees for executions more than once for one debt, even when the party at whose instance the execution is made allows delay or continuance to the person against whose goods the said execution is made--on pain of being compelled to pay the excess of the fees fourfold, to our exchequer.

Clerks of the Audiencia

107. We ordain and command that the clerks [_escribanos_] of our Audiencia shall have no authority to appoint deputy clerks, administrative or judicial, in the cities, towns, and villages of the district of the said Audiencia, nor shall they employ therein such deputies.

108. _Item_: The clerks of the said Audiencia shall be appointed by us and by no other person; and in all matters relating to the examination of witnesses they shall follow the rules of the audiencias of these our realms.

109. [Amount of fees for clerks, seal, and register must be endorsed on all documents. Penalty: two pesos to the court-room.]

110. [Official reporter's [_relator_] fees must be endorsed and shown to party. Penalty: loss thereof.]

111. [Clerks to take testimony in person. Regulations as to substitutes acting when clerks are prevented, and as to collection of fees.]

112. [Clerks' and notaries' records to be annually inspected by an auditor.]

113. The said clerks shall enter in one order of court all the official positions which are provided for a village [_i. e._, of Indians], and on account thereof they shall

receive no excessive fees. Their fees shall be paid by the superintendents [_calpiscas_] of the villages.

114. _Item:_ No Indians shall be granted in encomiendas by repartimiento to the clerks of our said Audiencia. If they are so granted, the said clerks shall have no authority to keep them.

115-120. [Section 115 provides that appeals from the decision of the inspector of weights and measures of the city where the Audiencia sits are to be given preference. Sections 116-120 contain provisions for promptitude and accuracy in the business of recording--among others, that the pages of the record of a case shall run with serial numbers, and that notice of the number of pages and parts of pages be given to the parties. The penalty for violation of each of these sections is two pesos for the court-room of the Audiencia.]

121. [The registers must be marked with a cross at the end of each year, under a penalty of thirty pesos to the exchequer.]

122. [If there is a supply of clerks, complaints must not be made before a clerk who is brother or cousin to the plaintiff.]

123. The said clerks shall not ask or accept fees for the ecclesiastical cases conducted before the said Audiencia at the suit of the corregidors or judges of residencia, with regard to matters relating to the defence of the royal authority; or for the proceedings transacted before the said officers and the decisions rendered with regard thereto--under penalty of a fourfold fine to our exchequer; and we command that our fiscal attorney shall attend such hearings with all diligence.

124. Further: They shall not write with abbreviations, putting "A." for "Alonso" or "c" for "ciento," under a penalty of thirty pesos for our exchequer.

125-138. [These sections direct accuracy and promptitude in various kinds of cases, with penalties for negligence. They also give directions for avoiding extortionate or illegal fees. Fiscal cases are exempt, as are cases involving any royal rights. The penalties are two pesos for the court-room, for minor negligences; heavier fines for more important ones; damages to the party injured; compensation to the exchequer; a fourfold fine to the exchequer for wrongful fees; suspension or removal from office. The most important section is the following:]

131. The clerks and relators of the said Audiencia, in cases civil and criminal, shall receive the fees belonging to them, in conformity with the fee-list; and that this may be attended to and fulfilled accordingly, we command that henceforth the aforesaid and each of them shall enter on the record and documents in the case the fees that they are to receive from the parties, or from their attorneys or agents, both for the examination of the record of proceedings and the rest, stating specifically the amount that they are to receive and the items of charge. This they shall attest with their signatures, jointly with the party in interest, or his attorney or agent, who is to pay the said fees, in such manner that both shall attest that which they are thus to receive for the said record of proceedings and pleadings. If he who pays the said fees shall not be able to sign his name, let another sign for him. When the case or affair is

finished, the said clerk or relator, and the party, or his attorney or agent, shall swear that they have not accepted or given more fees for that case or affair than that which is there entered and signed; and that, if they shall accept or give more, they will enter and sign it as has been said. The penalty of the first offense is a requirement to repay fourfold to our exchequer that which is taken otherwise than as herein ordained; for the second, the same penalty and dismissal from office; and if the party or the attorney shall give information that he has given moneys to the said clerk, and they shall not be endorsed as aforesaid, let him be believed on his oath as to the amount that he shall have given.

139. [Clerks and commissioners are to undertake no official investigations without signed warrant from the court. Penalty: two years' suspension and a hundred pesos for the first offense, and dismissal for the second.]

140. [More than one demand [_peticion_] in appeals is not to be accepted from either party. Penalty: two pesos.]

141. [Abbreviations or numbers in dates are not permitted, for fear of fraud. Penalty: damages of the parties and twenty pesos for the exchequer and court-rooms.]

142. [Memoranda of testimony in criminal cases must be given to the fiscal for correction. Penalty: four pesos.]

143. [Clerks in all depositions are to put questions as to age and the like, to avoid fraud. Penalty: two pesos to the court room.]

144. They shall accept no food, fowls, or other things in satisfaction of their fees, on pain of being required to repay fourfold what they thus accept, to our exchequer.

145. [No fees are to be accepted from a defendant who swears on preliminary examination that he owes nothing, in case the plaintiff does not prove his case on judicial examination. In such case, the plaintiff is to pay the fees.]

146. [Copies of decisions are to be promptly given to the party requesting it. Penalty: two pesos to the court-room.]

147. [Notice of fines and penalties must be sent to the fiscal weekly. Penalty: two pesos to the court-room.]

148. [Evidence of poor suitors is to be taken with care and promptitude.]

149. [Notifications of hearings in cases concerning small amounts are to be sent to the parties. Penalty: two pesos to the court-room.]

150. [Personal presence is required at examinations in criminal cases and the execution of sentences. Penalty: suspension from office.]

151. [Lists of fees allowed by law must be posted in their offices, as well as in the public hall of the Audiencia. Penalty: five pesos to the poor of the prison.]

152. [No fees may be taken for keeping or looking for records. Penalty: fourfold to the royal exchequer.]

153. [Copies of penalties and memoranda of fiscal cases must be sent to the fiscal every week. Penalty: six pesos to the royal exchequer.]

154. [Examinations are to be dated by the time of examination, and not by that of taking the oath. Penalty: four pesos to the exchequer.]

155. In inquisitions and examinations which they shall make they shall put thirty lines on a page, and in every line ten parts [_i.e._], words divided by spaces]; and they shall write a good hand and shall place at the foot of each inquisition or examination the fees to be received therefor, under a penalty of eight pesos to our exchequer for a violation.

156. [Fees for single documents are not to be augmented because other documents are incorporated within them. Penalty: fourfold repayment to the exchequer.]

157. [Cases affecting the treasury, in which no party appears therefor, are to be brought to the attention of the fiscal.]

158. [Fees are not to be charged to poor suitors; if the poor suitor's opponent is condemned in costs, the fees are to be paid by the poor suitor and added to the costs.]

159. [Fees for permitting an examination of records are not to be charged, unless the examination is made by the party or his representative. Fourfold penalty to the exchequer.]

160. [Copies of essential documents are to be included in the record of a case without extra fees. Penalty: twenty pesos to the court-room of our Audiencia.]

161. [Unsigned interrogatories are not to be accepted. Questions must be put only by the counselor of the Audiencia.]

162. [Cases requiring to be divided by assignment among various clerks shall not be accepted without immediate reference to the official whose duty it is to assign cases. Penalty: loss of cases for two months, and loss of the case in question.]

163. [Records and documents must not be committed to the care of any but attorneys or counselors, and to them only on their giving a receipt. Fines are imposed for delay in returning them.]

164. [No record is to be kept of a case of twenty pesos or less, and no fee of more than half a peso from each party is to be taken in such case. Fourfold penalty to the exchequer.]

165. [No fees are to be taken for a view of the records, in cases appealed from ecclesiastical courts, on the ground of violence to law [_fuerza_], if the case is referred back to those courts. Penalty: fourfold fine to the exchequer.]

166. [Fees are to be charged only for the record of such judicial acts as are actually before them, although the whole record is transmitted therewith. Previous penalty.]

167. [Charges of violation of their oath are to be preferred by the fiscal in the event of failure to attend on him with the weekly fines, or of making excessive charges.]

168. [Clerks must be present half an hour before the court convenes; and petitions must be handed in before the president and auditors take their seats in court. Penalty: two pesos of gold paid to the court-room.]

169. [They must affirm with their signatures the sentences given after review by the president and auditors, and written in a book kept in the president's room, before the third day next following. This is done so that the sentences may be known, and to avoid fraud, as the sentences are pronounced after review. Penalty: double the amount in question to the exchequer.]

170. [They must write the decisions of the court by their own hands, especially in affairs of importance, as secrets would not be safe with minor officials. Penalty: six pesos to the court-room.]

171. [The clerks of the said Audiencia or of the criminal court shall levy no fees on the cases pleaded before the said president, auditors and alcaldes, to which the fiscal attorneys are a party, even if the decision is for the said fiscals, with judgment of costs against the other party; and they shall not put them on the record, nor collect them from the condemned persons. P.: forty pesos for the chamber of this Audiencia, and payment of twice the amount collected to the exchequer.]

Official reporters

172-202. [These sections give directions with regard to the duties and emoluments of the reporters [_relatores_], as minute and precise as those for the clerks, with similar penalties. The following sections may be specially noticed:]

176. [Relators are not to ask for cases, but to await the assignment of the bailiffs [_porteros_].]

179. [Relators are not to buy or sell cases from one another, on pain of dismissal from office.]

189. [The words of witnesses in criminal cases are not to be reported at the public statement of the case, for they are to be seen by the auditors alone, without being entrusted to anyone else. Penalty: thirty pesos to the exchequer.]

192. [Relators and other officers are to live near the Audiencia.]

195. [No gifts may be accepted. Penalty: double the amount to the exchequer, condemnation as forsworn, and loss of office.]

Assigners of cases

203. [Fees of the official who distributes the cases [_repartidor_] among the clerks are to be two tomines for each case, [51] except from poor suitors and others exempt.]

Taxing of fees and costs

204. [Records of cases transferred to the council of the Yndias are to have their fees taxed by a special officer.]

205. [In case of complaint against the taxation, the auditor for the week shall decide.]

Advocates

206-214. [These sections give minute directions as to procedure, fixing the time and manner in which documents are to be presented, filed, and demanded, regulating the manner of taxing advocates' fees, and enumerating certain duties of advocates in the conduct of their cases.]

215. Counsel shall swear that they will not give their assistance in unjust causes, or counsel the parties to injustice; and that as soon as they discover that their client is not suing for justice they will abandon the case. If it shall happen that through the negligence or ignorance of the counsel, deducible from the record, the party whom he assists shall lose his right, we command that the said counsel be held to pay his client the damages resulting, together with the costs; and the judge before whom the case shall be pending shall oblige him to pay without delay.

216. [Counsel shall not dare to abandon a case once undertaken, except because of injustice. Penalty: loss of fees and damages to the client.]

217. [Counsel is not to repeat allegations in documents; documents are to be signed by known counsel; two pleas only are to be accepted.]

218. No counsel shall dare to make a bargain with his client for a part of the property to which he lays claim; [52] and, if he shall do so, he shall have no authority to act in the said office for him or for any other.

219. [Advocates are to be examined and approved by the president and auditors, and entered on the list of advocates; no one without a degree may appear in a court, except the party in his own behalf. Penalties graduated.]

220. [Advocates must use care and diligence in behalf of their clients, and conduct their cases honorably. Penalty: suspension, in the judgment of the court.]

221. _Item:_ We ordain and command that the advocate or advocates shall, in cases of first instance and on appeal, pay the parties double the damage resulting from their malice, fault, negligence, or want of skill; and that justice be done promptly in this matter.

222. [Advocates must agree as to their fees before examining the documents of the parties.]

223. [Advocates who have pleaded on one side of a case may not plead later on the other side of the same case.]

224. _Item:_ We command that the said advocates shall be obliged, at the beginning of the suit, to obtain from the party a complete report in writing of everything pertaining to his right--so that, when it shall be necessary to call for an account, if they have not, through the client's fault, done for him what they should,

they may be able to prove the same, in order to take advantage thereof. This report they shall take, signed by the party in interest, or, if he cannot read, the person to whom the party shall entrust the duty.

225. [Advocates must not betray secrets, or advise both parties, and must swear to obey the laws--on pain of fines, and of being removed from the office of advocate.]

226. [Advocates are to take precedence in order of the seniority of their admission. Penalty: suspension for one year.]

227. [Irrelevant questions are forbidden. Penalty: ten pesos to court-room.]

228. They shall sign the powers of attorney of their clients; and shall not frame their interrogatories in the second instance of a case exactly as on the first hearing, or exactly opposite, under a penalty of six pesos to the court-room; and therewith shall cease the examination of the said powers and interrogatories required from our auditors, in conformity with the new laws and ordinances made by us.

229. [Bachelors may not plead or sit with the doctors and licentiates. Penalty: forty pesos to the court-room.]

230. [Clerks of advocates are not to charge clients fees. Penalty: double the fee, to the exchequer.]

Attorneys

231. [Attorneys must be examined and licensed by the court.]

232. [Attorneys and counselors must not agree to prosecute cases at their own expense. Penalty, fifty thousand maravedis.]

233. [The number of attorneys is to be fixed and usual.]

234. [Attorneys must enter no pleadings except for default, conclusion of preliminary process, and the like; and must sign their papers.]

235. [Attorneys must not retain money sent to pay fees and court costs, and must transmit documents to counsel within three days.]

236-241. [These articles deal with the conduct of attorneys in court, and the procedure necessary to institute actions.]

242. [Attorneys must be present to inspect the taxation of costs.]

243. [Petition for a decree is to be assigned to the next meeting of the Audiencia.]

244. Attorneys who ask for documents beyond what the interests of the parties require shall pay six pesos to the court-room, and be imprisoned at the judgment of the president and auditors. This provision shall be valid against all officials.

245. [Names of attorneys of both parties must be entered on all judicial acts and documents.]

246. [Money sent to attorneys for costs must be immediately deposited with the clerk, who shall keep a record.]

247. They shall accept no more fees than shall be regulated by our president and auditors, especially in cases where Indians are plaintiffs or defendants, under a penalty of twice the amount, for our exchequer.

248. [Of notice to parties as to testimony on second instance.]

249. [Documents must be clearly written, without erasure, and properly folded.]

250. [Attorneys may not receive gifts to protract causes.]

BIBLIOGRAPHICAL DATA

All the documents presented in this volume, except four, are obtained from the Archivo general de Indias at Sevilla, and are translated from our transcriptions of the original MSS. They are located as follows:

Peñalosa's two letters: In the patronato "Simancas-Secular; Audiencia de Filipinas; cartas y expedientes del gobernador de Filipinas vistos en el Consejo; años 1567 á 1599; est. 67, caj. 6, leg. 6."

Loarca's "Relation:" In "Simancas-Filipinas; descubrimientos, descriptiones y poblaciones de las Yslas Filipinas; años 1537 á 1565--1° hay 2°; est. 1, caj. 1, leg. 1|23." In the Real Academia de Historia, Madrid, is a copy of this document, made by Muñoz; it is somewhat modernized in spelling, capitalization, etc. A copy of Muñoz's transcription is in Lenox Library. The original MS. is without date; but internal evidence with Peñalosa's statement in his letter to the king (_Vol_. IV, p. 315), shows that Loarca wrote his account of the islands in June, 1582. In the same legajo with this document is the "Report on offices saleable;" but, as the dates show, both are misplaced here. They probably belong in the same patronato as that in which are found the next two documents.

Ribera's letter, and the instrument establishing the Audiencia of Manila: In a patronato which bears the same title as the preceding one, but covers the years 1582 to 1606. These two documents are in "est. 1, caj. 1, leg. 3|25"--the Audiencia decree being also designated as "1° 1, no. 11."

Salazar's letter of 1582: In "Simancas--Eclesiastico; Audiencia de Filipinas; cartas y expedientes del arzobispo de Manila, vistos en el Consejo; años de 1579 á 1599; est. 68, caj. 1, leg. 1."

Letter of Juan Baptista Roman: In "Simancas-Secular; Audiencia de Filipinas; cartas y expedientes de los oficiales reales de Filipinas, vistos en el Consejo; años 1564 á 1622; est. 67, caj. 6, leg. 29."

The "Instructions for the commissary of the Inquisition" is found in the Archivo general of Simancas; our translation is made from a transcription of the original MS. Its pressmark is: "Consejo de Inquisicion; libro 762, folio 170."

The Salazar "Relation" of 1583 we translate from the text given in Retana's _Archivo del bibliófilo filipino_ iii, no. 1,

The papal decrees regarding the Dominicans are obtained from Hernaez's _Colección de bulas_, i, pp. 527, 528.

NOTES

[1] This document is presented in both Spanish text and English translation.

[2] This document is presented in both Spanish text and English translation.

[3] A pretender to the Portuguese throne, who occupied it for a short period (in 1580) in the interim between Henrique's death and Felipe's accession, see _Vol_. I, pp. 355, 356.

[4] Alonso Sánchez was born at Mondejar, in 1547; and became a novice in the Jesuit order (June 18, 1565), at Alcala. In 1579, he went to Mexico; and two years later, with Bishop Salazar, to the Philippines. He was sent to Macao in 1582 to receive for Felipe II the allegiance of the Portuguese at that place. Stanley, in his edition of Morga's _Sucesos_ (p. 402) says: "The library of the Academy of History, Madrid, contains a Chinese copy of a chapa, by which the mandarins of Canton allowed a Portuguese ship to come and fetch Padre Alonso Sanchez and the dispatches from Machan (Moluccas)." In 1586 Sánchez was commissioned by the governor and Spanish inhabitants of the Philippines to go to Rome and Madrid in their behalf; documents which explain this embassy will be presented in later volumes of this series. He died at Alcala, May 27, 1593. Sommervogel cites (_Bibliothèque Comp. Jésus_, viii, col. 520, 521) various writings by Sánchez, mainly on missionary affairs, or on the relations between the Philippine colony and the crown of Spain.

[5] Thomas Candish, the English navigator, relates in picturesque style the fortunes of the Spanish settlement here referred to, "King Philips citie which the Spaniards had built." Candish halted there in January, 1587; the place was then deserted, and he named it Port Famine. It was located not far from the extreme southern point of the Patagonian mainland, at a point commanding the Strait of Magellan. Candish says: "They had contriued their Citie very well, and seated it in the best place of the Streights for wood and water: they had builded vp their Churches by themselues: they had Lawes very seuere among themselues, for they had erected a Gibet, whereon they had done execution vpon some of their company.... During the time that they were there, which was two yeeres the least, they could neuer haue any thing to growe or in any wise prosper. And on the other side the Indians oftentimes preyed vpon them vntill their victuals grewe so short... that they dyed like dogges in their houses, and in their clothes, wherein we found them still at our comming.... To conclude, they were determined to haue trauailed towards the riuer of Plate, only being left aliue 23 persons, whereof two were women, which were the remainder of 4 hundred." See Hakluyt's _Voyages_ (Goldsmid ed., Edinburgh, 1890), xvi, pp. 12, 13.

[6] Don Lorenzo Juarez de Mendoza, Count of Coruña, assumed the duties of viceroy of New Spain on October 4, 1580; he was then advanced in years, and died at Mexico before his three-years' term of office expired--on June 19, 1583.

[7] Antonio Sedeño was born at San Clemente, in 1532 or 1535. In his youth he was a soldier and military engineer, but entered the Jesuit order in 1558 or 1559. After his ordination he went (1568) to Florida as a missionary, and in 1572 to New Spain. The rest of his life was spent in the Philippines, where he not only held high official positions in his order, but introduced among the Filipino natives many industries and manufactures, opened the first school in the island, founded colleges, and engaged in many other labors for the benefit of both the Spanish and the natives. He died September 2, 1595. See notice of his life in Sommervogel's _Bibliothèque_; and Algué's _Archipiélago filipino_, i, p. 251 (translated in _Report_ of U.S. Philippine Commission, 1900, iv, p. 99).

[8] The words in italics at the beginning of the paragraphs are in the MS. written as marginal notes.

[9] The matter in brackets is an insert in the margin of the original manuscript.

[10] In making this correction the writer evidently neglected to change the gender of "vnas."

[11] Pasacao River is a small stream on the western side of the (old) province of Camarínes Sur. The overland journey here mentioned is to Nueva Cáceres, capital of the province, which is ten miles above the mouth of Naga River (although farther by the windings of the river). This river has its source only four miles from the Pacific coast of Albay, whence it flows N.W. into Bató Lake; this part of its course is called Inaya River. Another N.W. course of about the same length (about 25 miles) carries the waters of the lake as far as Nueva Cáceres, in a stream known as Bicol (the Vicor of our text) River. From that city to its discharge in San Miguel Bay, it is called Naga River.

[12] A sort of garment worn by peasants, opening behind or at the shoulder. The meaning of the name, "jump aboard," suggests the similar name applied in some localities in the United States to a sort of over-all blouse, there called "jumper."

[13] Cf. the descriptions of this custom in Morga's _Philippine Islands_ (Hakluyt Society, London, 1868), p. 304; and in account of Thomas Candish's voyage, in Hakluyt's _Voyages_ (Goldsmid ed.) xvi, p. 42.

[14] "A god of the Higuecinas (a subdivision of the ancient Bisayas). The Igueines (another subdivision of that people) believed that the god Maguayan carried the souls of his disciples, in his boat, to another life."--_Ferdinand Blumentritt_: "Diccionario mitológico," in Retana's _Archivo_, ii, p. 411.

[15] These seem to be memoranda, which the writer forgot to fill in later.

[16] The tabon, also called "the mound-builder" _(Megapodius cumingi_). Its eggs are highly prized by the natives as an article of food; they rob the deposit made by the birds. After each egg is deposited, the parent birds (several pairs of whom often frequent the same spot) scratch earth over it, thus gradually raising a mound of considerable size. See description of this bird in _Report_ of U.S. Philippine Commission for 1900, iii, pp. 314, 315.

[17] Of the banana (_Musa_), over fifty varieties have been enumerated as found in the Philippine Islands. Many of these are minutely described in Blanco's _Flora_, pp. 167-175. The nangca (or langca) is _Arctocarpus integrifolia_; the macupa (also known as tampoi), _Eugenia malaccensis_; the santol (santor), _Sandóricum indicum_. See descriptions of all these in Blanco's _Flora_, and in _U.S. Philippine Gazetteer_, pp. 93-95.

[18] The bejucos, as before explained, are various species of _Calamus,_ commonly known as rattan. Blanco describes two of these _(C. maximus_ and _C. gracilis_) as furnishing a supply of water. Some of the species attain a height of more than six hundred feet.

[19] A sketch of this officer in _Cartas de Indias_ (p. 734) states that he founded the city of Nueva Segovia, and probably remained in the islands from the time of their conquest until his death; also that the Japanese corsair here referred to was named Tay Zufu.

[20] _Champan_ (or _sampan_): a Chinese vessel; described by Retana (Zúñiga's _Estadismo_, ii, p. 513*) as being "about as large as a Spanish patache, but inferior to the junks of the Chinese; used by that people for trading in the Filipinas islands." The term is now applied to a boat 12 or 15 feet long, in which a family often makes its home, on the Canton River; also to a vessel of 70 or 80 tons' burden, used in the rivers of Colombia, S.A.

[21] The Dominican order (also known as the Order of Preachers) was founded, about 1215, by St. Dominic de Guzman; he adopted, but with various additions, the rule of St. Augustine. Among the great men who have belonged to this order are Thomas Aquinas, Johann Tauler, and Girolamo Savonarola.

[22] Chiapas (Chiapa) was a province of the ancient kingdom of Guatemala; also a bishopric (erected in 1538). Its capital bore the same name.

[23] The vicar-general to whom these letters were addressed was named Fr. Juan Crisóstomo Sevillano.--_Rev. T.C. Middleton, O.S.A._

[24] The original MS. is endorsed by some archivist: "Letter of Captain Gabriel de Rivera to his Majesty, upon Philippine affairs;" but the letter is evidently addressed to some official--perhaps the viceroy of New Spain, or the president of the royal council.

[25] In a letter dated Manila, July 20, 1581, and signed by Amador de Arriaran, Andres Cabchela, Salvador de Aldave, Luis de Vivanco, Joan Manuel Pimentel, Juan Maldonado, Gabriel de Ribera, and Juan Pacheco Amado, it is stated that Ribera is sent as procurador [attorney]-general to the king to give account of the "affairs and condition of this land." He is recommended to the king's consideration as "one of the first who came to this exploration and pacification" with Legazpi, and "has been able to give a good account of himself in everything." The pressmark of this document, which exists in Archivo General de Indias at Sevilla, is: "Simancas--Filipinas: Descubrimientos, etc., años 1566 á 1586; Est. 1, caj. 1, leg. 2|24." Morga says that Ribera was created Mariscal of Bonbon while in Spain. The effect of his mission was the establishment of the Audiencia of Manila, whose president was to fill the offices

of governor and captain-general of the islands. This was attained after the death of Ronquillo, although that event was unknown in court at the time.

[26] Gonzalo Ronquillo was governor from 1580 until his death in 1583. Morga says that trade with the Chinese was increased during his governorship. He attempted to discover a return route to New Spain through the southern seas, but was unsuccessful. He opened trade with Peru. A duty of two per cent on merchandise sent to New Spain was imposed by him, and one of three per cent on goods imported by the Chinese.

[27] Taking the words "twenty years" literally would make the date of this letter in 1584, but it must have been prior to that date. Ribera was sent to Spain in 1581, and Ronquillo died in 1583. The date of this letter therefore is conjectured to have been the latter year.

[28] Retana's text here reads thus: "El preçio que tenian las cosas, después que los Españoles introduxera la moneda de plata, que por la mayor parte son tostones, que así llaman á los reales de á cuatro çientas gantas de arroz, y por otro [real], çiento de vino, y por otro, doçe y catorçe y a un diez y seis gallinas." The bracketed word _real_ was supplied by Retana. A more satisfactory emendation would be _tostón_, the equivalent of _real de á cuatro_. The passage should read thus: "reales de a cuatro [por un tostón cuatro] çientas gantas de arroz, y por otro [tostón] çiento," etc. This supposition is borne out by a later passage where Salazar states that in former times four hundred gantas of rice cost one tostón.--_H.E. Bolton_.

[29] Ronquillo was governor of the entire archipelago.--_Retana_.

[30] He alludes, as will be seen below, to the encomenderos, against whom, chiefly, this accusation by the famous bishop Salazar is directed--_Retana_.

[31] A mistake for "Gonzalo;" Father Salazar commits the error again, as will be seen farther on.--_Retana_.

[32] The word "taels" is Retana's conjecture; but it is possible that the doubtful word was _joyas_ ("ornaments"). From the context, it is more probably _quintos_ ("fifths"), indicating that the royal officials attempted to exact from the Indians the "king's fifth" on all their possessions of gold, as well as on that newly dug from the ground.

[33] That is, as no longer in circulation (Span., _por perdido_). The reference is to the native custom mentioned by Sande in his report of 1577 (see _Vol_ IV of this series, p. 99). Speaking of the best grade of gold used by the Moros, he says: "From this is made the jewelry which they inherit from their ancestors, with which they never part."

[34] A term originally applied to the gold or silver wristlets and anklets worn by Moorish women.

[35] In the form of promissory notes, such as always have been so much used and abused in the Philippines.--_Retana_.

[36] Span., _perlados_; so in Retana's text, but from the context there is apparently some error in this--perhaps a copyist's conjecture for some illegible word.

[37] This man was notary of the expedition sent to Borneo and Mindanao by Francisco de Sande under command of Gabriel de Rivera. See _ante_, _Vol_. IV, p. 273.

[38] Fray Santa Inés says (_Crónica,_ i, p. 16) that the use of this phrase (Spanish, _Islas del Poniente_) arose among Spanish traders--partly because, to reach the Philippines, they followed the course of the sun westward from Spain; and partly to sustain the contention that those islands were "in the demarcation of Castilla, or the Western Indias, and not in that of Portugal, or Oriental India."

[39] The Inquisition was first introduced into Portuguese India in 1560; and into Spanish America in 1569 (at Panama). In 1570 it was established in Mexico, of which the Philippines were a dependency in religious as well as civil affairs. Felipe II's decree (January 25, 1569) establishing the Inquisition in the Indias, with other decrees regulating the operations and privileges of that tribunal, may be found in _Recopilación leyes Indias_ (ed. 1841), lib. i, tit. xix. Regarding the history and methods of the Inquisition, the following works are most full and authoritative: _Practica Inquisitionis hereticoe pravitatis_ (ed. of C. Douais, Paris, 1886), by Bernard Gui--himself an inquisitor; it was composed about 1321. _Historia Inquisitionis_ (Amstelodami, 1692), by Philippus van Limborch; English translations of this book were published at London in 1731, 1734, 1816, and 1825. _Anales de la Inquisicion de España_ (Madrid, 1812-13), by Juan A. Llorente, who was secretary to the Inquisition in Spain, and chancellor of the University of Toledo; translations of this book were published in English (London, 1826; and New York, 1838), and in other languages. _Historica critica de la Inquisicion de España_ (Madrid, 1822), also by Llorente. _History of the Inquisition_ (London and N.Y., 1874), by W.H. Rule. _The Jews of Spain and Portugal, and the Inquisition_ (London, 1877), by Frederic D. Mocatta, a Jew. _History of the Inquisition of the Middle Ages_ (N.Y., 1886), by Henry C. Lea. _Les sources de l'histoire de l'Inquisition dans le midi de la France au treizième et au quatorzième siécle_, by C. Douais, editor of Gui's work; it includes the _Chronique_ of Guilhem Pelisso, "the first written account of the Inquisition."

[40] _Relaxado_ (feminine, _relaxada_): a person abandoned by the ecclesiastical judge to the secular arm [_al brazo seglar_]; referring to the obstinate heretic who refused to abjure and do penance, or to him who after abjuration should relapse. _Confeso_ ("confessed") meant a Jew converted to the Christian faith.

[41] An oath taken by a person who has no bail, that he will return to prison when summoned.

[42] Referring to the established judge of ecclesiastical causes, the vicars of the bishops, or sometimes to the bishops themselves.

[43] There were only two chancillerias in Spain--those at Valladolid and Granada; they were originally one tribunal, which followed the royal court. They had cognizance of cases on appeal, cases of nobility, and cases regarding the inheritance of entailed property. These courts were abolished by the Constitution of 1812 and

subsequent legislative enactments.--_A.P. Cushing_.

[44] _Casos de corte_: cases which, because of their importance, the amount involved, or the dignity of the parties, might in the first instance be tried in a superior court.--_Nov. Dice. lengua castellana_ (Gamier, Paris, 1897).

[45] Paragraphs enclosed in brackets contain brief synopses of the corresponding matter in the text which is purely technical, and not of sufficient special interest to justify giving it so much space in our pages.

[46] That is, not subject to the exemptions of the privileged orders.--_H.B. Lathrop_.

[47] A receptor is an escribano (clerk, or scrivener) who by special commission or authority from a tribunal proceeds to perform certain judicial functions.--_A.P. Cushing_.

[48] Spanish, _en los casas de fuerça hechas por jueces eclesiasticos._ _Fuerza_ is injury committed by an ecclesiastical judge in (1) hearing a case which does not come within his jurisdiction; (2) non-observance of rules of procedure; or (3) unjust refusal to allow an appeal. In such cases the aid of the secular courts may be invoked, by the _recurso de fuerza_; and thus cases were brought before the Audiencia, as above in section 7.--_A.P. Cushing_.

[49] In _Recopilación leyes Indias_ (ed. 1841), lib. i, tit. xx, may be found the royal decrees issued from 1537 to 1640 regarding the operations of the Holy Crusade in the Spanish colonies.

[50] A word originating in Hayti, signifying "princes" or "chiefs"--quite naturally extended, by a Spanish clerk or secretary, to the chiefs of Filipino tribes.

[51] This is the only case in which the amount of a fee is prescribed in this instrument, except for officials peculiar to the region; the tariff (_arancel_) of Spain is to be followed, as a rule.--_H.B. Lathrop_.

[52] This clause forbids the counsel to take a contingent fee.--_H.B. Lathrop_.